

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

LINSEY JOHNSON,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,**

Defendants.

Filed: _____

INDEX NO. 12865/15

Plaintiff designates Kings
County as the place of trial.

S U M M O N S

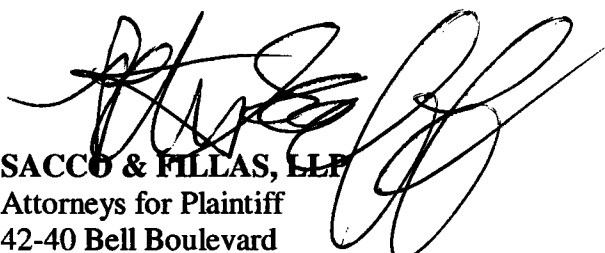
The basis of venue is
the County in which the
cause of action arose.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Bayside, New York
October 12, 2015


SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 301
Bayside, New York 11361
(718) 352-9766

THE CITY OF NEW YORK
Comptroller's Office of the City of New York
Manhattan Municipal Building, 1 Centre Street Room 1220
New York, New York 10007

NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

**KINGS COUNTY CLERK
FILED
2015 OCT 27 AM 10:00**

POLICE OFFICER GOMEZ
1470 E New York Ave
Brooklyn, New York 11212

POLICE OFFICER YOUNG
1470 E New York Avenue
Brooklyn, New York 11212

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

LINSEY JOHNSON,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,**

Defendants.

INDEX NO.

**SUMMONS AND
COMPLAINT**

Plaintiff, by his attorneys, SACCO & FILLAS, LLP, as and for his Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, LINSEY JOHNSON, at all times herein mentioned was and still is a resident of the County of Queens and the State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was an agency of THE CITY OF NEW YORK.
4. The defendant, POLICE OFFICER GOMEZ, worked at the 73rd Precinct, located at 1470 East New York in the County of Kings and State of New York.
5. At all times herein mentioned, POLICE OFFICER GOMEZ, was acting within the scope of his employment as a police officer for the NEW YORK CITY POLICE DEPARTMENT.
6. The defendant, POLICE OFFICER YOUNG, worked at the 73rd Precinct, located at 1470 East New York in the County of Kings and State of New York.
7. At all times herein mentioned, POLICE OFFICER GOMEZ, was acting within the scope of his employment as a police officer for the NEW YORK CITY POLICE

DEPARTMENT.

8. Prior to the commencement of this action, a notice of claim in writing was served on behalf of LINSEY JOHNSON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.
9. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of LINSEY JOHNSON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.
10. Within ninety days (90) of the January 31, 2015 herein, a notice of claim in writing was served on behalf of LINSEY JOHNSON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.
11. Prior to the commencement of this action, notice of the intention of LINSEY JOHNSON to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of LINSEY JOHNSON upon THE CITY OF NEW YORK.
12. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.
13. A hearing pursuant to General Municipal Law 50-h has been held.
14. This action is commenced within one (1) year from January 31, 2015, the date of release for the wrongful arrest as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

15. On or about January 31, 2015, the plaintiff LINSEY JOHNSON was wrongfully arrested for criminal actions for an allegedly outstanding traffic ticket for an incident occurred in 2008. At all times herein mentioned, LINSEY JOHNSON was maliciously and without

probable reason or cause, inculpated in criminal actions in which he did not participate, by the CITY OF NEW YORK.

16. On or about January 31, 2015, the plaintiff LINSEY JOHNSON was wrongfully arrested for criminal actions under Kings County Docket Number 2008SK095321 for an allegedly outstanding traffic ticket for an incident occurred in 2008. At all times herein mentioned, LINSEY JOHNSON was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by the defendants.
17. At all times herein mentioned, the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG, maliciously instituted judicial proceedings without probable cause for doing so, which forced LINSEY JOHNSON to expend money and retain an attorney for the scheduled Court hearings.
18. The cause of action for malicious prosecution arose on January 31, 2015, with the dismissal of the criminal action against LINSEY JOHNSON in the County of Queens, City and State of New York.
19. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.
20. By reason of the malicious prosecution, LINSEY JOHNSON was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, and was required to spend large sums of money to defend himself against the prosecution in the Criminal Court of the City of New York, and in the proceeding before the State. Plaintiff

suffered losses from his business and was degraded in the esteem of the community.

21. The defendant's conduct constituted malicious prosecution on the part of the defendant against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
22. This malicious prosecution was encouraged, aided, abetted, and incited voluntarily and willfully by the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG.
23. At all times herein mentioned, LINSEY JOHNSON, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,.
24. At all times herein mentioned, the defendant THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG, maliciously instituted judicial proceedings without probable cause for doing so, which forced LINSEY JOHNSON to expend money and/or retain an attorney for the scheduled Court hearings.
25. The plaintiff, LINSEY JOHNSON, was confined at the 73rd precinct on January 31, 2015. Plaintiff was confined until February 1, 2015. Plaintiff was wrongfully imprisoned from January 31, 2015 until his release on February 1, 2015. Plaintiff at all times maintained his innocence. Regardless, the defendants maliciously imprisoned Plaintiff without probable cause for doing so.
26. The criminal proceeding was prosecuted with actual malice against the plaintiff, LINSEY JOHNSON.
27. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

28. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR
WRONGFUL ARREST AND IMPRISONMENT

29. Specifically, on January 31, 2015, LINSEY JOHNSON was wrongfully arrested

30. On January 31, 2015, LINSEY JOHNSON was wrongfully arrested under Kings County Docket Number 2008SK095321.

31. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to retain counsel and/or expend money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.

32. The defendants' conduct constituted malicious prosecution on the part of the defendants against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.

33. At all times herein mentioned, LINSEY JOHNSON, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by defendants.

34. The criminal proceeding was prosecuted with actual malice against the plaintiff, LINSEY JOHNSON

35. By reason of the wrongful arrest, LINSEY JOHNSON, was deprived of his liberty and was

subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, fingerprinted, photographed, and was required to spend sums of money to defend himself against the prosecution in the Criminal Court of Queens County, and in the proceeding before the State. Plaintiff suffered losses and was degraded in the esteem of the community.

36. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

37. The defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG's conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of LINSEY JOHNSON as a result of the defendant's malicious prosecution.

38. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.

39. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ABUSE OF PROCESS

40. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.

41. The defendants herein, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,

POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG wrongfully and maliciously and with intent to injure plaintiff, prosecuted a criminal action against the Plaintiff.

42. By reason of the foregoing abuse of process plaintiff was deprived of his liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering and was compelled to employ an attorney.
43. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.
44. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
LINSEY JOHNSON AGAINST THE DEFENDANTS

45. That the plaintiff, LINSEY JOHNSON, repeats, reiterates and realleges the above mentioned paragraphs of this Complaint inclusive with the same full force and effect as if more fully set forth herein at length.
46. That the aforesaid conduct on the part of the defendant constituted a violation of the plaintiff, LINSEY JOHNSON'S, civil rights under 42 USC 1983, in that the plaintiff was deprived of his rights, privileges and immunities secured to him by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.
47. That the aforesaid abuse of process on the plaintiff by the defendants, and the subsequent

false arrest and imprisonment of the plaintiff by the defendants, deprived the plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the plaintiff under the Fourth Amendment to the United States Constitution.

48. That as a result of the aforesaid occurrence, the plaintiff, LINSEY JOHNSON, was caused to and did sustain severe, serious and protracted injuries to his person and body

49. Due to defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG's, negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

50. Plaintiff, Linsey Johnson repeats and realleges each and every allegation contained in paragraphs above of the Complaint as if fully set forth at length herein.

51. The defendants intentionally confined LINSEY JOHNSON and/or restricted LINSEY JOHNSON'S freedom of movement

52. LINSEY JOHNSON was conscious of said confinement and/or restriction.

53. LINSEY JOHNSON did not consent to said confinement and/or restriction.

54. The confinement and/or restriction was not otherwise privileged.

55. Due to defendant, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG's false arrest and imprisonment of Linsey Johnson, plaintiff LINSEY JOHNSON is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiff demands judgment awarding damages:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: Bayside, New York
October 12, 2015



By: Peter Graff
SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 301
Bayside, New York 11361
(718) 352-9766

Our File No.: 14845-15b

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.

LINSEY JOHNSON,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG,**

Defendants.

SUMMONS and COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: October 12, 2015

Signature: _____


Peter Graff

SACCO & FILLAS, LLP

Attorneys for Plaintiff

42-40 Bell Boulevard

Suite 301

Bayside, New York 11361

(718) 352-9766

Attorney: SACCO & FILLAS LLP
Address: 31-19 NEWTOWN AVENUE ASTORIA, NY 11102

LINSEY JOHNSON

Index Number: 12865/15

vs

Plaintiff

Client's File No.: 14845-15b

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ AND
POLICE OFFICER YOUNG

Court Date:

Defendant

Date Filed: 10/27/2015

STATE OF NEW YORK, COUNTY OF QUEENS, SS.:

LUIS CRESPO, being sworn says:

AFFIDAVIT OF SERVICE

Deponent is not a party herein; is over the age of 18 years and resides in the State of .

On 10/29/2015, at 10:16 AM at: 100 CHURCH STREET , NEW YORK , NY 10007 Deponent served the within Summons and Verified Complaint

On: THE CITY OF NEW YORK , Defendant therein named.

☒ #1 Corporation or Partnership or Trust or LLC

By delivering thereat a true copy of each to B. Mazyck personally. Deponent knew said corporation/partnership/trust/LLC so served to be the corporation/partnership/trust/LLC described in said aforementioned document as said defendant and knew said individual to be General Agent thereof.

☒ #2 DESCRIPTION

Sex: Female

Color of skin: Black

Color of hair: Black/Gray

Glasses:

Age: 55

Height: 5ft 4in - 5ft 8in

Weight: 161-200 Lbs.

Other Features:

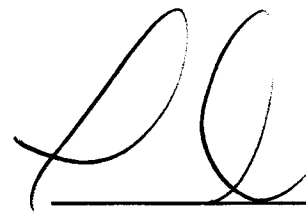
☐ #3 WITNESS FEES

Subpoena Fee Tendered in the amount of

☐ #4 OTHER

Sworn to before me on 10/29/2015

DIANNE GONZALEZ
NOTARY PUBLIC, State of New York
No. 01GO8026621, Qualified In Queens County
Term Expires, August 3, 2019



LUIS CRESPO
DCA License# 2016122

2015 NOV -2 AM 9:38
KINGS COUNTY CLERK
MB



PREFERRED PROCESS SERVERS INC 166-06 24TH RD, LL, WHITESTONE, NY 11357 718-362-4890 Lic#2003142-DCA

Attorney: SACCO & FILLAS LLP

Address: 31-19 NEWTOWN AVENUE ASTORIA, NY 11102

LINSEY JOHNSON

Index Number: 12865/15

vs

Plaintiff

Client's File No.: 14845-15b

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ AND
POLICE OFFICER YOUNG

Court Date:

Defendant

Date Filed: 10/27/2015

STATE OF NEW YORK, COUNTY OF QUEENS, SS.:

TIMOTHY IRBY, being sworn says:

AFFIDAVIT OF SERVICE

Deponent is not a party herein; is over the age of 18 years and resides in the State of New York.

On 1/26/2016, at 2:39 PM at: Housing Bureau-PSA 4 130 Avenue C, NEW YORK, NY 10009 Deponent served the within Summons and
Verified Complaint

On: POLICE OFFICER GELPHIN GOMEZ, Defendant therein named.

☒ #1 SUITABLE AGE PERSONBy delivering thereat a true copy of each to Officer Saladeen 27254 (Co-Worker) a person of suitable age and discretion. Said premises is recipient's:[X]
actual place of business / employment ☐ dwelling house (usual place of abode) within the state.☒ #2 DESCRIPTION

Sex: Male

Color of skin: Black

Color of hair: Black

Glasses:

Age: 30

Height: 5ft 4in - 5ft 8in

Weight: 161-200 Lbs.

Other Features:

☒ #3 MILITARY SERVICEI asked the person spoken to whether defendant was in active military service of the United States or the State of New York in any capacity whatever
and received a negative reply. The source of my information and the grounds of my belief are the conversations and observations above narrated.☐ #4 WITNESS FEES

Subpoena Fee Tendered in the amount of

☐ #5 OTHER☒ #6 MAILINGDeponent completed service by depositing a copy of the said documents in a postpaid properly addressed envelope, bearing the words "Personal
and Confidential" by first class mail on: 01/27/2016 in an official depository of the United States Postal Service in the State of New York.

Sworn to before me on 01/27/2016

DIANNE GONZALEZ
NOTARY PUBLIC, State of New York
No. 01GO6025621, Qualified in Queens County
Term Expires, August 3, 2019
TIMOTHY IRBY
DCA License #13912362016 FEB 1 - AM 9:54
KINGS COUNTY CLERK
FILED

PREFERRED PROCESS SERVERS INC 166-06 24TH RD, LL, WHITESTONE, NY 11357 718-362-4890 Lic#2003142-DCA

REQUEST FOR JUDICIAL INTERVENTION

UCS-840 (7/2012)

Supreme COURT, COUNTY OF KINGS

Index No.: 12865/2015 Date Index Issued: October 27, 2015

CAPTION: Plaintiff(s) and Defendant(s) (Indicate by number and name)

LINSEY JOHNSON

Plaintiff(s)/Petitioner(s)

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG

Defendants(s)/Respondent(s)

NATURE OF ACTION OR PROCEEDING (Check one box, or specify where indicated)

MATRIMONIAL

☐ Contested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the **MATRIMONIAL RJJ Addendum**. For Uncontested Matrimonial Actions, use RJJ form UD-13.

TORTS

☐ Asbestos☐ Breast Implant☐ Environmental: _____

(specify)

☐ Medical, Dental, or Podiatric Malpractice☐ Motor Vehicle☐ Products Liability: _____

(specify)

☒ Other Negligence: false arrest

(specify)

☐ Other Professional Malpractice: _____

(specify)

☐ Other Tort: _____

(specify)

OTHER MATTERS

☐ Certificate of Incorporation/Dissolution [see NOTE under Commercial]☐ Emergency Medical Treatment☐ Habeas Corpus☐ Local Court Appeal☐ Mechanic's Lien☐ Name Change☐ Pistol Permit Revocation Hearing☐ Sale or Finance of Religious/Not-for-Profit Property☐ Other: _____

(specify)

COMMERCIAL

☐ Business Entity (including corporations, partnerships, LLCs, etc.)☐ Contract☐ Insurance (where insurer is a party, except arbitration)☐ UCC (Including sales, negotiable instruments)☐ Other Commercial: _____

(specify)

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(d)], complete and attach the **COMMERCIAL DIV RJJ Addendum**.

REAL PROPERTY: How many properties does the application include?

☐ Condemnation☐ Mortgage Foreclosure (specify):

Residential

Commercial

☐ Foreclosure

Property Address: _____

Street Address

City

State

Zip

NOTE: For Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied condominium complete and attach the **FORECLOSURE RJJ Addendum**.

☐ Tax Certiorari – Section _____

Block: _____

Lot: _____

☐ Tax Foreclosure☐ Other Real Property: _____

(specify)

SPECIAL PROCEEDINGS

☐ CPLR Article 75 (Arbitration) [see NOTE under Commercial]☐ CPLR Article 78 (Body or Officer)☐ Election Law☐ MHL Article 9.60 (Kendra's Law)☐ MHL Article 10 (Sex Offender Confinement-Initial)☐ MHL Article 10 (Sex Offender Confinement-Review)☐ MHL Article 81 (Guardianship)☐ Other Mental Hygiene: _____

(specify)

☐ Other Special Proceedings: _____

(specify)

STATUS OF ACTION OR PROCEEDING (Answer YES or NO to EVERY question AND enter additional information where indicated.)

Has a summons and complaint or summons w/notice been filed?

YES

NO

☒☐

If yes, date filed:

October 27, 2015

Has a summons and complaint or summons w/notice been served?

☒☐

If yes, date served:

October 29, 2015

Is this action/proceeding being filed post-judgment?

☐☒

If yes, judgment date:

NATURE OF JUDICIAL INTERVENTION

If only one type of relief is sought, check only one box. If more than one type of relief is sought, check all that apply. AND enter additional information, if any, in the space below.

- ☐ Infant's Compromise
☐ Note of Issue and/or Certificate of Readiness
☐ Notice of Medical, Dental or Podiatric Malpractice Date Issue Joined: _____
☐ Notice of Motion Relief Sought: _____ Return Date: _____
☐ Notice of Petition Relief Sought: _____ Return Date: _____
☐ Order to Show Cause Relief Sought: _____ Return Date: _____
☐ Other Ex Parte Application Relief Sought: _____
☐ Poor Person Application Relief Sought: _____
☒ Request for Preliminary Conference
☐ Residential Mortgage Foreclosure Settlement Conference
☐ Writ of Habeas Corpus
☐ Other (specify): _____

RELATED CASES

List any related actions. For Matrimonial actions, include any related criminal and/or Family Court cases.
 If additional space is required, complete and attach the RJJ Addendum. If none, leave blank.

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case
NONE				

PARTIES

If additional space is required, complete and attach the RJJ Addendum.

For parties without an attorney, check "Un-Rep." box AND enter party address, phone number and e-mail address in "Attorneys" space.

Un-Rep	Parties:	Attorneys:	Issue Joined (Y/N):	Insurance Carrier(s):
☐	Johnson Last Name Linsey First Name Plaintiff Primary Role: Secondary Role (if any):	Graff Last Name Peter First Name Sacco & Fillas, LLP Firm Name 42-40 Bell Boulevard Street Address Bayside City New York State 11361 Zip 7183529760 Phone 7183529770 Fax e-mail	☒ YES ☐ NO	
☐	New York Police Department Last Name First Name Defendant Primary Role: Secondary Role (if any):	Corporation Counsel Last Name First Name 100 Church Street Street Address New York City NY State Zip 7185035045 Phone 7182222088 Fax e-mail	☒ YES ☐ NO	
☐	The City of New York Last Name First Name Defendant Primary Role: Secondary Role (if any):	Corporation Counsel Last Name First Name 100 Church Street Street Address New York City NY State Zip 7185035045 Phone 7182222088 Fax e-mail	☒ YES ☐ NO	
☒	Gomez Last Name Officer First Name Primary Role: Secondary Role (if any):	Last Name First Name 1470 E New York Ave Street Address Brooklyn City NY State Zip Phone Fax e-mail	☒ YES ☐ NO	

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 19 January 2016

2663078

ATTORNEY REGISTRATION NUMBER

PETER GRAFF

PRINT OR TYPE NAME

REPORT

Request for Judicial Intervention Addendum

UCS-840A (7/2012)

Supreme COURT, COUNTY OF KINGS Index No: 12865/15

For use when additional space is needed to provide party or related case information.

Name		Address				Is he/she a member?	Remarks
Name		Address				Is he/she a member?	Remarks
[X]	Young Officer	Last Name	Last Name		First Name	YES	
		First Name	Firm Name				
	Primary Role:	Street Address	City	State	Zip	X NO	
	Secondary Role (if any):	Phone	Fax	e-mail			
[]		Last Name	Last Name		First Name	O YES	
		First Name	Firm Name				
	Primary Role:	Street Address	City	State	Zip	X NO	
	Secondary Role (if any):	Phone	Fax	e-mail			
[]		Last Name	Last Name		First Name	O YES	
		First Name	Firm Name				
	Primary Role:	Street Address	City	State	Zip	O NO	
	Secondary Role (if any):	Phone	Fax	e-mail			
[]		Last Name	Last Name		First Name	O YES	
		First Name	Firm Name				
	Primary Role:	Street Address	City	State	Zip	O NO	
	Secondary Role (if any):	Phone	Fax	e-mail			
[]		Last Name	Last Name		First Name	O YES	
		First Name	Firm Name				
	Primary Role:	Street Address	City	State	Zip	&ij9 n & NO	
	Secondary Role (if any):	Phone	Fax	e-mail			
[]		Last Name	Last Name		First Name	O YES	
		First Name	Firm Name				
	Primary Role:	Street Address	City	State	Zip	O NO	
	Secondary Role (if any):	Phone	Fax	e-mail			

Case Title	Index/Case No.	Court		Judge (if assigned)	Relationship to Instant Case

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINSEY JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,
Defendants.

INDEX NO. 12865/15

**REQUEST FOR A
PRELIMINARY
CONFERENCE**

The undersigned requests a preliminary conference.

The nature of the action is to recover money damages for personal injury due to defendants' negligence.

The names, addresses and telephone numbers of the attorneys appearing herein are:

SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 301
Bayside, New York 11361
(718) 352-9760

CORPORATION COUNSEL
Attorneys for Defendants
100 Church Street
New York, New York 10007
(212) 788-0646

Dated: Bayside, New York
19 January 2016



By: Peter Graff
SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 301
Bayside, New York 11361
(718) 352-9760
Our File No.: 14845-15b

To:

CORPORATION COUNSEL
Attorneys for Defendant
100 Church Street
New York, New York 10007
(212) 788-0646

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINSEY JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,
Defendants.

INDEX NO. 12865/15

**AFFIDAVIT OF MAIL
SERVICE**

STATE OF NEW YORK
COUNTY OF QUEENS

John Christoulakis, being duly sworn, says:

I am not a party to the action; I reside at Queens, New York, and I am over 18 years of age.

On December 28, 2015, I served the within Request for a Preliminary Conference and Request for Judicial Intervention by depositing true copies thereof, enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the United States Postal Service within New York State, addressed to the following at the last known address set forth below:

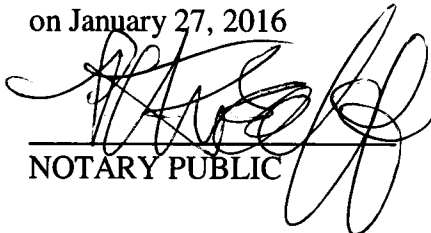
CORPORATION COUNSEL
100 Church Street
New York, New York 10007



John Christoulakis

Sworn to before me

on January 27, 2016



NOTARY PUBLIC

PETER GRAFF
NOTARY PUBLIC, STATE OF NEW YORK
COUNTY OF SUFFOLK
LIC. #02GR6121526
COMMISSION EXPIRES _____

1/18/17

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No. 12865/15

LINSEY JOHNSON,

Plaintiff,

-against-

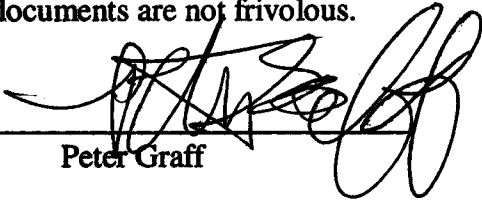
**THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG,**

Defendants.

**REQUEST FOR A PRELIMINARY CONFERENCE and
REQUEST FOR JUDICIAL INTERVENTION**

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Signature: _____


Peter Graff

SACCO & FILLAS, LLP

Attorneys for Plaintiff

42-40 Bell Boulevard

Suite 301

Bayside, New York 11361

(718) 352-9760

KINGS COUNTY

PRELIMINARY CONFERENCE ORDER

SUPREME COURT OF THE STATE OF NEW YORK
 KINGS COUNTY ~~HON. MARTIN SCHNEIER, JUDGE~~

-----X
 Linsey Johnson

Plaintiff(s),

- against -

Defendant(s).

The City of New York, et al.

Index No.: 012865/15

Prelim. Conf. Date: 5/23/16

Comp. Conf. Date: 12/06/16

Note of Issue Date: 01/13/17

Justice: Jimenez-Salta

IAS Part 20 #10

City File: 15TT 048170

-----X
 I. Insurance Coverage:

- (a) Defendant City of New York and/or other defendants represented by Corporation Counsel, if any, is/are X self-insured. _____ covered by an insurance policy.
 (b) Defendant(s) _____, if not already provided, to furnish to all parties, including, evidence of excess coverage and Certificate of Insurance, within 30 days.

II. Bill of Particulars:

- (a) A verified bill of particulars shall be served by _____ within 60 days.
 (b) A supplemental bill of particulars shall be served by _____ as to item(s) _____, within 60 days.
 (c) Defendant the City of NY to provide a verified bill of particulars as to affirmative defenses within 60 days. = of receiving Plaintiff's demand

III. Medical Reports and Authorizations. HIPAA and Arons compliant

- (a) Plaintiff(s) shall provide authorizations to obtain copies of the actual records of all treating and examining health care providers, including diagnostic tests, x-rays, MRIs, EMGs, CT Scans, for injuries specified in the bill of particulars, within 90 days.
 (b) Plaintiff(s) shall provide an authorization for collateral source information, if any, within 90 days.

including prior and subsequent treatment to affected areas and any mental health treatment, if applicable

- (c) If, plaintiff is claiming a loss of income or wages, authorizations for W2 forms, and/or IRS records, and/or employment records shall be provided for the year of, year before and year after the date of the alleged accident, as well as authorizations for the period of time lost from work as a result of the alleged accident, within 90 days.
- (d) If, plaintiff was a student at the time of the alleged accident, plaintiff shall provide an authorization for school attendance records for the period of time lost from school as a result of the alleged accident, within 90 days.

IV. Physical Examination:

- (a) A physical examination of the plaintiff shall be scheduled within 60 days after completion of plaintiff's examination before trial.
- (b) A copy of the physician's report shall be furnished to plaintiff(s) within 60 days after the examination.
- (c) Defendant(s)' right to a further physical is reserved as to any new injuries claimed in any supplemental bill of particulars served by plaintiff(s).

V. Depositions: (check applicable box)

- (a) The depositions of the following parties shall take place on 9/22/16 and 9/23/16 at 10 a.m./p.m. at the following location:

100 Church Street, 9th Floor, New York, NY 10007

All parties

X Plaintiff(s), on 9/22/16, defendants on 9/22/16 and 9/23/16

Waived by _____ as to _____

- (b) Defendant(s)' right to seek a further deposition of plaintiff(s) is reserved as to any new injuries or damages claimed in any supplemental bill of particulars served by plaintiff(s) following the plaintiff's deposition.

VI. Other Disclosure:

- (a) All parties shall provide the names and addresses of any witnesses to the ^{color} occurrence and notice witnesses (including plaintiff); accident reports; party statements; photographs ^{and video} taken in the ordinary course of business, and/or to be presented at trial, within 90 days. ^{deprecating the incident and/or plaintiff's injuries}
- (b) All parties shall supply expert witness disclosure pursuant to the CPLR.
- (c) The City of New York and/or other defendants represented by Corporation Counsel, if any, shall provide the following information to all parties within 90 days after the date of this order, subject to the date and location specified in the notice of claim (check if applicable):

1. Premises Liability Cases:

- i. Departmental accident/incident report from respective City agency;
- ii. For non-transitory conditions, maintenance and repair records and written complaints regarding the condition complained of for _____ year(s) prior to and including the date of occurrence.
- iii. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

4. Cases involving allegations of defective traffic signals (DOT):

- i. Maintenance and repair records for 30 days prior to and including date of occurrence;
 - ii. Complaints made for 30 days prior to and including date of occurrence;
 - iii. The name and address of the contractor responsible for maintenance of the traffic signals on date of the occurrence.
 - iv. A copy of the title and signature pages, and insurance declaration sheets and/or certificates, for all contracts in effect for two years prior to and including the date of the occurrence shall be supplied by the City within _____ days.
 - v. Contracts and all related contract documents for 2 years prior to and including the date of occurrence will be made available for inspection at either the Office of the Corporation Counsel located at _____, _____, New York, or the appropriate City agency, upon a mutually convenient appointment, pursuant to CPLR 3120(a)(1)(i).
- _____

5. Cases involving allegations of defective traffic signs (DOT):

- i. Maintenance and repair records for 6 months prior to and including the date of occurrence;
 - ii. Complaints for 6 months prior to and including the date of the occurrence.
- _____

X 6. Cases involving allegations of police misconduct:

The City will provide the following within 90 days after receipt from plaintiff, of an authorization:

- i. Complaint Report;
 - ii. Complaint Follow Up Report(s);
 - iii. Arrest Report;
 - iv. Memo Book entries for incident in question;
 - v. On-line Booking Sheet.
 - vi. Copies of the applicable section(s) of the Patrol Guide relating to
- _____

shall be made available by the City for inspection and copying within 90 days.
vii. 911 tape if it exists and sprint printout.

viii Other documents:

___ 7. Inmate assault cases (Department of Correction (DOC):

- i. Department of Correction incident report, subject to redaction of privileged information including any information regarding criminal acts of other inmates and/or personal information regarding DOC employees;
- ii. Injury to inmate report (within 90 days after receipt of an authorization from plaintiff).

Other Documents:

___ 8. Motor vehicle accidents involving City-owned vehicles:

- i. Departmental Accident Report from respective City agency.
- ii. Maintenance and repair records for the department vehicle involved for 1 year prior to and including the date of the occurrence, if a vehicular defect is alleged in either the departmental accident report or the MV-104.
- iii. If checked ☐, photos and /or repair records of damage to all vehicles shall be exchanged by all parties within _____ days

___ 9. Board of Education Cases:

- i. Board of Education Comprehensive Accident Report for the occurrence, subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31.
- ii. Witness statements subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31.
- iii. For non-transitory conditions, maintenance and repair records, written complaints and to the extent applicable, related contracts for the situs of plaintiff's accident, regarding the condition complained of for 1 year prior to and including the date of occurrence.

iv. For transitory conditions, ~~maintenance~~ and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

- (d) Surveillance videos to be provided in accordance with CPLR 3101(i)
- (e) Any party who wishes to obtain prior notices of claim, pursuant to GML§ 50-g, may do so by contacting LEE McNEIL (212) 669-4329 to set up an appointment to search the index maintained at 1 Centre Street, New York, New York.
- (f) Any party who wishes to obtain a MV-104, be advised that the New York City Police Department no longer maintains MV-104s beyond 30 days for accidents occurring after April 15, 1995.
- (g) All searches shall be conducted based upon the date and location as described in the notice of claim.

ALL PARTIES ARE REQUIRED PRIOR TO THIS CONFERENCE TO REVIEW ALL OUTSTANDING DISCOVERY DEMANDS SERVED UPON ANOTHER PARTY. IT IS THE INTENT OF THIS PRELIMINARY CONFERENCE TO RULE UPON ALL OF THESE OPEN DISCOVERY DEMANDS. PURSUANT TO UNIFORM RULES SECTION 202.12 (C) & (D), THIS ORDER REPRESENTS THE COURT'S RULING UPON ANY OUTSTANDING DISCOVERY DEMANDS PREVIOUSLY SERVED UPON A PARTY OTHER THAN THOSE ITEMS SPECIFICALLY EXCEPTED. THIS ORDER DOES NOT PRECLUDE ANY PARTY FROM SERVING POST-CONFERENCE DISCOVERY DEMANDS OR MAKING ANY MOTION PURSUANT TO THE CPLR.

VII. Co-defendant(s) and/or third-party(ies) to provide the following to all parties:

VIII. Third-party actions/Impleader

- 1. None
- 2. Already Commenced
- (3) Shall be completed within 90 days after completion of all depositions.

IX. Compliance Conference:

A party seeking compliance with this order should contact the court to schedule a compliance conference prior to the service of a discovery motion.

X. Note of Issue Date:

A note of issue may be filed in accordance with the rules of the Supreme Court, Kings County.

XI. Stipulations of Discontinuance:

Plaintiff(s) shall ensure that a stipulation of discontinuance shall be promptly filed if the case settles before the next meeting with the court.

XII. Additional Directives:

[The following section contains several horizontal lines, each crossed out with a diagonal line, indicating no additional directives.]

Failure to comply with any of these directives may result in the imposition of costs or sanctions or other action authorized by law.

This constitutes the decision and order of the court.

Dated: 05/23/16

[Signature]
J.S.C.
HON. MARTIN SCHNEIER, JHO

Appearances/Copy of this order received on the date hereof.

From: S. AZUCENA FILAS
by: *[Signature]*
Attorney / telephone for Plaintiff(s)

From: _____
by: _____
Attorney / telephone for Plaintiff(s)

From: Corp. Counsel
by: *[Signature]*
Attorney / telephone for Defendant
City of New York

From: _____
by: _____
Attorney / telephone for Defendant

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

00:14:44 02 MAY 26 2016
FILED
KINGS COUNTY CLERK

16

MB

DISYNG LITIGATION SUPPORT

NOV 22 2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
LINSEY JOHNSON,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYC POLICE
DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG,Defendants.
----- X**DEFENDANTS' RESPONSE
TO THE PRELIMINARY
CONFERENCE ORDER**

Index No.: 12865/2015

Law Dept. No.: 2015-048170

PLEASE TAKE NOTICE that Defendant THE CITY OF NEW YORK responds to the Preliminary Conference Order dated May 23, 2016, upon information and belief and upon records filed in the Office of the Corporation Counsel, as follows:

- 1) Insurance Coverage: The City of New York is self-insured.
- 2) Bill of Particulars: To be provided within 60 days of receipt of plaintiff's demand for such.
- 3) Other Disclosures:
 - a) Witnesses:
 - i) Plaintiff;
 - ii) PO Gelphin Gomez, NYPD Housing Bureau PSA 4, 130 Avenue C, New York, NY 10009
 - iii) PO Janise Aiken, NYPD 73rd Precinct, 1470 E New York Avenue, Brooklyn, NY 11212

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KINGS COUNTY CLERK
2016 NOV 22 PM 2:13

Defendant is not aware of any additional witnesses at this time except for those to be identified during pre-trial testimony or those indicated in documents exchanged by the parties.

The defendant reserves the right to call any individual identified by any of the parties or any individual indicated in an exchanged document.

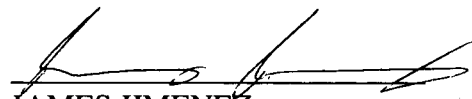
- b) *Opposing Party Statements*: Defendant is not aware of any opposing party statements other than those made during plaintiff's GML 50-h hearing or pre-trial testimony, or those indicated in documents exchanged by the parties.
- c) *Photographs*: Defendants state that they will continue to search for information responsive to this request, if any, and will supplement this response in the event such material is located.
- 4) Cases involving allegations of police misconduct:
 - a) Complaint report, to be provided within 90 days of receipt of an authorization for the release of plaintiff's criminal records as set forth in the PC Order;
 - b) Complaint follow-up report, to be provided within 90 days of receipt of an authorization for the release of plaintiff's criminal records as set forth in the PC Order;
 - c) Arrest report, to be provided within 90 days of receipt of an authorization for the release of plaintiff's criminal records as set forth in the PC Order;
 - d) Memo Book entries for incident in question, to be provided within 90 days of receipt of an authorization for the release of plaintiff's criminal records as set forth in the PC Order; and
 - e) On-line booking sheet, N/A.

The defendants reserve the right to supplement this response.

Dated: New York, New York
November 21, 2016

Yours,
ZACHARY W. CARTER
Corporation Counsel
Attorney for THE CITY OF NEW YORK

By:


JAMES JIMENEZ
Assistant Corporation Counsel
City of New York Law Department
100 Church Street, 2nd Floor
New York, NY 10007-2601
Tel: (212) 356-8754
Fax: (212) 356-4360

BY MAIL
To: SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard, Suite 301
Bayside, New York 11361
(718) 352-9760

AFFIRMATION OF SERVICE

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

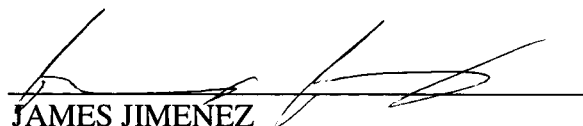
The undersigned, an attorney admitted to practice in the courts of New York State, shows that he is over 18 years of age and not a party to this action, he is employed in the office of the Corporation Counsel of the City of New York, and affirms this statement to be true under the penalties of perjury, pursuant to Rule 2106 of the CPLR:

That on the 21st day of November, he served the annexed **DEFENDANTS' RESPONSE TO THE PRELIMINARY CONFERENCE ORDER** upon:

SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard, Suite 301
Bayside, New York 11361

being the address within the State theretofore designated by them for that purpose, by depositing a copy of the same, enclosed in a prepaid wrapper in a post office box situated in the Borough of Manhattan, City of New York, regularly maintained by the Government of the United States.

Dated: New York, New York
November 21, 2016



JAMES JIMENEZ
Assistant Corporation Counsel

Index No. 12865/2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINSEY JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYC POLICE
DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG,

Defendants.

**DEFENDANTS' RESPONSE TO THE
PRELIMINARY CONFERENCE ORDER****ZACHARY W. CARTER***Corporation Counsel of the City of New York
Attorney for Defendants CITY OF NEW YORK,
100 Church Street
New York, New York 10007**Of Counsel: James Jimenez, Esq.
Tel: (212) 356-8754**Due and timely service is hereby admitted.**New York, N.Y. November 21, 2016**James Jimenez, Esq.**Attorney for the City of New York*

At an I.A.S. Trial Term, Part 20 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 6 day of December 2016

P R E S E N T :

Hon.

Jimenez-Salta

Justice

HON. MARTIN SCHNEIER, JHO

Linsey Johnson

Plaintiff(s)

Cal. No. 26

Index No. 12865/2015

- against -

The City of New York, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- 1) Plaintiff to provide response to PC Order within 60 days.
- 2) Plaintiff to provide authorization pursuant to CPL 160.50/160.55 for the release of sealed records pertaining to all arrests within 30 days.
- 3) Plaintiff's EBT to be held on 3/29/17. ~~at 10:00 AM~~
- 4) City EBTs to be held on 4/4/17

For Clerks use only

MG

MD

Motion Seq. #

5) Further CC: 4/25/17

6) NOI: 6/30/17

ENTER

J.S.C.
HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

2016 DEC 19 AM 8:14

SLED-J. Jimenez

At an I.A.S. Trial Term, Part ²⁰ of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 25 day of April 2017

P R E S E N T

Hon.

Levine by Schneier

Justice
HON. MARTIN SCHNEIER, JHO

Linsey Johnson

Plaintiff(s)

Cal. No. 29

Index No. 12865/2015

- against -

The City of New York, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1. Plaintiff ^{& defendant} to provide a response to the PC Order within 30 days.
2. Plaintiff's EBT to be held on September 6, 2017. ^{to extent not provided}
City EBT to be held on September 13, 2017.

3. Further CC: 10/24/17

4. NOI: 12/29/17

For Clerks use only

MG

MD

Motion Seq. #

EJV-rev 11-04

CSA
Sacco 3/5/18
TT

ENTER

HON. MARTIN SCHNEIER, JHO

2017 MAY -8 AM 8:41

KINGS COUNTY CLERK
FILED

SLED - J. Jimenez

At an I.A.S. Trial Term, Part²⁰ of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 24 day of October 2017

P R E S E N T

Hon.

Lerine by Schneier
 HON. MARTIN SCHNEIER, JHO

Linsay Johnson

Plaintiff(s)

- against -

The City of New York, et al
 Defendant(s)

Cal. No.

Index No.

38
~~12865/2015~~ 28

12865/2015

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1. Plaintiff's EBT to be held on 3/8/18.
 City EBT to be held on 3/15/18
trms, if any, pursuant to PC annex

For Clerks use only

MG

MD

Motion Seq. #

Further CC: 4/10/18
 NOI: 6/29/18

E N T E R

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

[Signature]
show & file
arrays for IT

[Signature]
 City

SLED-J. Jimenez

KINGS COUNTY CLERK
FILED

2018 APR 13 AM 9:40

At an I.A.S. Trial Term, Part 20 of the Supreme
Court of the State of New York, held in and for the
County of Kings, at the Courthouse, located at
Civic Center, Borough of Brooklyn, City and State
of New York, on the 10 day of April 2018

P R E S E N T :

Hon.

Levine MARTIN SCHNEIER
Justice

Linsey Johnson

Plaintiff(s)

Cal. No. 18

Index No. 12865/2015

- against -

The City of New York, et al Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1. Plaintiff's EBT to be held on 8/8/18. City EBT to be held
on 8/15/18.

For Clerks use only

MG

MD

Motion Seq. #

Further CC: 12/18/18

NOI: 2/22/19

E N T E R

J.S.C.

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

SLED. - J. J. S. menez

At an L.A.S. Trial Term, Part 20 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 18 day of December 2018

P R E S E N T :

Hon. ~~LESLIE~~ MARTIN SCHNEIER
Justice

Linsey Johnson

Plaintiff(s)

Cal. No. 22

Index No. 12865/15

- against -

City of New York, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1. City EBT to be held on: 3/6/19

2018 DEC 28 AM 9:35

FILED

For Clerks use only

MG

MD

Motion Seq. #

Further CCs: 7/2/19
NOI: 8/30/19

ENTER

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

RECEIVED NYSCEF: 01/19/2024
SLED HINES

At an I.A.S. Trial Term, Part of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 2 day of July 2019

P R E S E N T :

Hon.

~~LEONIE~~ MARTIN SCHNEIER
Justice

Linsey Johnson

Plaintiff(s)

Cal. No.

Index No.

34

012865/2015

- against -

City of New York, et al.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

2019 JUL 11 AM 11:05

KINGS COUNTY CLERK

Today's CC is resolved as follows:

① City EBT to be held on 8/1/19 subject to PO's records

CC: 4/7/20
NOI: 6/5/20

For Clerks use only

MG

MD

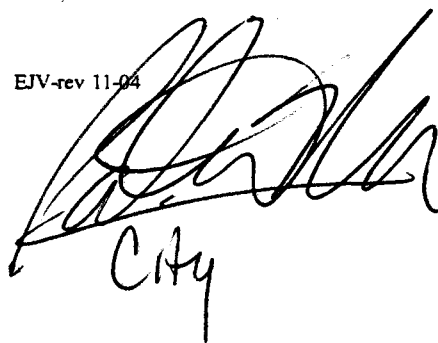
Motion Seq. #

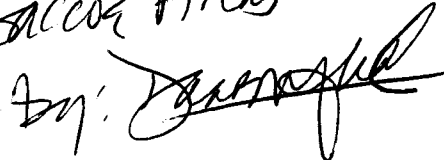
ENTER

J.S.C.

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04


City

SACCIA RILEY
By: 

PC Date: 9/16/2019
 Prior CC Dates: 2/8/16; 14/25/17; 10/24/17; 4/10/18; 12/18/18
 Current NOI Date: _____

At the City/TA Part of The Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse located at 360 Adams Street, Brooklyn New York on the 16 day of November 20 21.

PRESENT: HON. LAWRENCE KNIPEL JSC
 -----X

LINSEY JOHNSON,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, et al.

Defendant(s)
 -----X

TYPE OF CASE: Personal Injury - Police
 IAS PART:20

CAL. NO. _____

CITY/TA COMPLIANCE
 CONFERENCE ORDER

INDEX NO. 12865/2015

CITY TT #: 2015-048170

☐ ON DEFAULT
☒ ON CONSENT
☐ AFTER ORAL ARGUMENT

Plaintiff shall file a Note of Issue on or before 5/6/2022 or action may be dismissed.

Plaintiff must comply with the Uniform Rules of Kings County for placing action on the Trial Calendar.

Plaintiff to provide all outstanding authorizations on or before 1/3/2022.

All outstanding responses to Discovery and Inspection requests on or before 1/3/2022

Deposition of plaintiff(s): held 08/08/2018 to be held O/O/B: _____

Deposition of defendant(s): held 10/01/2019 & 12/10/2020 to be held O/O/B: _____

Independent Medical Examinations held _____ or to be noticed by _____

Exams to be completed by _____ and Reports to be exchanged by _____

1) Defendant's to respond to Plaintiff's Notice for Discovery and Inspection, dated October 17, 2019 within 45 days of this order.

2) Defendant to respond to Plaintiff's Post-EBT demands dated April 20, 2020, within 45 days of this order.

3) Defendants to respond to Plaintiff's Post-EBT demands dated July 14, 2021 in which Defendants agree to provide all similar and substantiated CCRB and IAB records for P.O. Gomez for a period of five years prior to and including the date of the incident, subsequent to execution of a disciplinary stipulation.

4) Deposition of P.O. Aiken to be conducted on 2/14/22. Subject to RDO.

Unjustified failure of any party to comply with the terms of this Order will result in sanctions.

use 2nd page as needed

ENTER:

HON. LAWRENCE KNIPEL
 SUPREME COURT JUSTICE

ATTORNEY FIRM	PRINT FIRM NAME	PRINT ATTORNEY NAME	
Sacco & Fillas, LLP		by Albert R. Matuza, Jr.	FOR PLAINTIFF(S) Johnson
Corporation Counsel		by Filloreta Islami	FOR DEFENDANT(S) City of New York
		by _____	FOR DEFENDANT(S)
		by _____	FOR DEFENDANT(S)

NOT E-FILED

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO. 12865/15

LINSEY JOHNSON

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG

Defendant(s).

NOTICE OF MOTION
TO RESTORE TO
CALENDAR2023 MAY 18 AM 10:17
FILED
KINGS COUNTY CLERK**COUNSELORS:**

PLEASE TAKE NOTICE, that upon the annexed affirmation of Richard E. Schirmer, Esq. dated the 16th day of May, 2023, and upon all the pleadings and proceedings heretofore had herein, the undersigned will move this Court at the Centralized Compliance Part at the courthouse of the Supreme Court, Kings County located at 360 Adams Street, Brooklyn, New York, on the **20th day of June, 2023 at 10:00 A.M.** in the forenoon of that day or as soon thereafter as counsel can be heard:

For an order: (1) restoring this action back to active status; (2) scheduling a compliance conference and a new Note of Issue filing deadline and (3) for such other and further relief as to this Court deems just and proper.

The above-entitled action is for personal injuries. This action is not on the trial calendar.

An affirmation that a good faith effort has been made to resolve the issues raised in this motion is annexed hereto.

TAKE FURTHER NOTICE that, pursuant to Section 2214(b) of the Civil Practice Law and Rules, all answering papers, if any, shall be served at least seven (7) days before the return date of this motion.

PC Date: 5/22/2016
 Prior CC Dates: 07/02/2019
 Current NOI Date: _____

At the City/TA Discovery Part of The Supreme Court of the
 State of New York, held in and for the County of Kings, at the
 Courthouse located at 360 Adams Street, Brooklyn New York
 on the 31 day of July 20 23

PRESENT: Hon. Leon Ruchelsman
 HON. Hon. Lawrence S. Knipe

CAL. NO. _____

-----X
 LINDSEY JOHNSON

CITY/TA MOTION ORDER

INDEX NO. 12865/2015

Plaintiff(s),

-against-

☐ ON DEFAULT
☒ ON CONSENT
☐ AFTER ORAL ARGUMENT

THE CITY OF NEW YORK, ET AL

Defendant(s)

-----X
 The following papers number 1 to _____ read on this motion

Papers Numbered _____

Notion of Motion-Order to Show Cause _____

And Affidavits (Affirmations) Annexed _____

Answering Affidavits (Affirmation) _____

Reply Affidavit (Affirmation) _____

Affidavit (Affirmation) _____

Pleading-Exhibits _____

Stipulations-Minutes _____

Filed Papers _____

IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned attorneys for the respective parties hereto that the above captioned case be restored to active status and placed on the Court's Compliance Calendar at a date convenient to the Court.

IT IS FURTHER STIPULATED AND AGREED that the City will respond to Plaintiff's Post-EBT demands dated December 28, 2022, within 45 days of this order. And that, Plaintiff reserves the right to demand additional EBTs. Defendants reserve the right to object to Plaintiff's demand for additional EBTs

IT IS FURTHER STIPULATED AND AGREED that Plaintiff will provide a \$160.50 authorization to Defendants within 30 days of this order. And, that Defendants will designate a physician for an IME within 60 days of this order with the exam to be held within 45 days of designation and reports to be exchanged within 30 days of receipt. NOT TO BE FILED ON OR BEFORE 31/1/2024

IT IS FURTHER STIPULATED AND AGREED that this stipulation may be signed in counterparts and a copy or facsimile of a signature shall be effective as if it were an original. This stipulation may be filed without further notice with the Clerk of the Court.

Unjustified failure of any party to comply with the terms of this Order will result in sanctions.

For Clerk's Use Only	
MG _____	Retracted: _____
MD _____	☐ Standard
Motion Seq.# <u>1</u>	☐ Complex

ENTER: _____

J.S.C.

Hon. Leon Ruchelsman

PRINT FIRM NAME

PRINT ATTORNEY NAME

ATTORNEY FIRM SACCO & FILLAS, LLP

by RICHARD SCHIRMER, ESQ

FOR PLAINTIFF(S)

ATTORNEY FIRM CORPORATION COUNSEL

by FRANCESCA ANUMONWO, ESQ

FOR DEFENDANT(S)

ATTORNEY FIRM _____

by _____

FOR DEFENDANT(S)

ATTORNEY FIRM _____

by _____

FOR DEFENDANT(S)

CDP Motion 30-2020

2023 AUG 21 10:02

KINGS COUNTY CLERK
 FILED

CDMP 20
8-2-23

NOT E-FILED

INDEX NO. 12865/15

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINSEY JOHNSON

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG

Defendant(s).

NOTICE OF MOTION
TO RESTORE TO
CALENDAR

RES - (D)

COUNSELORS:

PLEASE TAKE NOTICE, that upon the annexed affirmation of Richard E. Schirmer, Esq. dated the 16th day of May, 2023, and upon all the pleadings and proceedings heretofore had herein, the undersigned will move this Court at the Centralized Compliance Part at the courthouse of the Supreme Court, Kings County located at 360 Adams Street, Brooklyn, New York, on the 20th day of June, 2023 at 10:00 A.M. in the forenoon of that day or as soon thereafter as counsel can be heard.

For an order: (1) restoring this action back to active status; (2) scheduling a compliance conference and a new Note of Issue filing deadline and (3) for such other and further relief as to this Court deems just and proper.

The above-entitled action is for personal injuries. This action is not on the trial calendar.

An affirmation that a good faith effort has been made to resolve the issues raised in this motion is annexed hereto.

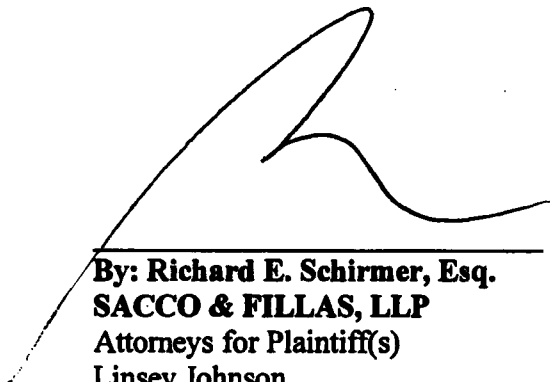
TAKE FURTHER NOTICE that, pursuant to Section 2214(b) of the Civil Practice Law and Rules, all answering papers, if any, shall be served at least seven (7) days before the return date of this motion.

KINGS COUNTY CLERK
FEE PD \$ 45.00MOTION SUPPORT OFFICE
MAY 18 '23 AM 10:35KINGS COUNTY
SUPREME COURT
MOTION SUPPORT
APPROVED
DATE 5/18/23

2023 AUG 21 AM 10:02

KINGS COUNTY CLERK
FILED

Dated: Bayside, New York
May 16, 2023



By: **Richard E. Schirmer, Esq.**
SACCO & FILLAS, LLP
Attorneys for Plaintiff(s)
Linsey Johnson
42-40 Bell Boulevard
Suite 300
Bayside, New York 11361
Ph: (718) 352-9760
Our File # 14845-15

TO:
Corporation Counsel
Attorney for Defendant(s)
New York Police Department
100 Church Street
4th Floor
New York, NY 10007
(718) 724-5200

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

LINSEY JOHNSON

INDEX NO. 12865/15

Plaintiff(s),

-against-

**AFFIRMATION OF
GOOD FAITH**

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG

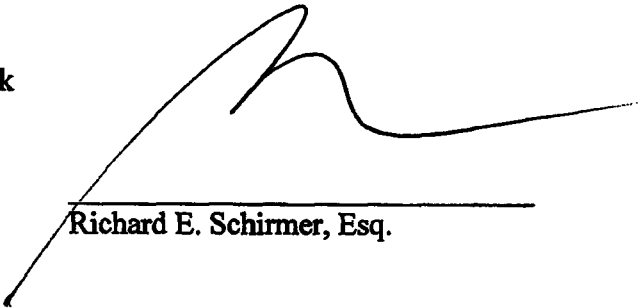
Defendant(s).

Richard E. Schirmer, Esq. an attorney admitted to practice in the State of New York, affirms
the following under the penalties of perjury:

1. I am an attorney with the law offices of SACCO & FILLAS, LLP, attorneys for the Plaintiff herein and as such I am fully familiar with the facts and circumstances of this action.
2. I submit this Affirmation of Good Faith in support of the Plaintiff's discovery motion.
3. Despite multiple attempts by the office of your undersigned on April 03, 2023, April 11, 2023, and April 18, 2023 to have defense counsel sign a Stipulation Restoring this matter to active status and schedule remaining discovery, defendants have failed to respond and/or sign said stipulation.
4. Since defendants have not signed the stipulation restoring the instant matter, judicial intervention is necessary.

WHEREFORE, it is respectfully requested that this motion be granted in its entirety, and that such other and further relief be granted as to this Court deems just and proper, including the costs of this motion.

Dated: Queens, New York
May 16, 2023



Richard E. Schirmer, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

LINSEY JOHNSON

INDEX NO. 12865/15

Plaintiff(s),

AFFIRMATION IN
SUPPORT

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG

Defendant(s).

Richard E. Schirmer, Esq., an attorney admitted to practice in the State of New York, affirms
the following under the penalties of perjury:

1. I am an attorney with SACCO & FILLAS, LLP, attorneys for the Plaintiff herein and as such I am fully familiar with the facts and circumstances of this matter based on personal knowledge and a thorough review of the file maintained by the office.
2. This affirmation is submitted in support of the within motion which seeks an Order: (1) restoring this action back to active status; (2) scheduling a discovery compliance conference and a new deadline to file the Note of Issue; and (3) for such other and further relief as to this Court deems just and proper.
3. This is an action to recover damages for serious personal injuries sustained by the Plaintiff as a result of his false arrest and wrongful detainment from January 31, 2015, to February 1, 2015.
4. Plaintiff filed a Notice of Claim with the Defendants on or about February 26, 2015.

Annexed hereto as Exhibit "A" is a copy of the aforesaid Notice of Claim. This action was

commenced on or about October 27, 2015. Annexed hereto as **Exhibit "B"** is a copy of the aforesaid Summons and Complaint.

5. Defendants joined this action by interposing Answers, dated on or about November 10, 2015. A copy of said Answers are annexed hereto as **Exhibit "C"**.
6. A Preliminary Conference order was issued on May 23, 2016, copy of which is annexed hereto as **Exhibit "D"**, where all parties agreed to deposition dates and to respond to outstanding discovery.
7. On December 6, 2016, the parties entered into a Compliance Conference Order, a copy of which is annexed hereto as **Exhibit "E"**, where all parties agreed to deposition dates and to respond to outstanding discovery.
8. On April 25, 2017, the parties entered into a Compliance Conference Order, a copy of which is annexed hereto as **Exhibit "F"**, where all parties agreed to deposition dates and to respond to outstanding discovery.
9. On April 10, 2018, the parties entered into a Compliance Conference Order, a copy of which is annexed hereto as **Exhibit "G"**, where all parties agreed to deposition dates. On December 18, 2018, the parties entered into a Compliance Conference Order, a copy of which is annexed hereto as **Exhibit "H"**, where all parties agreed to the Defendants' deposition date.
10. On July 2, 2019, the parties entered into a Compliance Conference Order, a copy of which is annexed hereto as **Exhibit "I"**, where all parties agreed to the Defendants' deposition date.
11. The Plaintiff was deposed on August 8, 2018. Defendant Young, was deposed on October 1, 2019. Defendant, Gomez, was deposed on December 12, 2020. Plaintiff subpoenaed P.O. Janise Aiken to appear for a deposition and the deposition was scheduled for December 9, 2019 and adjourned until after Officer Gomez's deposition. Subsequently, throughout 2022 we

attempted to get Officer Aiken's testimony on at least 4 occasions, but were unable to due to the officer's schedule and availability. Annexed, hereto, as **Exhibit "J"** is a copy of Plaintiff's deposition transcript.

12. On November 29, 2021, the parties entered into a Compliance Conference Order, where the remaining discovery was set forth and a deadline of May 6, 2022 for the filing of the Note of Issue.

13. During that time, the note of issue was to be filed by May 06, 2022, but unfortunately could not filed due to the outstanding discovery.

14. The New York State Unified Court System shows that this case was marked disposed on May 20, 2022. A copy of the printout from the New York State Unified Court System is annexed hereto as **Exhibit "K"**.

15. Finally, on December 14, 2022, the deposition of the Defendant, Police Officer Janise Aiken, was held.

16. Following the deposition, this office demanded Post Deposition Discovery that, to date, has not been responded to. Annexed, hereto, as **Exhibit "L"** is a copy of the Plaintiff's post deposition demands. In addition, earlier post deposition demands also remain outstanding.

17. On April 03, 2023, April 11, 2023, and April 18, 2023, John Christoulakis, a paralegal with the office of your undersigned, emailed a Stipulation to Restore to defense counsel to execute and return. Annexed hereto as **Exhibit "M"** is a copy of the partially signed stipulation along with emails.

18. Therefore, your affirmant request that this Court restore this matter to active status, schedule a compliance conference and a new deadline in which to file the Note of Issue. The conference is necessary so we can resolve any outstanding discovery issues.

19. It has never been the intention of this office or plaintiff to abandon this action and in fact, over the last year, both plaintiff and defense counsel have been active in attempting to complete all discovery. Restoring this case to the active calendar would reinforce the purpose of CPLR § 3404. See, Comments to CPLR § 3404: “The policy reasons behind CPLR § 3404 is (sic) not to deny a litigant his rightful day in court, but rather to clear from the court’s docket those cases that the plaintiff has in fact lost interest in pursuing. Thus, all evidence probative of “activity” and plaintiff’s intentions to pursue a case militate in favor of restoration so long as they are timely pursued.”
20. In Golan v. Long Island Jewish Medical Center, 7 A.D.3d 489, 776 N.Y.S.2d 85 (2d Dept. 2004), the Appellate Division, Second Department held that a plaintiff’s motion to restore to “active status” should be granted when there is no order issuing a dismissal of a complaint or a 90-day notice served upon the plaintiff permitting dismissal pursuant to CPLR § 3216.
21. Moreover, in Casavecchia v. Mizrahi, 62 A.D.3d 741, 877 N.Y.S.2d 906 (2d Dept. 2009), the Second Department held that the Supreme Court properly granted the plaintiff’s motion to “restore” their action to the active status after it had been marked “disposed,” given that CPLR § 3404 does not apply to the pre-note of issue action. (see Lopez v. Imperial Delivery Serv., 282 A.D.2d 190, 725 N.Y.S.2d 57 (2d Dept. 2001)).
22. Here, there have been no orders dismissing plaintiff’s complaint nor was there a 90-day notice served upon the plaintiff permitting dismissal prior to this Court dismissing the case pursuant to CPLR § 3216. Golan v. Long Island Jewish Medical Center, 7 A.D.3d 489, 776 N.Y.S.2d 85 (2d Dept. 2004).
23. To do anything other than restore the case to active status and schedule a conference would be to deny plaintiff’s day in court. There exists in New York a legislative and judicial preference

that matters be decided on their merits, that substance take priority over form. Robles v. Grace Episcopal Church, 192 A.D.2d 515, 595 N.Y.S.2d 824 (2d Dept. 1993). To dispose of this matter without allowing this case to be back on the active calendar would work a grave injustice to the plaintiff.

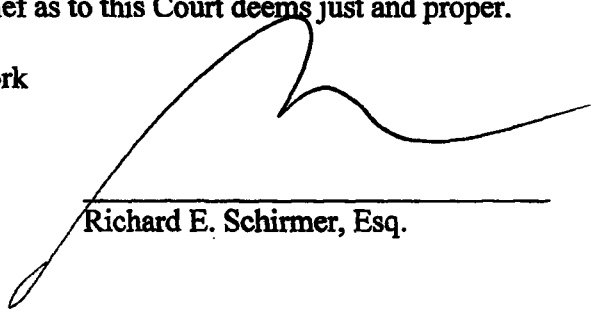
24. The public policy of this state favors resolving cases on the merits. Robles v. Grace Episcopal Church, 192 A.D.2d 515, 595 N.Y.S.2d 824 (2d Dept. 1993). Plaintiff's deposition testimony clearly and unequivocally establishes he has a meritorious cause of action resulting in severe debilitating injuries, both physical and psychological. Annexed hereto is plaintiff's affidavit of merit annexed hereto as **Exhibit 'N'**. See also the deposition testimony from August 08, 2018 annexed hereto as **Exhibit "J"**.

25. Based on the foregoing, the Court should restore this matter to pre-Note of Issue active status and schedule a compliance conference. As defense counsel has been an active participant in the matter over the last year as we attempted to complete discovery, there is no prejudice to defendants.

26. No prior application for the relief sought herein has been made.

WHEREFORE, Plaintiff respectfully requests that the within motion be granted in its entirety, restoring this case to active status and extending the time to file the Note of Issue and for such other and further relief as to this Court deems just and proper.

Dated: Queens, New York
May 16, 2023



Richard E. Schirmer, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.: 12865/15

**AFFIRMATION OF MAIL
SERVICE**

LINSEY JOHNSON

Plaintiff(s),

-against-

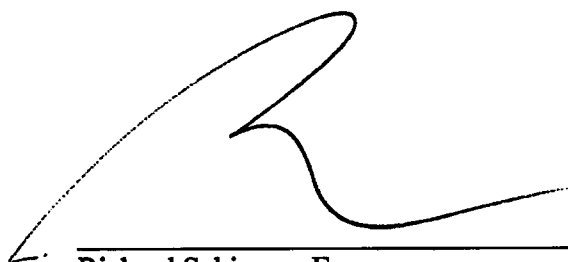
THE CITY OF NEW YORK, NYC POLICE
DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG

Defendant(s).

STATE OF NEW YORK
COUNTY OF QUEENS

I, Richard Schirmer, Esq., affirms that on Thursday, May 18, 2023 I served the within **NOTICE OF MOTION TO RESTORE TO CALENDAR, SUPPORTING AFFIRMATION, SUPPORTING AFFIDAVIT AND SUPPORTING EXHIBITS** by depositing a true copy thereof, enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the United States Postal Service within New York State, addressed to the following at the last known address set forth below:

Corporation Counsel
Attorney for Defendant(s)
New York Police Department
100 Church Street
4th Floor
New York, NY 10007
(718) 724-5200



Richard Schirmer, Esq.

AFFIRMATION OF SERVICE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 12865/2015

LINSEY JOHNSON

Plaintiff(s),

-against-

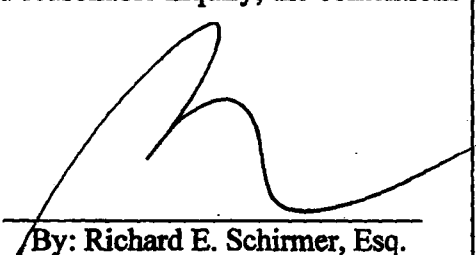
THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG

Defendant(s).

**NOTICE OF MOTION TO RESTORE TO CALENDAR, SUPPORTING AFFIRMATION,
SUPPORTING AFFIDAVIT AND SUPPORTING EXHIBITS**

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Bayside, New York
May 16, 2023

Signature: 

By: Richard E. Schirmer, Esq.

SACCO & FILLAS, LLP
Attorneys for Plaintiff(s)
Linsey Johnson
42-40 Bell Boulevard
Suite 300
Bayside, New York 11361
(718) 352-9760
Our File # 14845-15

CERTIFICATE OF COMPLIANCE

I hereby certify pursuant to Rule 202.8-b of the Uniform Civil Rules of this Court that the foregoing brief was prepared on a computer.

Type. A proportionally spaced typeface was used as follows:

Name of typeface: Times New Roman

Point size: 12

Word Count. The total number of words in the affirmation in support is 2,323.

Dated: Bayside, New York

May 16, 2023

Signature: _____

Richard E. Schirmer, Esq.

FILED: KINGS COUNTY CLERK 10/27/2015

NYSCEF DOC. NO. 1

INDEX NO. 12865/2015

RECEIVED NYSCEF: 01/19/2024

EXHIBIT A

OFFICE OF THE COMPTROLLER CITY OF NEW YORK

CLAIMANT INFORMATION

NOTICE OF CLAIM

CLAIMANT'S NAME: Mr. Linsey S. Johnson TEL. #: (847) 475-0629STREET ADDRESS: 8401 Main St. #226CITY: Queens STATE: NY ZIP: 11435SOC. SEC. # OR TAX I.D. #: 115-66-4836

CLAIM INFORMATION

CITY AGENCY INVOLVED: New York City Police Dept. (City of N.Y.) (73rd pct)

NATURE OF CLAIM: (ATTACH ADDITIONAL SHEET(S) OF PAPER, IF NECESSARY)

Unlawful ~~and~~ false arrest and false imprisonment on Jan 31, 2015 based upon the tortfeasance actions of first Officer Gomez and then Officer Young both of the 73rd pct in Brooklyn, NY.Please see attached documents - A, B, C, D, E, F, G and HTOTAL AMOUNT CLAIMED: \$ 50,000-

IF MORE THAN ONE ITEM IS INCLUDED IN THE TOTAL AMOUNT CLAIMED, SUPPLY BREAKDOWN OF AMOUNTS AND SPECIFY ITEMS: (ATTACH ADDITIONAL SHEET(S), IF NEEDED)

ITEM	AMOUNT
1. <u>Pair of boots</u>	<u>\$ 75-</u>
2. <u>1 day of work</u>	<u>\$ 250-</u>
3. <u>Physical damage</u>	<u>\$ 10,000-</u>
4. <u>Emotional stress</u>	<u>\$ 19,675-</u>
5. <u>Humiliation and damage to reputation</u>	<u>\$ 20,000-</u>

PLEASE ATTACH COPIES OF SUPPORTING DOCUMENTATION, PREVIOUS CORRESPONDENCE, INVOICES, ETC.

CLAIMANT'S SIGNATURE: Linsey S. Johnson

SS: STATE OF N.Y.

CITY OF N.Y. SUBSCRIBED AND SWORN TO BEFORE ME THIS 21 DAY OFFEBRUARY 20 15Frank M. Dix
NOTARYTO: OFFICE OF THE COMPTROLLER
DIVISION OF LAW - RM.1225 South
1 CENTRE STREET
NEW YORK, N.Y. 10007
TELEPHONE # (212) 669-4736FRANK M. DIX
Notary Public, State of New York
No. 01DM4541951
Qualified in Queens County
Commission Expires August 31, 2017

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p.20

February 21, 2015

Attention: Office of the Comptroller (Division of Law),

My name is Linsey S. Johnson I am a 46 years old African-American male and the youngest of seven children born to Janise (NYCDOE) and Linsey Johnson (MTA) who both retired as proud workers for the city of New York many years ago. I am the first person in my family to have attended and graduated college with a master's degree. I, like my parents chose to work for the city of New York. For the last 23 years I have worked as a teacher and a Lead Dean for the NYCDOE. My duties include providing a safe environment for over 800 students and enforcing the rules and regulations put forth by the chancellor of the NYC public schools. Until Jan. 31 of this year I have never been arrested or come even close to being in trouble with the law.

On the night of January 31, 2015 around 9:15pm, I was driving home to Queens from Brooklyn. As I was driving on Fulton Street I noticed a police car in my rear view mirror about two cars behind me. The police car appeared to be just another car in traffic. However, a short time later after I made a turn on Eastern parkway, the police car came up behind me and flashed the lights signaling for me to pull over. I immediately pulled over and waited for the officer to come over (as has happened many times in the past). Officer Young of the 73rd pct asked me for my license and registration for which I provided to him. I then asked him what seems to be the problem. He responded, "you went through a yellow-red light at the intersection of Fulton and Rockaway." I stated respectfully to the officer that I disagreed. He told me to hold on and he would be right back. When he returned he asked if I lived at 123-33 83rd Ave.? I stated to him that that was my old address from a few years ago. He stated that there was a warrant out for my arrest. I was shocked and asked him what for. He stated it was a "DISCON". I asked him what does that mean and he stated it over. As two other officers shined lights in my car, I was asked to get out of the car and was then handcuffed and placed in the car. I told Officer Young that this had to be some mistake and that this should not be happening right now. Ironically, I was taken to the 73rd pct, in Brownsville, Brooklyn which is the same that over my years as a dean and teacher I worked with officers there in regards to the programs offered to the community and gang relations. The humiliation of being there in handcuffs, finger printed, photographed, stripped of my belt, coat, shoelaces and personal property was extremely hurtful and humiliating to say the least.

At some point in the night (still not clear on why I was arrested) I was chained to two other prisoners and put in a van with no heat on one of the coldest nights of the year then taken to a prison located in down town Brooklyn. The two other prisoners begged the officers for to turn on the heat in the van that had all metal seats, but they did not respond. Once at the new facility I was put through processing again. I had to have my eyes scanned by looking into a device that called for me to lean over and press my eye sockets against it. As I struggled to comply with the officers' request (I have strabismus in my

5164850437

p.22

in my humiliation, stress to my wife and child, injury to my hand from the cuffs, insect bites on my foot, a pair of boots (which smelled of urine and feces from the floor of the cells, so I had to throw them away) and severe damage to my reputation/emotional well-being as a whole. As a city employee I had to notify my boss and take off a day of work to go back to the Criminal Court to get the disposition. I then had to take more time off work to take the papers to the NYC DOE office in Brooklyn. Since the incident I continue to suffer from headaches I believe are due to stress. When I drive to and from work each day (through the same area of Brooklyn) I experience feelings of anxiety and fears that I will be stopped again and arrested on false charges. Ever since this incident has occurred I have trouble sleeping, get head aches and feel nausea when I drive through Brooklyn.

I am requesting your help in seeking justice and compensation to the tune of \$50,000 for myself and my family who continues to suffer needlessly because of the actions of the NYPD who continue to operate by filling quotas and racially profiling tax paying citizens of this great state of New York.

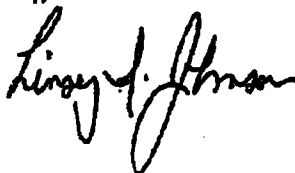
Submitted Respectfully,

Linsey S. Johnson

347-475-0629

347-822-4697

shollinjay@aol.com



COUNTY OF KINGS

5164850437

p.23

THE PEOPLE OF THE STATE OF NEW YORK
VS.

NUMBER 61073

JOHNSON, LINSEY S

NO FEE

Defendant

12/05/1968

DATE OF BIRTH

12333 83RD AVE 1907

ADDRESS

KEW GARDENS NY 11416-3449

05/20/2008

CITY STATE ZIP

ISSUE DATE

DOCKET NUMBER: 2008SK095321

SUMMONS NUMBER: 4311703934

PL 240.20 07 0V

ARRAIGNMENT CHARGES

CASE DISPOSITION INFORMATION:

DATE	COURT ACTION
02/01/2015	DISM - LEGALLY INSUFFICIENT

JUDGE	PART
SILBER,D	KNAR-4

I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN THIS COURT.

COURT OFFICIAL SIGNATURE AND SEAL

02/02/2016

DATE

SEALED

pursuant to Section 160.50 of the CPL

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE
COURT SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)

5164850437

p.24

(A)

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF KINGSTHE PEOPLE OF THE STATE OF NEW YORK
VSCERTIFICATE OF DISPOSITION
NUMBER: 521790JOHNSON, LINSEY
Defendant12/05/1968
Date of Birth12333 83RD AVENUE
Address708054-H
NYSID NumberQUEENS NY
City State Zip01/31/2015
Date of Arrest/Issue

Docket Number: 2015KN005941

Summons No:

VTL 111.D1
Arraignment Charges

Case Disposition Information:

02/01/2015 DISMISSED FORTHWITH-CPL170.55Judge
SILBER, DPart
APAR4**SEALED**

pursuant to Section 160.50 of the CPL

IO FREE CERTIFICATION

☐ GOVERNMENT AGENCY ☒ COUNSEL ASSIGNED☐ NO RECORD OF ATTORNEY READILY AVAILABLE. DEFENDANT STATES COUNSEL WAS ASSIGNEDSOURCE ☐ ACCUSATORY INSTRUMENT ☐ DOCKET BOOK/CRIMS ☐ CRC3030 [CRS963]I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN
THIS COURT.WONG, P
COURT OFFICIAL SIGNATURE AND SEAL02/02/2015
DATE

FEE: NONE

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE COURT
SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)

5164850437

p.25

(C)

NYC Department of Education
OFFICE OF PERSONNEL INVESTIGATION
65 COURT STREET ROOM 200
BROOKLYN, NY 11201
FAX 718 935-4366/718 935-5778
Email: OPIINFO@schools.nyc.gov

5164860437

p.16

Nec 312-4(Pec: 06-08)

CENTRAL BOOKING

PRISONER'S PROPERTY FORM

PRISONER'S NAME _____ ARREST # _____ DATE _____ PCT. _____

FUNDS COUNTED AND RETURNED (Include total value of coins). \$ _____

THE BELOW LISTED ITEMS WERE REMOVED FROM PRISONER FOR RETURN TO PRISONER AT COURT OR ON
RELEASE ON D.A.T.

PROPERTY - DESCRIBE

☐ SHOE LACES ☐ HAIR PICK/ COMB ☐ PEN ☐ LIGHTER ☐ HANDBAG ☐ BELTS ☐ KEYS ☐ NAIL CLIPPER
☐ OTHER (DESCRIBE) _____

(Signature - Arresting Officer)

(Shield)

(Command)

(Signature - Prisoner)

(Member searching if other than A.O.)

(Reviewing Officer)

** NOTE: If no funds counted and returned, indicate "NONE". If no property removed and safeguarded, indicate "NONE".
Distribution - Original to C.B. - Duplicate to prisoner - Triplicate to Court Package

p.17

COMPLAINT/INFORMATION

Susp/Rev Check ☐ Yes No ☐
Motorist Exhibited License ☐ Yes No ☐

Last Name	First Name	M.I.
JOHNSON	LINSEY	S

Street Address 123-33 83 AV Apt. No. 1907

City	State	Zip Code
Kew Gardens	NY	11415

ID Number	Date of Birth	Sex
361 732 485	MO 12 DAY 05 YR 68	

Lic. State NY	Lic. Class or ID Type D	Date Expires MO 12 DAY 05 YR 11	Operator Owning Vehicle ☒ Yes ☐ No
------------------	----------------------------	------------------------------------	--

OPERATOR AND/OR OWNER OF VEHICLE BEARING LICENSE

OPERATOR AND/OR OWNER OF VEHICLE BEARING LICENSE									
Plate No.	STATE	NY	CT	PA	NJ	Other	Reg. Expires		
BAW 2224		X					MO 02	DAY 24	YR 10

FILE NO.	PAS	DMT	COM	DML	Other	DATE	CREW	FORD	HONDA	DOCG	OLDS	HUMEX	TOYT	NES	Other
	X							X							

SEDAN	SUVN	VAN	TRUCK	MCY	Other	Veh. Yr.	Veh. Color	Alternate Plate	State
			X			1983	BR		

VIN No.

THE PERSON DESCRIBED ABOVE IS CHARGED AS FOLLOWS:

AM	Time	PM	Date of Offense	County	Precinct
0	3:59	X	5/20/08	Hinds	013

Place of Occurrence C/O BUFFALO/PACIFIC

IN VIOLATION OF

Sec 240-2 Sub 7

NTL	Traff. Rules	Admin. Code	Penal Code	Other
			☒	

Description of Violation, if Not Shown Below. (If returnable to Criminal Court, indicate Court Location and Date of Appearance below and COMPLETE, DATE, AND SIGN INFORMATION ON REVERSE SIDE.)

DISCON

SPEEDING		DISOBEY TRAFF CONT DEV	Uninspec. Veh.	Unreg. Veh.	Unlo. Oper.
MPH	In MPH Zone	☐ Sign ☐ Signal	Pave Marks	☐	
			Uninsur. Veh.	Com. Veh.	Bus
					Haz. Mat.

The person described above is summoned to appear at CRIMINAL COURT		Summons Paid	County
--	--	--------------	--------

Located at 346 Broadway Room 509

Date of Appearance 2007 9:30 a.m. 25 day of JULY year 2007

I personally observed the commission of the offense charged above. False statements made herein are punishable as a Class A Misdemeanor pursuant to Section 210.45 of the Penal Law. Affirmed under penalty of perjury.

Rank/Full Signature of Defendant

P.O. <u>P.O. GOMEZ</u>	
Complainant's Full Name (printed) P.O. GOMEZ	Command Code 802

Agency/NCIC NYPD	Squad C-1	Tax Registry No. 944600
---------------------	--------------	----------------------------

I acknowledge receipt of this summons. I understand it is my responsibility to read and comply with the instructions on my copy, and that my signature below is not an admission of guilt.

Name _____ Date 5-20-08

5164850437

p.18

AA-500 (1/06)

CRIMINAL COURT INFORMATION (DESCRIBE OFFENSE)

AT T/P/O DEPT WAS OBSERVED CAUSING
A PUBLIC INCONVENIENCE, DELIBERATELY
CREATING A RISK THERE OF IN A PUBLIC
PLACE BY CREATING A HAZARDOUS
CONDITION TO PEDESTRIANS AND VEHICLE
BY NOT COMING TO A COMPLETE STOP
AT A STOP OR NO STOP SIGN.

WARRANT CHECK

☒ Yes☐ No

I PERSONALLY OBSERVED THE COMMISSION OF THE OFFENSE CHARGED HEREIN. FALSE STATEMENTS MADE HEREIN ARE PUNISHABLE AS A CLASS B MISDEMEANOR PURSUANT TO SECTION 210.45 OF THE PENAL LAW AFFIRMED UNDER PENALTY OF PERJURY.

Date

Signature

DEFENDANT DESCRIPTION

Eye Color _____ Hair Color _____ Ethnicity _____

HL _____ Wt. _____ Phone # _____

ARRAIGNMENT

Defendant pleads

☐ Guilty☐ Not Guilty

Date

Judge

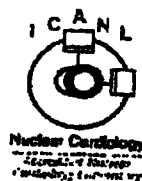
①

②



5164850437

p.15



Complete Care Cardiology
2001 Marcus Avenue Suite W285 Lake Success, NY 11042
Phone: (516) 775-0055 Fax: (516) 775-4647
www.completecarecardiology.com



Randy Klewe, M.D., F.A.C.C

Consultative Cardiology
Nuclear Cardiology

Patient ID: 01331

Patient Name: Linsey Johnson

Date of Birth: 12/05/1968

Date of Service: 04/18/2015 02:08 PM

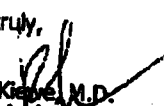
04/18/2015

To Whom It May Concern:

Linsey Johnson is under my care and was seen at the office today. He was also seen on 04/09/2015 for the same condition, persistent headaches.

Please call our office if you have any questions. Thank you.

Yours truly,


Randy Klewe, M.D.
Clinical Assistant Professor, Department of Cardiology
Hofstra University School of Medicine

Linsey Johnson

Patient #: 01331

DOB: 12/05/1968 (46 years)

Saturday, April 18, 2015

Page 1 / 1

5164850437

p.14

NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES ABSTRACT OF DRIVING RECORD

Page #2

Document # ALL0003

Total Fee Paid \$10.00

PRINT DATE: 12/16/2010 TIME: 16:30:43 OPERATOR: LBN OFFICE: SPG

JOHNSON, LINSEY, S

CLIENT ID# 16173785

DOB: 12/05/1968 SEX: M

123-33 83 AV 1907

HEIGHT: 5-8 EYE COLOR: BROWN

KEW GARDENS NY 11415

COUNTY: QUEEN

MI #: J15305 57070 187667-53

CONVICTION: IMPROPER TURN

VIOLATION: 04/28/2007

CONVICTED ON: 05/16/2007

LOCATION: KINGS COUNTY, BROOKLYN SOUTH ADMINISTRATIVE ADJ.

PENALTY: FINE- \$40

POINTS: 2

COMM VEH: NO

HAZMAT: NO

***** ACCIDENTS *****

ACCIDENT DATE: 03/13/2010 INJURY & PROP DAM COUNTY: QUEEN CASE #: 33-402867

MOTORIST REPORT FILED

***** END OF RECORD *****



This is to certify that this document is a true and complete copy of an electronic record on file in the New York State Department of Motor Vehicles, Albany, New York. This record was made in regular course of the New York State Department of Motor Vehicles daily business. It is the business of the New York State Department of Motor Vehicles to create and maintain the records of drivers in the state of New York. Entries in this document are made at the time the recorded transactions take place or within a reasonable time thereafter. The person who reports the information is under a business duty to do so accurately.

ASB-3 (03/07)

EXHIBIT B

1418029

14845

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed: 10/27/15

LINSEY JOHNSON,

Plaintiff,

INDEX NO. 12865/15

-against-

Plaintiff designates Kings
County as the place of trial.THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,

SUMMONS

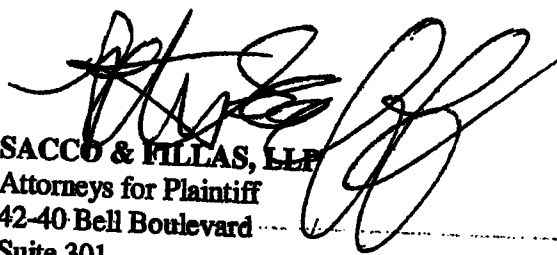
Defendants.

The basis of venue is
the County in which the
cause of action arose.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Bayside, New York
October 12, 2015

SACCO & FILLAS, LLP
 Attorneys for Plaintiff
 42-40 Bell Boulevard
 Suite 301
 Bayside, New York 11361
 (718) 352-9766

 2015 OCT 29 AM 10:14
 CITY OF N.Y. LAW DEPT.
 OFFICE OF CORP. COUNSEL
 COMMUNICATIONS UNIT

 THE CITY OF NEW YORK
 Comptroller's Office of the City of New York
 Manhattan Municipal Building, 1 Centre Street Room 1220
 New York, New York 10007

 NEW YORK POLICE DEPARTMENT
 1 Police Plaza
 New York, New York 10038

POLICE OFFICER GOMEZ
1470 E New York Ave
Brooklyn, New York 11212

POLICE OFFICER YOUNG
1470 E New York Avenue
Brooklyn, New York 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINSEY JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,

Defendants.

INDEX NO.

**SUMMONS AND
COMPLAINT**

Plaintiff, by his attorneys, SACCO & FILLAS, LLP, as and for his Complaint, respectfully
alleges, upon information and belief:

1. The plaintiff, LINSEY JOHNSON, at all times herein mentioned was and still is a resident of the County of Queens and the State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was an agency of THE CITY OF NEW YORK.
4. The defendant, POLICE OFFICER GOMEZ, worked at the 73rd Precinct, located at 1470 East New York in the County of Kings and State of New York.
5. At all times herein mentioned, POLICE OFFICER GOMEZ, was acting within the scope of his employment as a police officer for the NEW YORK CITY POLICE DEPARTMENT.
6. The defendant, POLICE OFFICER YOUNG, worked at the 73rd Precinct, located at 1470 East New York in the County of Kings and State of New York.
7. At all times herein mentioned, POLICE OFFICER GOMEZ, was acting within the scope of his employment as a police officer for the NEW YORK CITY POLICE

DEPARTMENT.

8. Prior to the commencement of this action, a notice of claim in writing was served on behalf of LINSEY JOHNSON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.
9. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of LINSEY JOHNSON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.
10. Within ninety days (90) of the January 31, 2015 herein, a notice of claim in writing was served on behalf of LINSEY JOHNSON, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.
11. Prior to the commencement of this action, notice of the intention of LINSEY JOHNSON to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of LINSEY JOHNSON upon THE CITY OF NEW YORK.
12. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.
13. A hearing pursuant to General Municipal Law 50-h has been held.
14. This action is commenced within one (1) year from January 31, 2015, the date of release for the wrongful arrest as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

15. On or about January 31, 2015, the plaintiff LINSEY JOHNSON was wrongfully arrested for criminal actions for an allegedly outstanding traffic ticket for an incident occurred in 2008. At all times herein mentioned, LINSEY JOHNSON was maliciously and without

probable reason or cause, inculpated in criminal actions in which he did not participate, by the CITY OF NEW YORK.

16. On or about January 31, 2015, the plaintiff LINSEY JOHNSON was wrongfully arrested for criminal actions under Kings County Docket Number 2008SK095321 for an allegedly outstanding traffic ticket for an incident occurred in 2008. At all times herein mentioned, LINSEY JOHNSON was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by the defendants.
17. At all times herein mentioned, the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG, maliciously instituted judicial proceedings without probable cause for doing so, which forced LINSEY JOHNSON to expend money and retain an attorney for the scheduled Court hearings.
18. The cause of action for malicious prosecution arose on January 31, 2015, with the dismissal of the criminal action against LINSEY JOHNSON in the County of Queens, City and State of New York.
19. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.
20. By reason of the malicious prosecution, LINSEY JOHNSON was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, and was required to spend large sums of money to defend himself against the prosecution in the Criminal Court of the City of New York, and in the proceeding before the State. Plaintiff

- suffered losses from his business and was degraded in the esteem of the community.
21. The defendant's conduct constituted malicious prosecution on the part of the defendant against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
22. This malicious prosecution was encouraged, aided, abetted, and incited voluntarily and willfully by the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG.
23. At all times herein mentioned, LINSEY JOHNSON, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG,.
24. At all times herein mentioned, the defendant THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG, maliciously instituted judicial proceedings without probable cause for doing so, which forced LINSEY JOHNSON to expend money and/or retain an attorney for the scheduled Court hearings.
25. The plaintiff, LINSEY JOHNSON, was confined at the 73rd precinct on January 31, 2015. Plaintiff was confined until February 1, 2015. Plaintiff was wrongfully imprisoned from January 31, 2015 until his release on February 1, 2015. Plaintiff at all times maintained his innocence. Regardless, the defendants maliciously imprisoned Plaintiff without probable cause for doing so.
26. The criminal proceeding was prosecuted with actual malice against the plaintiff, LINSEY JOHNSON.
27. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

28. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR
WRONGFUL ARREST AND IMPRISONMENT

29. Specifically, on January 31, 2015, LINSEY JOHNSON was wrongfully arrested
30. On January 31, 2015, LINSEY JOHNSON was wrongfully arrested under Kings County Docket Number 2008SK095321.
31. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to retain counsel and/or expend money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.
32. The defendants' conduct constituted malicious prosecution on the part of the defendants against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
33. At all times herein mentioned, LINSEY JOHNSON, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by defendants.
34. The criminal proceeding was prosecuted with actual malice against the plaintiff, LINSEY JOHNSON
35. By reason of the wrongful arrest, LINSEY JOHNSON, was deprived of his liberty and was

subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, fingerprinted, photographed, and was required to spend sums of money to defend himself against the prosecution in the Criminal Court of Queens County, and in the proceeding before the State. Plaintiff suffered losses and was degraded in the esteem of the community.

36. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
37. The defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG's conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of LINSEY JOHNSON as a result of the defendant's malicious prosecution.
38. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.
39. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ABUSE OF PROCESS

40. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
41. The defendants herein, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,

POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG wrongfully and maliciously and with intent to injure plaintiff, prosecuted a criminal action against the Plaintiff.

42. By reason of the foregoing abuse of process plaintiff was deprived of his liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering and was compelled to employ an attorney.
43. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.
44. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF,

LINSEY JOHNSON AGAINST THE DEFENDANTS

45. That the plaintiff, LINSEY JOHNSON, repeats, reiterates and realleges the above mentioned paragraphs of this Complaint inclusive with the same full force and effect as if more fully set forth herein at length.
46. That the aforesaid conduct on the part of the defendant constituted a violation of the plaintiff, LINSEY JOHNSON'S, civil rights under 42 USC 1983, in that the plaintiff was deprived of his rights, privileges and immunities secured to him by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.
47. That the aforesaid abuse of process on the plaintiff by the defendants, and the subsequent

false arrest and imprisonment of the plaintiff by the defendants, deprived the plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the plaintiff under the Fourth Amendment to the United States Constitution.

48. That as a result of the aforesaid occurrence, the plaintiff, LINSEY JOHNSON, was caused to and did sustain severe, serious and protracted injuries to his person and body

49. Due to defendants, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG's, negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

50. Plaintiff, Linsey Johnson repeats and realleges each and every allegation contained in paragraphs above of the Complaint as if fully set forth at length herein.

51. The defendants intentionally confined LINSEY JOHNSON and/or restricted LINSEY JOHNSON'S freedom of movement

52. LINSEY JOHNSON was conscious of said confinement and/or restriction.

53. LINSEY JOHNSON did not consent to said confinement and/or restriction.

54. The confinement and/or restriction was not otherwise privileged.

55. Due to defendant, THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG's false arrest and imprisonment of Linsey Johnson, plaintiff LINSEY JOHNSON is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiff demands judgment awarding damages:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: Bayside, New York
October 12, 2015

By: **Peter Graff**
SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 301
Bayside, New York 11361
(718) 352-9766

Our File No.: 14845-15b

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.

LINSEY JOHNSON,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG,**

Defendants.

SUMMONS and COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: October 12, 2015

**Signature: _____
Peter Graff**

**SACCO & FILLAS, LLP
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 301
Bayside, New York 11361
(718) 352-9766**

EXHIBIT C

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LINSEY JOHNSON,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NYC POLICE
DEPARTMENT, POLICE OFFICER GOMEZ AND
POLICE OFFICER YOUNG,

Defendant(s).
-----X

ANSWER

Index #: 012865/2015

Law Dept. #: 2015-048170

Your File #: 14845-15b

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NYC POLICE DEPARTMENT, by ZACHARY W. CARTER, Corporation Counsel, answering
the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 15-28, 30-39, 41-44, 46-49,
51, 54, 55, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to
the truth of the allegations set forth in paragraph(s) 1, 4-7, 52, 53, inclusive.
3. Deny the allegations set forth in paragraph(s) 8-14, inclusive, except that
a notice of a claim was presented, that more than thirty days have elapsed without adjustment
thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that
the City of New York is a municipal corporation which maintains a Police Department pursuant
to law.
5. Deny each allegation set forth in paragraph(s) 29, 40, 45, 50, inclusive,
except as otherwise pleaded herein.

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil

Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause based on legitimate information and/or circumstances that linked plaintiff and unlawful activity, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States, and were pursuant to policies which did not contribute to a disparate impact. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Such statements as were made concerning the plaintiff(s) were privileged

as being true, or fair comment upon matters of opinion, and were made in the good faith belief in their truth without malice to person(s) having a like duty or interest therein.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

ZACHARY W. CARTER
Corporation Counsel
100 Church Street
New York, New York 10007

Index #: 012865/2015

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

LINSEY JOHNSON,

Plaintiff(s),

- against -

**THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE
OFFICER GOMEZ AND POLICE OFFICER YOUNG,**

Defendant(s).

**COMBINED DEMAND FOR
BILL OF PARTICULARS & DISCOVERY**

ZACHARY W. CARTER

Corporation Counsel

**Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF NEW
YORK S/H/A NYC POLICE DEPARTMENT, 100 Church Street
New York, New York 10007**

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)

(212) 356-3144

Pleadings Unit (212) 356-3235 (pleadings matters only)

All Other Matters (Inquire by county of venue)

Bronx Office: (718) 503-5030 (EBT's - 5045)

Brooklyn Office: (718) 724-5200 (EBT's-5226)

Manhattan Office: (212) 356-2725 (EBT's-2791)

Queens Office: (718) 558-2100 (EBT's - 2105)

Staten Island Office: (718) 876-3600 (EBT's-3603)

Please refer to the following Law Dept. #: 2015-048170

**and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.**

FILED: KINGS COUNTY CLERK 10/27/2015

NYSCEF DOC. NO. 1

INDEX NO. 12865/2015

RECEIVED NYSCEF: 01/19/2024

EXHIBIT D

SLED - J. Jimenez
 Loc: Eastern Parkway
 DOI: 1/31/15
 Police Case

KINGS COUNTY

PRELIMINARY CONFERENCE ORDER

SUPREME COURT OF THE STATE OF NEW YORK
 KINGS COUNTY ~~NON. MARTIN SCHNEER, JR.~~

Linsey Johnson

Plaintiff(s),

- against -

Defendant(s).

The City of New York, et al.

Index No.: 012865/15

Prelim. Conf. Date: 5/23/16

Comp. Conf. Date: 12/06/16

Note of Issue Date: 01/13/17

Justice: Jimenez-Salta

IAS Part 20 #10

City File: IST 048170

(I)

Insurance Coverage:

- (a) Defendant City of New York and/or other defendants represented by Corporation Counsel, if any, is/are X self-insured. _____ covered by an insurance policy.
- (b) Defendant(s) _____, if not already provided, to furnish to all parties, including, evidence of excess coverage and Certificate of Insurance, within 30 days.

(II)

Bill of Particulars:

- (a) A verified bill of particulars shall be served by _____ within 60 days.
- (b) A supplemental bill of particulars shall be served by _____ as to item(s) _____, within 60 days.

- (c) Defendant the City of NY to provide a verified bill of particulars as to affirmative defenses within 60 days. = of receiving Plaintiff's demand

(III)

Medical Reports and Authorizations. HIPAA and Arons compliant

- (a) Plaintiff(s) shall provide authorizations to obtain copies of the actual records of all treating and examining health care providers, including diagnostic tests, x-rays, MRIs, EMGs, CT Scans, for injuries specified in the bill of particulars, within 90 days.
- (b) Plaintiff(s) shall provide an authorization for collateral source information, if any, within 90 days.

including prior and subsequent treatment to affected areas and any mental health treatment, if applicable

- (c) If, plaintiff is claiming a loss of income or wages, authorizations for W2 forms, and/or IRS records, and/or employment records shall be provided for the year of, year before and year after the date of the alleged accident, as well as authorizations for the period of time lost from work as a result of the alleged accident, within 90 days.
- (d) If, plaintiff was a student at the time of the alleged accident, plaintiff shall provide an authorization for school attendance records for the period of time lost from school as a result of the alleged accident, within 90 days.

IV. Physical Examination:

- (a) A physical examination of the plaintiff shall be scheduled within 60 days after completion of plaintiff's examination before trial.
- (b) A copy of the physician's report shall be furnished to plaintiff(s) within 60 days after the examination.
- (c) Defendant(s)' right to a further physical is reserved as to any new injuries claimed in any supplemental bill of particulars served by plaintiff(s).

v.

Depositions: (check applicable box)

- (a) The depositions of the following parties shall take place on 9/22/16 and 9/23/16 at 10 a.m. p.m. at the following location:

100 Church Street, 9th Floor, New York, NY 10007

All parties

☒ Plaintiff(s), on 9/22/16, defendants on 9/22/16 and 9/23/16

Waived by _____ as to _____

- (b) Defendant(s)' right to seek a further deposition of plaintiff(s) is reserved as to any new injuries or damages claimed in any supplemental bill of particulars served by plaintiff(s) following the plaintiff's deposition.

vi.

Other Disclosure:

- (a) All parties shall provide the names and addresses of any witnesses to the occurrence and notice witnesses (including plaintiff); accident reports; party statements; photographs color and video deprecating the incident and/or plaintiff's injuries taken in the ordinary course of business, and/or to be presented at trial, within 90 days.
- (b) All parties shall supply expert witness disclosure pursuant to the CPLR.
- (c) The City of New York and/or other defendants represented by Corporation Counsel, if any, shall provide the following information to all parties within 90 days after the date of this order, subject to the date and location specified in the notice of claim (check if applicable):

1. Premises Liability Cases:

- i. Departmental accident/incident report from respective City agency;
- ii. For non-transitory conditions, maintenance and repair records and written complaints regarding the condition complained of for _____ year(s) prior to and including the date of occurrence.
- iii. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

4. Cases involving allegations of defective traffic signals (DOT):

- i. Maintenance and repair records for 30 days prior to and including date of occurrence;
 - ii. Complaints made for 30 days prior to and including date of occurrence;
 - iii. The name and address of the contractor responsible for maintenance of the traffic signals on date of the occurrence.
 - iv. A copy of the title and signature pages, and insurance declaration sheets and/or certificates, for all contracts in effect for two years prior to and including the date of the occurrence shall be supplied by the City within _____ days.
 - v. Contracts and all related contract documents for 2 years prior to and including the date of occurrence will be made available for inspection at either the Office of the Corporation Counsel located at _____, New York, or the appropriate City agency, upon a mutually convenient appointment, pursuant to CPLR 3120(a)(1)(i).
- _____

5. Cases involving allegations of defective traffic signs (DOT):

- i. Maintenance and repair records for 6 months prior to and including the date of occurrence;
 - ii. Complaints for 6 months prior to and including the date of the occurrence.
- _____

X 6. Cases involving allegations of police misconduct:

The City will provide the following within 90 days after receipt from plaintiff, of an authorization:

- i. Complaint Report;
 - ii. Complaint Follow Up Report(s);
 - iii. Arrest Report;
 - iv. Memo Book entries for incident in question;
 - v. On-line Booking Sheet.
 - vi. Copies of the applicable section(s) of the Patrol Guide relating to
- _____

shall be made available by the City for inspection and copying within 90 days.
vii. 911 tape if it exists and sprint printout.

viii Other documents:

7. Inmate assault cases (Department of Correction (DOC):

- i. Department of Correction incident report, subject to redaction of privileged information including any information regarding criminal acts of other inmates and/or personal information regarding DOC employees;
- ii. Injury to inmate report (within 90 days after receipt of an authorization from plaintiff).

Other Documents:

8. Motor vehicle accidents involving City-owned vehicles:

- i. Departmental Accident Report from respective City agency.
- ii. Maintenance and repair records for the department vehicle involved for 1 year prior to and including the date of the occurrence, if a vehicular defect is alleged in either the departmental accident report or the MV-104.
- iii. If checked ☐, photos and /or repair records of damage to all vehicles shall be exchanged by all parties within _____ days

9. Board of Education Cases:

- i. Board of Education Comprehensive Accident Report for the occurrence, subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31.
- ii. Witness statements subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31.
- iii. For non-transitory conditions, maintenance and repair records, written complaints and to the extent applicable, related contracts for the situs of plaintiff's accident, regarding the condition complained of for 1 year prior to and including the date of occurrence.

iv. For transitory conditions, maintenance and written complaints regarding the condition complained of for ~~1~~ month prior to and including the date of the occurrence.

- (d) Surveillance videos to be provided in accordance with CPLR 3101(i)
- (e) Any party who wishes to obtain prior notices of claim, pursuant to GML § 50-g, may do so by contacting LEE McNEIL (212) 669-4329 to set up an appointment to search the index maintained at 1 Centre Street, New York, New York.
- (f) Any party who wishes to obtain a MV-104, be advised that the New York City Police Department no longer maintains MV-104s beyond 30 days for accidents occurring after April 15, 1995.
- (g) All searches shall be conducted based upon the date and location as described in the notice of claim.

ALL PARTIES ARE REQUIRED PRIOR TO THIS CONFERENCE TO REVIEW ALL OUTSTANDING DISCOVERY DEMANDS SERVED UPON ANOTHER PARTY. IT IS THE INTENT OF THIS PRELIMINARY CONFERENCE TO RULE UPON ALL OF THESE OPEN DISCOVERY DEMANDS. PURSUANT TO UNIFORM RULES SECTION 202.12 (C) & (D), THIS ORDER REPRESENTS THE COURT'S RULING UPON ANY OUTSTANDING DISCOVERY DEMANDS PREVIOUSLY SERVED UPON A PARTY OTHER THAN THOSE ITEMS SPECIFICALLY EXCEPTED. THIS ORDER DOES NOT PRECLUDE ANY PARTY FROM SERVING POST-CONFERENCE DISCOVERY DEMANDS OR MAKING ANY MOTION PURSUANT TO THE CPLR.

VII. Co-defendant(s) and/or third-party(ies) to provide the following to all parties:

VIII. Third-party actions/Impleader

1. None

2. Already Commenced

(3) Shall be completed within 90 days after completion of all depositions.

IX. Compliance Conference:

A party seeking compliance with this order should contact the court to schedule a compliance conference prior to the service of a discovery motion.

X. Note of Issue Date:

A note of issue may be filed in accordance with the rules of the Supreme Court, Kings County.

15

#10

(XI)

Stipulations of Discontinuance:

Plaintiff(s) shall ensure that a stipulation of discontinuance shall be promptly filed if the case settles before the next meeting with the court.

XII. Additional Directives:

[The following section contains several horizontal lines, each crossed out with a diagonal line, indicating no additional directives.]

Failure to comply with any of these directives may result in the imposition of costs or sanctions or other action authorized by law.

This constitutes the decision and order of the court.

Dated: 05/23/16

[Signature]
J.S.C.
HON. MARTIN SCHNEIER, JHO

Appearances/Copy of this order received on the date hereof.

From: S. Kew & Flynn
by: [Signature]
Attorney / telephone for Plaintiff(s)

From: _____
by: _____
Attorney / telephone for Plaintiff(s)

From: Corp. Counsel
by: [Signature]
Attorney / telephone for Defendant
City of New York

From: _____
by: _____
Attorney / telephone for Defendant

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

From: _____
by: _____
Attorney / telephone for

2016 MAY 26 AM 7:00
FILED
KINGS COUNTY CLERK

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MB

EXHIBIT E

SLEU - JIMENEZ

Police Case

At an J.S. Trial Term, Part 20 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse located at Civic Center, Borough of Brooklyn, City and State of New York, on the 6 day of December 2016

P R E S E N T

Hon. Jimenez-Satta by
Schneider Justice

Linsey Johnson

Plaintiff(s)

Cal. No. 26

Index No. 12865/2015

- against -

The City of New York, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- 1) Plaintiff to provide response to PC Order within 60 days.
- 2) Plaintiff to provide authorization pursuant to CPL 160.50/160.55 for the release of sealed records pertaining to all arrests within 30 days.
- 3) Plaintiff's EBT to be held on 3/29/17. ~~at 10~~
- 4) City EBTs to be held on 4/4/17

For Clerks use only

MG

MD

Motion Seq. #

5) Further CC: 4/25/17

6) NOI: 6/30/17

ENTER

J.S.C.
HON. MARTIN SCHNEIER, JHO

EIV rev 11-04

[Signature]
Sent to TT

[Signature]
City

EXHIBIT F

SLED-J. Jimenez

At an I.A.S. Trial Term, Part ²⁰ of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 25 day of April 2017

P R E S E N T

Hon.

Levine by Schweier

Justice

Linsey Johnson

Plaintiff(s)

Cal. No. 29

Index No. 12865/2015

- against -

The City of New York, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1. Plaintiff ^{by defendant} to provide a response to the PC Order within 30 days.
2. Plaintiff's EBT to be held on September 6, 2017. ^{to extent not provided}
City EBT to be held on September 13, 2017.

3. Further CC: 10/24/17

4. NOI: 12/29/17

For Clerks use only

MG

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Motion Seq. #

EJV-rev 11-04

ENTER

HON. MARTIN SCHNEIER, JHO

EXHIBIT G

SLED-J. Jimenez

At an I.A.S. Trial Term, Part 20 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 10 day of April 2018

P R E S E N T :

Hon.

Levine MARTIN SCHNEIER

Justice

Linsey Johnson

Plaintiff(s)

Cal. No. 18

Index No. 12865/2015

- against -

The City of New York, et al Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1. Plaintiff's EBT to be held on 8/9/18. City EBT to be held on 8/15/18.

For Clerks use only

MG

MD

Motion Seq. #

Further CC: 12/18/18NOI: 2/22/19

E N T E R

J.S.C.

HON. MARTIN SCHNEIER, JR.

EIV-rev 11-04

FILED: KINGS COUNTY CLERK 10/27/2015

NYSCEF DOC. NO. 1

INDEX NO. 12865/2015

RECEIVED NYSCEF: 01/19/2024

EXHIBIT H

SLED. - J.J. menez

At an I.A.S. Trial Term, Part 20 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 16 day of December, 2018

P R E S E N T :

Hon. Martin Schneier

Justice

Linsey Johnson

Plaintiff(s)

Cal. No. 22

Index No. 12865/15

- against -

City of New York, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

1. City EBT to be held on: 3/6/19

For Clerks use only

MG

MD

Motion Seq. #

Further CC: 7/2/19
NOI: 8/30/19

ENTER

HON. MARTIN SCHNEIER, JHO

EIV-rev 11-04

EXHIBIT I

At an L.A.S. Trial Term, Part of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 2 day of July 2019

P R E S E N T :

Hon. Arthur J. Hester

Justice

Cal. No. 34Index No. 01885/19

Plaintiff(s)

- against -

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

For Clerks use only

MG

MD

Motion Seq. #

E N T E R

J.S.C.

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

EXHIBIT J

ORIGINAL

1 SUPREME COURT OF THE STATE OF NEW YORK
2 COUNTY OF KINGS

3 -----X
4 LINSEY JOHNSON,

5 PLAINTIFF,

6 -against- Index No.:
7 12865/15

8 THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE
9 OFFICER GOMEZ and POLICE OFFICER YOUNG,

10 DEFENDANTS.

11 -----X

12 DATE: August 8, 2018

13 TIME: 2:13 P.M.

14 EXAMINATION BEFORE TRIAL of the Plaintiff,
15 LINSEY SHAWN JOHNSON, s/h/a LINSEY JOHNSON, taken by the
16 respective parties, pursuant to a Court Order, held at the
17 offices of the New York City Law Department, 100 Church
18 Street, 4th Floor, New York, New York 10007, before Yehudis
19 Malek, a Notary Public of the State of New York.

20

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1 A P P E A R A N C E S :

2

3 SACCO & FILLAS, LLP

Attorneys for the Plaintiff

4 LINSEY JOHNSON

31-19 Newtown Avenue, 7th Floor

5 Astoria, New York 11102

BY: MELISSA KLAFTER, ESQ.

6

7 ZACHARY W. CARTER, ESQ.

CORPORATION COUNSEL

8 NEW YORK CITY LAW DEPARTMENT

Attorneys for the Defendants

9 THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE

OFFICER GOMEZ and POLICE OFFICER YOUNG

10 100 Church Street

New York, New York 10007

11 BY: JAMES JIMENEZ, ESQ.

File #: 2015-048170

12 Control #: 171222

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1 **221. UNIFORM RULES FOR THE**
2 **CONDUCT OF DEPOSITIONS**

3 **221.1 Objections at Depositions**

4 (a) **Objections in general.** No objections shall be made at a
5 deposition except those which, pursuant to subdivision (b),
6 (c) or (d) of Rule 3115 of the Civil Practice Law and
7 Rules, would be waived if not interposed, and except in
8 compliance with subdivision (e) of such rule. All
9 objections made at a deposition shall be noted by the
10 officer before whom the deposition is taken, and the answer
11 shall be given and the deposition shall proceed subject to
12 the objections and to the right of a person to apply for
13 appropriate relief pursuant to Article 31 of the CPLR.

14 (b) **Speaking objections restricted.** Every objection raised
15 during a deposition shall be stated succinctly and framed
16 so as not to suggest an answer to the deponent and, at the
17 request of the questioning attorney, shall include a clear
18 statement as to any defect in form or other basis of error
19 or irregularity. Except to the extent permitted by CPLR
20 Rule 3115 or by this rule, during the course of the
21 examination persons in attendance shall not make statements
22 or comments that interfere with the questioning.

23 **221.2 Refusal to answer when objection is made.** A deponent
24 shall answer all questions at a deposition, except (i) to
25 preserve a privilege or right of confidentiality, (ii) to
26 enforce a limitation set forth in an order of the court, or
27 (iii) when the question is plainly improper and would, if
28 answered, cause significant prejudice to any person. An
29 attorney shall not direct a deponent not to answer except
30 as provided in CPLR Rule 3115 or this subdivision. Any
31 refusal to answer or direction not to answer shall be
32 accompanied by a succinct and clear statement of the basis
33 therefor. If the deponent does not answer a question, the
34 examining party shall have the right to complete the
35 remainder of the deposition.

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1 **221. UNIFORM RULES FOR THE**
2 **CONDUCT OF DEPOSITIONS**

3 **221.3 Communication with the deponent**

4 An attorney shall not interrupt the deposition
5 for the purpose of communicating with the deponent unless
6 all parties consent or the communication is made for the
7 purpose of determining whether the question should not be
8 answered on the grounds set forth in section 221.2 of these
9 rules and, in such event, the reason for the communication
10 shall be stated for the record succinctly and clearly.

11 IT IS FURTHER STIPULATED AND AGREED that the
12 transcript may be signed before any Notary Public with the
13 same force and effect as if signed before a clerk or a
14 Judge of the court.

15 IT IS FURTHER STIPULATED AND AGREED that the
16 examination before trial may be utilized for all purposes
17 as provided by the CPLR.

18 IT IS FURTHER STIPULATED AND AGREED that all
19 rights provided to all parties by the CPLR cannot be deemed
20 waived and the appropriate sections of the CPLR shall be
21 controlling with respect hereto.

22 IT IS FURTHER STIPULATED AND AGREED by and
23 between the attorneys for the respective parties hereto
24 that a copy of this examination shall be furnished, without
25 charge, to the attorneys representing the witness
 testifying herein.

L. S. JOHNSON

1 L I N S E Y S H A W N J O H N S O N, called as a
2 witness, having been first duly sworn by a Notary Public of
3 the State of New York, was examined and testified as
4 follows:

5 EXAMINATION BY

6 MR. JIMENEZ:

7 Q. Please state your name for the record.

8 A. Linsey Shawn Johnson.

9 Q. What is your address?

10 A. 8401 Main Street, Apartment 226, Briarwood, New
11 York 11435.

12 Q. Good afternoon, Mr. Johnson. My name is James
13 Jimenez. I'm the attorney for the City of New York in this
14 case. Before we get started, I'm going to give you a
15 couple of ground rules to keep in mind while we're doing
16 the deposition today, just to help everything go smoothly,
17 and to make sure we have a clear and accurate record when
18 we're all done.

19 First is that it's important to make sure you
20 speak clearly, and give verbal answers to all of my
21 questions. The person sitting to your left is the Court
22 Reporter. She's taking down everything being said today,
23 and she can't take down anything we do, any gestures you
24 make. If you nod your head yes, or shake your head no,
25 that won't be on the record, so make sure that you're

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L. S. JOHNSON

1 giving verbal answers at all times, and if you describe
2 something, make sure you use words to do so, okay?

3 A. Yes.

4 Q. If you need a break at any time that's totally
5 fine, if you need a drink of water, or to speak to your
6 attorney. The only rule on that is if there's a pending
7 question, I've asked a question that has not yet been
8 answered, you have to answer that question first before we
9 take a break, okay?

10 A. Yes.

11 Q. It's important to wait, and make sure that I have
12 finished the question before you start answering, for two
13 reasons; one, so we're not talking over each other, and the
14 record is unclear, and also, so that you hear the full
15 question, and answer it as accurately as possible.

16 Also on that point, if you don't understand a
17 question, either because I'm talking too fast, or using
18 unfamiliar words, or just phrase it confusingly, just let
19 me know. I'll be happy to rephrase it or repeat it for you
20 so, again, you can give as accurate an answer as possible,
21 okay?

22 A. Yes.

23 Q. If you don't know, or don't remember something in
24 reference to a question I ask, saying "I don't know, I
25 don't remember" is perfectly fine. We don't want you to

L. S. JOHNSON

1 guess here today. If you can estimate, I appreciate that,
2 but if you really don't know, just say "I don't know, I
3 don't remember," okay?

4 A. Yes.

5 Q. If you remember later on that you gave an
6 inaccurate or incomplete answer to a question that I asked
7 earlier, just let me know. We can always go back, and add
8 information on, or correct the record as needed, all right?

9 A. Yes.

10 Q. Any questions for me before we get started?

11 A. No.

12 Q. Have you taken any drugs in the last 24 hours?

13 A. Allegra-D for allergies.

14 Q. Any other medications you've taken?

15 A. No.

16 Q. Have you consumed any alcohol within the last
17 24 hours?

18 A. No.

19 Q. The Allegra-D, does that have any side effects,
20 or effects that might affect your ability to testify
21 truthfully today?

22 A. Not that I know of.

23 Q. Is there any other reason why you can't testify
24 truthfully and accurately today?

25 A. No.

L. S. JOHNSON

1 Q. Apart from the case we're discussing today, have
2 you ever been the plaintiff or defendant in a civil lawsuit
3 before?

4 A. No.

5 Q. Have you ever testified as a witness before?

6 A. Character witness.

7 Q. Was this in relation to a civil suit or a
8 criminal suit?

9 A. It was a criminal suit.

10 Q. In preparation for this deposition, did you
11 review any documents?

12 A. No.

13 Q. Did anyone read any documents to you to prepare?

14 A. Question, what documents are you talking about;
15 things that you guys gave me?

16 Q. Any documents, anything you read to prepare for
17 this deposition today.

18 A. Some of the papers that I filed with the
19 comptroller's office, yes.

20 Q. Are you referring to the Notice of Claim?

21 A. Yes, I think it's called the Notice of Claim.

22 Q. Did you also review your 50-h testimony?

23 A. From May of 2015, yes.

24 Q. Did you look at any pictures, or any video to
25 prepare?

L. S. JOHNSON

1 A. No.

2 Q. Have you discussed this lawsuit with anyone
3 besides your attorney?

4 A. My wife.

5 Q. Anyone else?

6 A. My mom.

7 Q. Have you ever been known by a name besides Linsey
8 Shawn Johnson?

9 A. No.

10 Q. What is your date of birth?

11 A. December 5, 1968.

12 Q. Where were you born?

13 A. Brooklyn, New York.

14 Q. I assume you're a U.S. citizen?

15 A. Yes.

16 MR. JIMENEZ: Off the record.

17 (Whereupon, an off-the-record discussion was
18 held.)

19 Q. Sir, I'm going to ask for your Social Security
20 number now.

21 MR. JIMENEZ: Just the last four on the
22 record.

23 Q. Please give me the entire number.

24 A. XXX-XX-4836.

25 Q. What is your height and weight today?

10

L. S. JOHNSON

- 1 A. 5'8", about 215.
- 2 Q. What was your approximate weight on the date of
- 3 the incident we're discussing today, which was around
- 4 January 31, 2015?
- 5 A. I was about 220 then.
- 6 Q. Are you right- or left-handed?
- 7 A. Right.
- 8 Q. I met your wife earlier, so I know you are
- 9 married. Have you ever been married before?
- 10 A. No.
- 11 Q. Do you have any children?
- 12 A. Yes.
- 13 Q. How many children do you have?
- 14 A. One daughter.
- 15 Q. How old is your daughter?
- 16 A. 16.
- 17 Q. How long have you lived at 8401 Main Street?
- 18 A. Since March 2012.
- 19 Q. Do you rent or own?
- 20 A. Own.
- 21 Q. Who do you live with there?
- 22 A. My wife and my daughter.
- 23 Q. What is your wife's name?
- 24 A. Stephanie Stamford.
- 25 Q. Where did you live on the date of the incident?

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11

L. S. JOHNSON

- 1 A. 8401 Main Street.
- 2 Q. Same address?
- 3 A. Same address.
- 4 Q. Do you have a valid driver's license?
- 5 A. Yes, I do.
- 6 Q. Off the top of your head, do you know when it was
- 7 issued?
- 8 A. No.
- 9 Q. Is your current address, 8401 Main Street, listed
- 10 on that license?
- 11 A. Yes, it is.
- 12 Q. Has that license ever been suspended or revoked?
- 13 A. No.
- 14 Q. What high school did you attend?
- 15 A. Alexander Hamilton Technical Vocational High
- 16 School.
- 17 Q. Where is that located?
- 18 A. Crown Heights, Brooklyn.
- 19 Q. What year did you graduate?
- 20 A. 1985.
- 21 Q. Did you attend college?
- 22 A. Yes.
- 23 Q. What college did you attend?
- 24 A. City College New York.
- 25 Q. What campus; where is that located?

L. S. JOHNSON

- 1 A. 141st and Convent Avenue.
- 2 Q. What was your major?
- 3 A. Interior design, architecture.
- 4 Q. Did you graduate?
- 5 A. Yes.
- 6 Q. What year was that?
- 7 A. 1991.
- 8 Q. What kind of degree did you attain?
- 9 A. Liberal Arts Bachelor's.
- 10 Q. Have you received any other training or
- 11 education?
- 12 A. I have a master's in education from Cambridge
- 13 College.
- 14 Q. Have you ever served in the military?
- 15 A. No.
- 16 Q. Are you currently employed?
- 17 A. Yes.
- 18 Q. Where are you currently employed?
- 19 A. New York City Department of Education.
- 20 Q. Do you work at a specific building, or a specific
- 21 address?
- 22 A. 5909 Beverley Road.
- 23 Q. What's located there?
- 24 A. Meyer Levin School For Performing Arts.
- 25 Q. What is your job title?

L. S. JOHNSON

- 1 A. Lead dean.
- 2 Q. Briefly, what are your duties?
- 3 A. I'm in charge of safety, discipline, conflict
- 4 resolution, restorative justice practices.
- 5 Q. What days and hours do you normally work?
- 6 A. Monday through Friday, I'm there from about 8:50
- 7 to approximately 5:00.
- 8 Q. How long have you worked there?
- 9 A. I've been at this particular school building
- 10 approximately six years.
- 11 Q. How often do you get paid?
- 12 A. Every two weeks.
- 13 Q. Roughly how much do you get paid?
- 14 A. Every two weeks, what's on the check, it's about
- 15 2,700.
- 16 Q. Where were you employed on the date of the
- 17 incident?
- 18 A. I was at the same school at the time of the
- 19 incident.
- 20 Q. At 5909 Beverley Road?
- 21 A. Yes.
- 22 Q. Same job titles, same duties and all that?
- 23 A. Yes.
- 24 Q. Was your rate of pay the same on the day of the
- 25 incident?

14

L. S. JOHNSON

1 A. No.

2 Q. Roughly how much were you getting paid on the
3 date of the incident bi-weekly?

4 A. Probably about 23.

5 Q. Prior to the incident on or about January 31,
6 2015, did you have any ongoing medical problems or
7 conditions?

8 A. Prior to when? Say it again.

9 Q. January 31, 2015.

10 A. I had strabismus in my left eye.

11 Q. Anything else?

12 A. No.

13 Q. Were you seeing a doctor for treatment of that
14 condition?

15 A. I had seen a doctor. I wasn't being treated.

16 Q. Again, prior to the incident, had you ever seen a
17 professional for any mental health issues?

18 A. No.

19 Q. Do you wear glasses or contacts?

20 A. I have glasses for reading now.

21 Q. You only wear them for reading?

22 A. Yes.

23 Q. Do you have any hearing problems?

24 A. No.

25 Q. Do you have any family members that work with the

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14

15

L. S. JOHNSON

1 NYPD?

2 A. No.

3 Q. Do you know anyone, any friends or acquaintances
4 that work for the NYPD?

5 A. I believe I have a couple of former students that
6 work for -- I don't remember their names.

7 Q. I'm assuming you don't talk to them much about
8 their jobs?

9 A. No. There's no one I really socialize with.

10 Q. Other than the incident on January 31, 2015, have
11 you been arrested?

12 A. No.

13 Q. Have you ever been convicted of a crime?

14 A. No.

15 Q. Have you ever been issued a summons for a traffic
16 violation?

17 A. No.

18 Q. Mr. Johnson, I know there's --

19 A. Can I ask a question? Summons or -- is summons
20 the same thing as a ticket?

21 Q. It can be, yes.

22 A. Because I've gotten, like, one of those, like, if
23 the camera sees you going through.

24 Q. You ran a red light?

25 A. Yes -- not the red light. The speeding cameras.

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15

L. S. JOHNSON

- 1 Q. Just one of those in the past?
- 2 A. Yes.
- 3 Q. Do you remember roughly what year that was?
- 4 A. Maybe two years ago.
- 5 Q. I know there's two incidents here involving the
- 6 police we need to go through; one in 2015 and one in 2008.
- 7 I'm going to start asking you questions now about the
- 8 incident in 2008, just so we're clear about what we're
- 9 talking about, okay?
- 10 A. Okay.
- 11 Q. Do you remember what date that incident occurred?
- 12 A. No.
- 13 Q. Do you remember what season it was?
- 14 A. No.
- 15 Q. I'm going to ask you this to begin with: Sitting
- 16 here today, do you have any independent recollection of the
- 17 incident involving the NYPD that allegedly took place on
- 18 May 20, 2008?
- 19 A. No.
- 20 Q. Let's go to the incident on January 31, 2015. Do
- 21 you remember what time of day it was when you first
- 22 encountered the police?
- 23 A. It was between 9:00 and 9:30 P.M.
- 24 Q. In the 24 hours prior to encountering the police,
- 25 did you consume any alcohol?

L. S. JOHNSON

- 1 A. I had a beer about around 8:00 that night.
- 2 Q. Was that the only alcohol you had that night?
- 3 A. Yes.
- 4 Q. Did you take any prescription drugs?
- 5 A. No.
- 6 Q. Did you take any illegal drugs, any narcotics,
- 7 marijuana?
- 8 A. No.
- 9 Q. At what location did you first encounter the
- 10 police?
- 11 A. They came behind me with their lights on Eastern
- 12 Parkway, pulled out right behind me, and I pulled over.
- 13 Q. Do you recall any cross streets that were nearby?
- 14 A. The closest street that I recall is Broadway,
- 15 because it has the train that goes across it.
- 16 Q. Let's back up for a second. I think you
- 17 mentioned just now you got pulled over, so you were driving
- 18 your car; is that correct?
- 19 A. Yes.
- 20 Q. Where were you driving from?
- 21 A. I had just dropped off my brother and my nephew
- 22 at two different locations in Brooklyn. We were in
- 23 Manhattan earlier, having dinner for my nephew's birthday.
- 24 Q. How old was your nephew at that time?
- 25 A. He just turned 21.

L. S. JOHNSON

1 Q. At the point the police pulled you over, was
2 there anyone else in the car with you?

3 A. No.

4 Q. Did you see the police car before it turned its
5 lights on, and pulled you over?

6 A. Yes, I did.

7 Q. How long would you say the police car was visible
8 before it pulled you over?

9 A. I first saw it when I was on Fulton Street, and
10 it was several cars behind me as I drove down Fulton
11 Street.

12 Q. Was there heavy traffic at this time?

13 A. I mean, there were cars in front of me, and cars
14 behind me. You know, there wasn't too much traffic.

15 Q. How long, in minutes or seconds, would you say
16 the police car was behind you before it pulled you over?

17 A. A few minutes.

18 Q. When the police car activated its lights, did you
19 immediately pull your car over?

20 A. Yes, I'd say give or take ten seconds or so.

21 Q. Was the police car a marked police car; did it
22 have "NYPD" on the side?

23 A. Yes, it was marked.

24 Q. Once you pulled your car over, did an officer
25 approach your vehicle on foot?

L. S. JOHNSON

1 A. Yes.

2 Q. How many officers approached you?

3 A. One officer came to the driver's side window,
4 there was another officer on the right side, he had a
5 flashlight or something, and you could tell there was
6 another -- there was one more officer who was standing
7 toward the back window of my car.

8 Q. There were three officers in total?

9 A. Yes.

10 Q. Can you describe any of those officers today?

11 A. I only remember one, because I remember looking
12 up, and it was Officer Young, and what I remember, he was a
13 white male, probably in his, I don't know, mid to upper
14 20s, no facial hair that I can recall.

15 Q. Were you able to see if his hair was blond or
16 brown, what color?

17 A. I don't recall.

18 Q. Just to clarify, this is the officer that came to
19 the driver's side window?

20 A. Yes, sir.

21 Q. Let's stick with Officer Young right now. Did
22 Officer Young speak to you at all when he came to the
23 driver's side window?

24 A. Yes.

25 Q. What did he say?

L. S. JOHNSON

1 A. He asked me for my driver's license and
2 registration.

3 Q. Did you give it to him?

4 A. Yes, sir.

5 Q. What did he do once you gave him your license and
6 registration?

7 A. He went back to the car with it. I mean, I guess
8 he went back to the patrol car with it.

9 Q. When Officer Young was back at the patrol car,
10 did either of the other officers speak to you at all?

11 A. No.

12 Q. Did you speak to them, or ask them any questions?

13 A. No.

14 Q. What happened when Officer Young came back from
15 the patrol car?

16 A. Well, when he came back to the patrol car, I had
17 actually asked him, first, before he left, I had asked him
18 what was the problem, and he said "You went through a
19 yellow/red light," and then he went back, but when he came
20 back to the car the second time, he asked did I reside at
21 123-33 83rd Avenue, and I told him that that was my former
22 address, I had lived there before.

23 Q. When had you lived at that address?

24 A. I had lived there from 1996 to 2012.

25 Q. Let's jump back for one second. Do you recall

L. S. JOHNSON

1 going through a yellow/red light?

2 A. No.

3 Q. Once Officer Young asked you if that was your
4 address, you told him that was your former address?

5 A. Yes.

6 Q. Did he say anything to you after that?

7 A. He said that there was a warrant out.

8 Q. Did he tell you what the warrant was for, what
9 crime allegedly you had committed?

10 A. I asked him, I said, you know, I asked him for
11 what, and he said it was a discon, and I asked him what's a
12 discon, and he said he didn't know.

13 Q. Did Officer Young tell you you were placed under
14 arrest?

15 A. He went back to his car first, I believe, but he
16 eventually came back, and he told me I was going to be
17 arrested.

18 Q. How did you respond when he told you that?

19 A. I was a little in shock. I didn't say anything.
20 When he told me to step out the car, I stepped out the car,
21 and I just followed the instructions.

22 Q. What instructions did he give you?

23 A. They asked me to turn around, face the car. I
24 believe I put my hands up first, and I believe I was patted
25 down quickly, and then he asked me to put my hands behind

L. S. JOHNSON

1 my back, and they cuffed me, and then they led me to the
2 car, and put me in the backseat.

3 Q. After the pat-down search you described, did the
4 officers take any of your belongings?

5 A. No. Well, if you count my car, because my car,
6 they took my car.

7 Q. Did you have a wallet or a cell phone on you?

8 A. Yes, I did.

9 Q. Did they take those, or were you allowed to keep
10 those?

11 A. I had those.

12 Q. At any point during the pat-down search, or you
13 being put into handcuffs, did any officer punch you?

14 A. No.

15 Q. Did any officer kick you?

16 A. No.

17 Q. Did any officer push you?

18 A. No.

19 Q. During this interaction, again, when a pat-down
20 search was being performed, and you were being put in
21 handcuffs, did either of the other officers speak to you at
22 all?

23 A. I don't know whether it was someone in the front
24 who said something, but I remember saying to them that this
25 is some sort of mistake and, you know, and before we got in

L. S. JOHNSON

1 the car, Officer Young had asked me for my job ID, because
2 I had told him I work for the City, and he asked me for my
3 job ID, and I didn't have it. I showed him a pay stub that
4 had City of New York on it, and -- but that was basically
5 whatever conversation we had.

6 Q. When you were taken back to the patrol car, were
7 you taken to a different location?

8 A. Yes.

9 Q. Where were you taken?

10 A. 73rd Precinct.

11 Q. Was Officer Young in the patrol car that drove
12 you to the 73rd Precinct?

13 A. Yes.

14 Q. During that drive from the location you were
15 stopped to the 73rd Precinct, did you speak with Officer
16 Young at all?

17 A. No.

18 Q. Were there any other officers in the car with you
19 on your ride to the 73rd Precinct?

20 A. Yes, there was at least one.

21 Q. Did that officer speak to you at all, or did you
22 speak to him at all?

23 A. No.

24 Q. During the ride from the location to the 73rd
25 Precinct, at any time did you tell the officers your

L. S. JOHNSON

1 handcuffs were too tight?

2 A. No.

3 Q. Did you request any medical attention?

4 A. No.

5 Q. Did you make any stops on the way to the 73rd
6 Precinct?

7 A. No.

8 Q. Once you arrived at the 73rd Precinct, were you
9 placed in a cell?

10 A. Yes. I went through the picture taking and
11 fingerprinting, and I was placed in a cell, yes.

12 Q. Were you searched again before you were placed in
13 a cell?

14 A. Yes, yes. They took, you know, my phone, my
15 wallet, all my possessions.

16 Q. Did they do another pat-down search?

17 A. Yes.

18 Q. They took your phone, your wallet. Anything
19 else?

20 A. My shoe strings, my coat. That's all I can
21 recall right now.

22 Q. Were your handcuffs removed when you were placed
23 in the cell?

24 A. Yes.

25 Q. Did you request to make a phone call while at the

L. S. JOHNSON

- 1 73rd Precinct?
- 2 A. Yes.
- 3 Q. Were you allowed to make a phone call?
- 4 A. Yes.
- 5 Q. Who did you call?
- 6 A. I spoke to my wife, and I also spoke to Borough
- 7 Safety Director Craig Edwards. He's the borough safety
- 8 director for my job.
- 9 Q. What exactly does that job entail, borough safety
- 10 director, to your understanding?
- 11 A. He's in charge of safety for, basically, all of
- 12 Brooklyn, and he works very closely with us. He runs our
- 13 monthly meetings with the police department.
- 14 Q. What did you discuss when you spoke with
- 15 Mr. Edwards?
- 16 A. I just asked him, you know, basically how should
- 17 I handle this, you know.
- 18 Q. Did he give you some advice?
- 19 A. I don't recall. There was nothing much he could
- 20 do. You know, it was like a Hail Mary, so --
- 21 Q. While at the 73rd Precinct were you offered any
- 22 food or water?
- 23 A. No.
- 24 Q. Did you request medical attention while in the
- 25 cell at the 73rd Precinct?

L. S. JOHNSON

1 A. No.

2 Q. Did any of the officers come in, and speak to you
3 while you were in the cell?

4 A. I think Officer Young said something like did I
5 know anyone who might want to cause me some harm, or
6 something like that, did I know somebody who -- something
7 along the lines of did I know somebody who could have set
8 me up, or something like that.

9 Q. Were you asked to make any written statements?

10 A. No.

11 Q. Were you ever read, or told your Miranda rights?

12 A. No, not as I recall.

13 Q. Were you eventually taken to Central Booking?

14 A. We were. Yes, yes.

15 Q. Do you know what time of the day or night it was
16 when you went to Central Booking?

17 A. It was late. It might have been -- I'm thinking
18 that I was probably at the 73rd close to four hours, that's
19 what it felt like, so all I remember, it was very late and
20 very cold when we left.

21 Q. I'm assuming it was still dark outside?

22 A. Yes, yes.

23 Q. When you were taken to Central Booking, were
24 there any other civilians being transported with you?

25 A. Yes.

27

L. S. JOHNSON

1 Q. How many people?

2 A. Two.

3 Q. How many police officers were in the vehicle with
4 you?

5 A. We were in a van. I think there was two in the
6 front.

7 Q. Did you speak to either of these officers while
8 you were being transported to Central Booking?

9 A. No.

10 Q. Did they speak to you at all?

11 A. Uh-uh.

12 MR. JIMENEZ: Off the record.

13 (Whereupon, an off-the-record discussion was
14 held.)

15 Q. Once you arrived to Central Booking were you seen
16 by EMS attendants, or anyone to check on your physical
17 condition?

18 A. We did go to a medical room. They was doing one
19 by one into the medical room.

20 Q. Did you tell the physician in there about any
21 physical issues you were having at the time?

22 A. No. I told them that this was a mistake.

23 Q. Did they give you any treatment, any medication
24 of any kind?

25 A. No.

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27

L. S. JOHNSON

- 1 Q. At Central Booking were your fingerprints taken?
- 2 A. Yes.
- 3 Q. Were you photographed?
- 4 A. Yes.
- 5 Q. Were you placed in a cell?
- 6 A. Yes.
- 7 Q. Was there anyone else in the cell with you?
- 8 A. There were a lot of us in the cell.
- 9 Q. Were you allowed to make a phone call?
- 10 A. No.
- 11 Q. Did you ask to make a phone call?
- 12 A. No.
- 13 Q. Were you offered any food or water?
- 14 A. At some point they had sandwiches and stuff,
- 15 water. I think I had some water. I didn't eat anything.
- 16 Q. While you were held in Central Booking, did any
- 17 officers there come and speak to you, and ask you questions
- 18 about your arrest?
- 19 A. Nobody asked me anything about my arrest.
- 20 Officer did -- they did the eye scan thing also, and the
- 21 officer made a comment to me that I thought was off. He
- 22 said -- because I was, you know, I was trying to open my
- 23 eyes, and look at the scanner, and he says -- he looks at
- 24 me and he says, "Open your eyes wide. Just act like we're
- 25 chasing you." And I didn't say nothing to him. I just

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L. S. JOHNSON

1 backed up.

2 Q. Roughly how long were you held at Central
3 Booking?

4 A. Overnight. After I saw the judge, the next
5 morning I was released.

6 Q. Let's go through that actually right now. When
7 you saw the judge, were you given an attorney to represent
8 you?

9 A. Yes, Kathy Griffin, I think her name is.

10 Q. Do you know if she was with legal aid, or some
11 other organization?

12 A. Legal aid, yes.

13 Q. Were you ever told what charge was being brought
14 against you at the arraignment?

15 A. I asked her. When I saw her I was -- still
16 didn't understand what a discon was, and she explained to
17 me that a discon was disorderly conduct, so -- and that it
18 occurred during some traffic violation, and so that's when
19 -- so she said we will be seeing the judge soon.

20 Q. At that time did anyone tell you when that
21 traffic violation was said to have happened?

22 A. Yes, I believe she did. I believe she did say
23 that it was from 2008.

24 Q. When you went to see the judge, did you have to
25 make a plea of guilty or not guilty?

L. S. JOHNSON

1 A. I don't recall. I mean, I just remember the
2 judge looking at it, and she made a comment like, "Why is
3 the traffic -- why is he in criminal court for a traffic
4 violation," and she dismissed the cases in front of her.

5 Q. After that you were released?

6 A. Yes.

7 Q. Were you ever given a summons or a charge for
8 allegedly running through that yellow/red light?

9 A. There's a dismissal on that as well. She
10 dismissed whatever the current one was, so I'm assuming
11 that he -- I believe that Officer Young, or one of the
12 officers put in a summons for it, because there was two
13 dismissals, so I'm assuming that the one -- that one and
14 the one for 2008.

15 Q. Do you recall if on that summons for allegedly
16 going through that yellow/red light, if you accepted what's
17 called an ACD, an Adjournment in Contemplation of
18 Dismissal?

19 A. No, I didn't, no.

20 Q. After being released after seeing the judge, did
21 you seek any medical treatment for any injuries or
22 conditions caused by this incident?

23 A. Eventually I went to see about the headaches that
24 I was getting almost daily, anxiety daily. Driving was not
25 the same, still hasn't been the same, but I did see a

L. S. JOHNSON

1 doctor, because I was just trying to take, like, regular
2 ibuprofen or something at first, and I was, like, "No, I
3 need to go in, and see a doctor about the headaches."

4 Q. When did you first see a doctor about the
5 headaches?

6 A. I think it was in April.

7 Q. April of --

8 A. April of 2015.

9 Q. What doctor did you go see?

10 A. Dr. Randy Kwieve.

11 Q. Could you spell the last name.

12 A. I will try. K-W-I-E-V-E, I think.

13 Q. Is this doctor a specialist in any field?

14 A. He was my primary doctor at the time.

15 Q. What treatment did this doctor provide for you?

16 A. He prescribed some medicine. I don't remember
17 the name, but he was just telling me that I needed to take
18 it easy, you know, try to rest, that sort of thing.

19 Q. Did he give you this medication for just the
20 headaches, or just the anxiety, or both, if you recall?

21 A. I don't recall.

22 Q. Do you remember if he described it as a
23 painkiller, something else?

24 A. I don't recall.

25 Q. Did you continue seeing this doctor for your

L. S. JOHNSON

1 headaches?

2 A. No. I tried going, like, to a gym, and working
3 out, you know, just assuming that it's something I had to
4 work through. A lot of praying and gym, you know.

5 Q. Did you see any other doctors for your headaches?

6 A. No.

7 Q. You mentioned a moment ago to feeling some
8 anxiety. Did you see a doctor for your anxiety?

9 A. No.

10 Q. Do you have any physical injuries as a result of
11 this incident?

12 A. I had some bruising to my left hand area, and I
13 had some insect bite on the heel of one of my foot, I had a
14 little soreness at the top of my head from hitting my head
15 in the van.

16 Q. Let's talk about the soreness to your head. When
17 did you hit your head in the van?

18 A. When we were -- we were chained together in the
19 van, and when we were stepping down, it was, like, a really
20 dark place where they were unloading us out to go to
21 Central Booking, and as I was stepping down, head hit the
22 top of the -- on the way out.

23 Q. Would you say that one of the officers there
24 caused you to hit your head, or it was just because it was
25 too dark to see?

L. S. JOHNSON

1 A. It was just dark. You're chained with somebody
2 and, you know, you're trying to keep up, and these things.

3 Q. Did you tell any of the officers there that you
4 had hit your head?

5 A. No.

6 Q. Did you ever seek any medical treatment for the
7 soreness to your head?

8 A. No.

9 Q. The insect bite you mentioned a moment ago, it's
10 probably a silly question, do you know what kind of insect
11 bit you?

12 A. It was some little bugs. I don't know what they
13 were, but there were some little bugs all around. We just
14 tried to swat them off you, and just keep going, so I don't
15 know.

16 Q. Do you know if this bite occurred when you were
17 at the 73rd Precinct or Central Booking?

18 A. It was in Central Booking.

19 Q. Did you tell any of the officers there that you
20 had suffered a bite to your foot?

21 A. No.

22 Q. After being released, did you seek any medical
23 treatment for this bite to your foot?

24 A. No. I just put some stuff on it at home.

25 Q. The bruising to your left hand, where exactly on

L. S. JOHNSON

1 your hand was the bruising?

2 A. Around the upper wrist and thumb area.

3 Q. Was that caused by the handcuffs?

4 A. Yes.

5 Q. Has that bruising since faded?

6 A. Yes.

7 Q. Sitting here today, are you in any pain to your
8 left hand or wrist because of that bruising?

9 A. No.

10 Q. Did you ever seek any medical treatment for the
11 bruising to your hand and wrist?

12 A. No.

13 Q. Have you seen a therapist or other mental health
14 professional after the incident, for any mental health
15 injury or emotional injuries caused by the incident?

16 A. No.

17 Q. Did you miss any time from work as a result of
18 your arrest?

19 A. Only the day -- I had to take a day off to go
20 down and report the stuff, to report the incident to my
21 employer.

22 Q. As a result of reporting this incident, have you
23 been disciplined at all as part of your employment?

24 A. No.

25 Q. To your knowledge, has this arrest affected your

L. S. JOHNSON

1 reputation in your employment at all?

2 A. Yes.

3 Q. How so?

4 A. What I do, I'm, like, really, I guess, I'm, like,
5 the law in the school, so I mean, I deal with a lot of
6 groups with kids, and we talk about issues, and we talk
7 about social issues, and issues on how to deal with police
8 and everything, and the question always comes up,
9 "Mr. Johnson, have you ever been arrested," and so I have
10 to go through it.

11 And a lot of times people will hear that you've
12 been arrested, and right away they assume that you did
13 something wrong. Right away, you know, you see somebody in
14 handcuffs, you know, somebody arrested, people thinking
15 that person did something wrong, so it's -- in that
16 instance you just have to keep explaining, and defending my
17 character, and just tell them that, you know, this was some
18 sort of mistake. I don't know, you know.

19 Q. After the incident did you ever learn more about
20 this traffic infraction you allegedly committed back in
21 2008?

22 A. Only when I went down to the precinct, I got a
23 copy of the original summons that was -- had -- Officer
24 Gomez had filed, and that was the first time that I could
25 recall even hearing anything about that, you know. I

L. S. JOHNSON

1 looked at it, where it's supposed to have my signature. It
2 has my information, but where it's supposed to have my
3 signature it was blank, so I don't -- I still don't know
4 what happened with that. I'm still in the dark on that.

5 Q. Do you have any recollection of being pulled over
6 by the police at all in the year 2008?

7 A. No, sir.

8 Q. Do you have any recollection of ever meeting
9 Officer Gomez in any capacity?

10 A. No.

11 Q. Have you made any complaints to what's called a
12 Civilian Complaint Review Board about this incident?

13 A. Yes.

14 Q. When did you make a complaint?

15 A. February of 2015.

16 Q. Were you interviewed by any employees of CCRB?

17 A. No.

18 Q. Did you make a statement to them about what
19 happened to you?

20 A. I sent them my statement. I sent the statement.

21 Q. You sent a written statement to them?

22 A. Yes.

23 Q. Did you send it by mail or by e-mail?

24 A. I don't recall.

25 Q. Did they ever respond to the statement you sent

L. S. JOHNSON

1 them?

2 A. I had a phone call -- is that the same thing as
3 the police, because it was three -- yes, there was a police
4 officer who called, and he wanted to ask me what happened,
5 but I didn't discuss it with him, because I wanted to talk
6 to a lawyer first. I didn't know who he was.

7 Q. After that phone call, have you been contacted
8 by, or contacted the CCRB again?

9 A. No.

10 Q. Have you made any complaints to what's called the
11 Internal Affairs Division of the NYPD about this incident?

12 A. No.

13 Q. Are you aware of any witnesses to your car stop
14 or arrest, other than the police officers who were there on
15 the scene?

16 A. No.

17 Q. To your knowledge is there any video of your
18 arrest?

19 A. No.

20 MR. JIMENEZ: Off the record.

21 (Whereupon, an off-the-record discussion was
22 held.)

23 MR. JIMENEZ: I have nothing further.

24

25

L. S. JOHNSON

1 EXAMINATION BY

2 MS. KLAFTER:

3 Q. Sitting here today, do you still experience
4 headaches as a result of the incident?

5 A. From time to time driving, and it's weird.
6 Sometimes I feel like if I see a cop car, that I'm just
7 thinking they're going to pull me over. I could be driving
8 and getting nervous. It's just stressful, just going from
9 point A to point B, and not knowing, okay, you could be
10 pulled over and arrested.

11 I still carry in my car a copy of the dismissal
12 papers, because I'm, like, they could pull me over and say
13 this case wasn't solved, or there was a problem or
14 something. I still ride around with those papers in my car
15 to this day, because I'm just -- it's just stressful.

16 Q. As a result of this incident did you suffer from
17 loss of sleep, or have any nightmares, or have anything
18 along those lines?

19 A. A lot of loss of sleep. Just trying to figure
20 out what happened, dealing with a lot of the embarrassment
21 of it. You know, it was a blow to your character. You
22 know, it's like, this is what I train kids not to do. You
23 know, this is what I talk to kids about, staying out of
24 trouble. How did I wind up in this trouble, so --

25 Q. As a result of this incident, do you have a fear

L. S. JOHNSON

1 of the police, and other law enforcement personnel?

2 A. I have a distrust or fear that someone has that
3 much power, just to possibly disrupt your whole life, and
4 it could have cost my job, it could have cost family, it
5 could have cost a lot of things, but just have fear of this
6 thing even happening again.

7 Q. Going back to Central Booking, do you know why
8 there were the insects in Central Booking?

9 A. Why there were?

10 Q. Insects. You said you've suffered an insect
11 bite. Do you know why there were insects there?

12 A. I don't know. The place was filthy. It was
13 filthy. People laying on chipped floors, painted floors.
14 Someone was screaming half of the night. The ambulance
15 came and got him out. You know, toilet overflowed at one
16 point in one of the cells. We were standing there and
17 stuff. Not knowing who's in there with you is also another
18 thing. It's like, do I talk to anyone, do I say anything?
19 Just trying to survive, and get through it.

20 Q. You were in Central Booking overnight; is that
21 correct?

22 A. Yes.

23 Q. Do you know how many hours you were there for?

24 A. Probably about eight.

25 Q. Were you ever charged with anything as a result

L. S. JOHNSON

1 of this incident?

2 A. No.

3 Q. Did Dr. Kwieve ever comment on any other
4 conditions, such as blood pressure, or anything else that
5 was a result of this incident?

6 A. No.

7 MS. KLAFTER: I'm good. Thank you.

8 (Whereupon, at 3:06 P.M., the Examination of
9 this witness was concluded.)

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L. S. JOHNSON

1 D E C L A R A T I O N .

2

3 I hereby certify that having been first duly
4 sworn to testify to the truth, I gave the above testimony.

5

6 I FURTHER CERTIFY that the foregoing transcript
7 is a true and correct transcript of the testimony given by
8 me at the time and place specified hereinbefore.

9

10

11

12

LINSEY SHAWN JOHNSON

13

14

15 Subscribed and sworn to before me

16 this ____ day of _____ 20____.

17

18

19

NOTARY PUBLIC

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22

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41

L. S. JOHNSON

1 EXHIBITS

2

3 DEFENDANT EXHIBITS

4

5 EXHIBIT EXHIBIT PAGE

6 NUMBER DESCRIPTION

7 (None)

8

9

10

11 INDEX

12

13 EXAMINATION BY PAGE

14 MR. JIMENEZ 5

15 MS. KLAFTER 38

16

17 INFORMATION AND/OR DOCUMENTS REQUESTED

18 INFORMATION AND/OR DOCUMENTS PAGE

19 (None)

20

21

22 QUESTIONS MARKED FOR RULINGS

23 PAGE LINE QUESTION

24 (None)

25

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1 C E R T I F I C A T E

2

3 STATE OF NEW YORK)
4 COUNTY OF NASSAU) SS.:

5

6 I, YEHUDIS MALEK, a Notary Public for and
7 within the State of New York, do hereby certify:

8 That the witness whose examination is
9 hereinbefore set forth was duly sworn and that such
10 examination is a true record of the testimony given by that
11 witness.

12 I further certify that I am not related to any
13 of the parties to this action by blood or by marriage and
14 that I am in no way interested in the outcome of this
15 matter.

16 IN WITNESS WHEREOF, I have hereunto set my hand
17 this 10th day of August 2018.

18

19

20

21

22

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25

Yehudis Malek

YEHUDIS MALEK

L. S. JOHNSON

44

1 100 [2] - 1:17, 2:10 10007 [2] - 1:18, 2:10 10th [1] - 43:17 11102 [1] - 2:5 11435 [1] - 5:11 123-33 [1] - 20:21 12865/15 [1] - 1:5 141st [1] - 12:1 16 [1] - 10:16 171222 [1] - 2:12 1968 [1] - 9:11 1985 [1] - 11:20 1991 [1] - 12:7 1996 [1] - 20:24	50-h [1] - 8:22 5909 [2] - 12:22, 13:20 5:00 [1] - 13:7	29:4, 30:5, 30:20, 33:22, 34:14, 35:19, 37:7 afternoon [1] - 5:12 again [7] - 6:20, 14:8, 14:16, 22:19, 24:12, 37:8, 39:6	17:4, 17:6, 17:13, 19:10, 20:12, 22:4, 22:12, 22:13, 22:15, 22:17, 23:18, 23:25, 24:3, 24:5, 25:21, 26:2, 26:9, 26:24, 27:20, 27:23, 27:24, 28:13, 28:16, 30:21, 31:13, 32:5, 32:10, 33:3, 33:6, 33:19, 33:22, 34:7, 34:10, 34:14, 34:17, 36:5, 36:8, 36:9, 36:11, 36:16, 37:10, 37:13, 37:17, 38:17, 40:3, 43:12
2 2,700 [1] - 13:15 20 [1] - 16:18 2008 [7] - 16:6, 16:8, 16:18, 29:23, 30:14, 35:21, 36:6 2012 [2] - 10:18, 20:24 2015 [8] - 8:23, 10:4, 14:6, 14:9, 15:10, 16:6, 16:20, 31:8, 36:15 2015-048170 [1] - 2:11 2018 [2] - 1:9, 43:17 20 [1] - 41:16 20s [1] - 19:14 21 [1] - 17:25 215 [1] - 10:1 220 [1] - 10:5 221 [2] - 3:1, 4:1 221.1 [1] - 3:2 221.2 [2] - 3:12, 4:5 221.3 [1] - 4:2 226 [1] - 5:10 23 [1] - 14:4 24 [3] - 7:12, 7:17, 16:24 2:13 [1] - 1:11	7 73rd [12] - 23:10, 23:12, 23:15, 23:19, 23:24, 24:6, 24:8, 25:1, 25:21, 25:25, 26:18, 33:17 7th [1] - 2:4	against [2] - 1:4, 29:14 ago [3] - 16:4, 32:7, 33:9 AGREED [4] - 4:7, 4:10, 4:13, 4:16 aid [2] - 29:10, 29:12 alcohol [3] - 7:16, 16:25, 17:2 Alexander [1] - 11:15 All [1] - 3:4 all [25] - 3:12, 4:4, 4:11, 4:13, 4:13, 5:18, 5:20, 6:1, 7:8, 13:22, 19:22, 20:10, 22:22, 23:16, 23:21, 23:22, 24:15, 24:20, 25:11, 26:19, 27:10, 33:13, 34:23, 35:1, 36:6 allegedly [5] - 16:17, 21:9, 30:8, 30:15, 35:20 allegre [1] - 7:13 Allegra [1] - 7:19 allegra-D [1] - 7:13 Allegra-D [1] - 7:19 allergies [1] - 7:13 allowed [3] - 22:9, 25:3, 28:9 almost [1] - 30:24 along [2] - 26:7, 38:18 also [6] - 6:14, 6:16, 8:22, 25:8, 28:20, 39:17 always [2] - 7:7, 35:8 am [2] - 43:12, 43:14 ambulance [1] - 39:14 AND [4] - 4:7, 4:10, 4:13, 4:16 AND/OR [2] - 42:17, 42:18 another [4] - 19:4, 19:6, 24:16, 39:17 answer [12] - 3:5, 3:8, 3:12, 3:12, 3:15, 3:16, 3:17, 6:8, 6:15, 6:20, 7:6 answered [3] - 3:14, 4:5, 6:8 answering [1] - 6:12 answers [2] - 5:20, 6:1 anxiety [4] - 30:24, 31:20, 32:8 any [74] - 3:9, 3:14, 4:8, 5:23, 6:4, 7:10, 7:12, 7:14, 7:16, 7:19, 7:23, 8:11, 8:13, 8:16, 8:24, 10:11, 12:10, 14:6, 14:17, 14:23, 14:25, 15:3, 16:16, 16:25,	Any [1] - 3:15 anyone [10] - 8:13, 9:2, 9:5, 15:3, 18:2, 26:5, 27:16, 28:7, 29:20, 39:18 anything [13] - 5:23, 8:16, 14:11, 21:6, 21:19, 24:18, 28:15, 28:19, 35:25, 38:17, 39:18, 39:25, 40:4 apart [1] - 8:1 Apartment [1] - 5:10 apply [1] - 3:6 appreciate [1] - 7:1 approach [1] - 18:25 approached [1] - 18:2 appropriate [2] - 3:7, 4:14 approximate [1] - 10:2 approximately [2] - 13:7, 13:10 April [3] - 31:6, 31:7, 31:8 architecture [1] - 12:3 are [7] - 8:14, 8:20, 10:8, 10:8, 12:16, 34:7, 37:13 area [2] - 32:12, 34:2 around [6] - 10:3, 17:1, 21:23, 33:13, 34:2, 38:14 arraignment [1] - 29:14 arrest [7] - 21:14, 28:18, 28:19, 34:18, 34:25, 37:14, 37:18 arrested [6] - 15:11, 21:17, 35:9, 35:12, 35:14, 38:10 arrived [2] - 24:8, 27:15 Article [1] - 3:7 Arts [2] - 12:9, 12:24 as [29] - 3:8, 3:9, 3:15, 4:8, 4:11, 5:1, 5:3, 6:15, 6:20, 7:8, 8:5, 15:20, 18:10, 26:12, 30:9, 31:22, 32:10, 32:21, 34:17, 34:22, 34:23, 37:2, 38:4, 38:16, 38:25, 39:25, 40:4 ask [6] - 6:24, 8:19, 15:19, 16:15, 20:12, 28:11, 28:17, 37:4 asked [18] - 6:7, 7:6,
3 31 [6] - 3:7, 10:4, 14:5, 14:9, 15:10, 16:20 31-19 [1] - 2:4 3115 [3] - 3:3, 3:10, 3:15 38 [1] - 42:15 3:06 [1] - 40:8	8 8 [1] - 1:9 83rd [1] - 20:21 8401 [4] - 5:10, 10:17, 11:1, 11:9 8:00 [1] - 17:1 8:50 [1] - 13:6	9 9:00 [1] - 16:23 9:30 [1] - 16:23	4 4th [1] - 1:18
5 5 [2] - 9:11, 42:14 5th [1] - 10:1	9 9:00 [1] - 16:23 9:30 [1] - 16:23	A ability [1] - 7:20 able [1] - 19:15 about [28] - 8:14, 10:1, 10:5, 13:6, 13:14, 14:4, 14:5, 15:7, 16:7, 16:8, 16:9, 17:1, 27:20, 28:18, 28:19, 30:23, 31:3, 31:4, 32:16, 35:8, 35:7, 35:19, 35:25, 36:12, 36:18, 37:11, 38:23, 39:24 above [1] - 41:4 accepted [1] - 30:16 accompanied [1] - 3:16 accurate [2] - 5:17, 6:20 accurately [2] - 6:15, 7:24 ACD [1] - 30:17 acquaintances [1] - 15:3 across [1] - 17:15 act [1] - 28:24 action [1] - 43:13 activated [1] - 18:18 actually [2] - 20:17, 29:6 add [1] - 7:7 address [9] - 5:9, 11:2, 11:3, 11:9, 12:21, 20:22, 20:23, 21:4 Adjournment [1] - 30:17 advice [1] - 25:18 Affairs [1] - 37:11 affect [1] - 7:20 affected [1] - 34:25 after [10] - 21:6, 22:3,	5 5 [2] - 9:11, 42:14 5th [1] - 10:1

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45

L. S. JOHNSON

20:1, 20:17, 20:20, 21:3, 21:10, 21:11, 21:23, 21:25, 23:1, 23:2, 25:16, 26:9, 28:19, 29:15 asking [1] - 16:7 assume [2] - 9:14, 35:12 assuming [5] - 15:7, 26:21, 30:10, 30:13, 32:3 Astoria [1] - 2:5 at [59] - 1:16, 3:2, 3:2, 3:5, 3:8, 3:12, 6:1, 6:4, 8:24, 10:17, 12:20, 13:9, 13:18, 13:20, 17:9, 17:22, 17:24, 18:1, 18:12, 19:22, 20:9, 20:10, 20:20, 20:23, 22:12, 22:21, 23:16, 23:20, 23:21, 23:22, 23:25, 24:8, 24:25, 25:21, 25:25, 26:18, 27:10, 27:21, 28:1, 28:14, 28:23, 29:2, 29:14, 29:20, 30:2, 31:2, 31:14, 32:14, 33:17, 33:24, 34:23, 35:1, 36:1, 36:6, 39:15, 40:8, 41:8 attain [1] - 12:8 attend [3] - 11:14, 11:21, 11:23 attendance [1] - 3:11 attendants [1] - 27:16 attention [2] - 24:3, 25:24 attorney [7] - 3:9, 3:15, 4:3, 5:13, 6:6, 9:3, 29:7 Attorneys [2] - 2:3, 2:8 attorneys [2] - 4:16, 4:17 August [1] - 43:17 august [1] - 1:9 Avenue [3] - 2:4, 12:1, 20:21 aware [1] - 37:13 away [2] - 35:12, 35:13	5:25, 6:19, 15:21, 21:16, 29:19, 38:7, 38:9 because [15] - 6:17, 15:22, 17:15, 19:11, 22:5, 23:1, 28:22, 30:12, 31:1, 32:24, 34:8, 37:3, 37:5, 38:12, 38:15 been [17] - 5:2, 6:7, 8:2, 9:7, 10:9, 11:12, 13:9, 15:11, 15:13, 15:15, 26:17, 30:25, 34:23, 35:9, 35:12, 37:7, 41:3 beer [1] - 17:1 BEFORE [1] - 1:14 before [20] - 1:18, 3:5, 4:8, 4:8, 4:11, 5:14, 6:8, 6:12, 7:10, 8:3, 8:5, 10:9, 18:4, 18:8, 18:16, 20:17, 20:22, 22:25, 24:12, 41:15 begin [1] - 16:15 behind [5] - 17:11, 17:12, 18:10, 18:14, 18:16, 21:25 being [11] - 5:22, 14:15, 22:13, 22:20, 26:24, 27:8, 29:13, 30:20, 33:22, 36:5 believe [5] - 21:15, 21:24, 29:22, 30:11 belive [1] - 15:5 belongings [1] - 22:4 besides [2] - 9:3, 9:7 between [2] - 4:16, 16:23 Beverley [2] - 12:22, 13:20 bl [1] - 14:3 bi-weekly [1] - 14:3 birth [1] - 9:10 birthday [1] - 17:23 bit [1] - 33:11 bite [5] - 32:13, 33:9, 33:16, 33:20, 33:23, 39:11 blank [1] - 36:3 blond [1] - 19:16 blood [2] - 40:4, 43:13 blow [1] - 38:21 Board [1] - 36:12 Booking [14] - 26:13, 26:16, 26:23, 27:8, 27:15, 28:1, 28:16, 29:3, 32:21, 33:17, 33:18, 39:7, 39:8, 39:20 born [1] - 9:12 Borough [1] - 25:6 borough [2] - 25:7, 25:9 both [1] - 31:20 break [2] - 6:4, 6:9 Briarwood [1] - 5:10 briefly [1] - 13:2 Broadway [1] - 17:14 Brooklyn [4] - 9:13,	11:18, 17:22, 25:12 brother [1] - 17:21 brought [1] - 29:13 brown [1] - 19:16 bruising [5] - 32:12, 33:25, 34:1, 34:5, 34:8, 34:11 bugs [2] - 33:12, 33:13 building [2] - 12:20, 13:9 but [11] - 7:2, 20:19, 27:19, 30:22, 34:3, 34:15, 36:6, 36:16, 36:23, 37:8, 41:7, 43:10, 43:13 BY [5] - 2:5, 2:11, 5:5, 38:1, 42:13	34:3, 34:15 CCRB [2] - 36:16, 37:8 cell [10] - 22:7, 24:9, 24:11, 24:13, 24:23, 25:25, 26:3, 28:5, 28:7, 28:8 cells [1] - 39:16 Central [14] - 26:13, 26:16, 26:23, 27:8, 27:15, 28:1, 28:16, 29:2, 32:21, 33:17, 33:18, 39:7, 39:8, 39:20 certify [3] - 41:3, 43:7, 43:12 CERTIFY [1] - 41:6 chained [2] - 32:16, 33:1 character [3] - 8:6, 35:17, 36:21 charge [5] - 4:17, 13:3, 25:11, 29:13, 30:7 charged [1] - 39:25 chasing [1] - 28:25 check [2] - 13:14, 27:16 children [2] - 10:11, 10:13 chipped [1] - 39:13 Church [2] - 1:17, 2:10 citizen [1] - 9:14 CITY [3] - 1:6, 2:8, 2:9 City [5] - 1:17, 5:13, 11:24, 12:19, 23:2, 23:4 Civil [1] - 3:3 civil [2] - 8:2, 8:7 Civilian [1] - 36:12 civilians [1] - 26:24 Claim [2] - 8:20, 8:21 clarify [1] - 19:18 clear [4] - 3:9, 3:16, 5:17, 16:8 clearly [2] - 4:6, 5:20 clerk [1] - 4:8 close [1] - 26:18 closely [1] - 25:12 closest [1] - 17:14 coat [1] - 24:20 cold [1] - 26:20 college [2] - 11:21, 11:23 College [2] - 11:24, 12:13 color [1] - 19:16 come [2] - 26:2, 28:17 comes [1] - 35:8 comment [3] - 28:21, 30:2, 40:3 comments [1] - 3:11 committed [2] - 21:9, 35:20 communicating [1] - 4:3 Communication [1] - 4:2 communication [2] - 4:4,
B B [2] - 38:9, 42:1 b [2] - 3:3, 3:7 Bachelor's [1] - 12:9 back [17] - 7:7, 17:16, 19:7, 20:7, 20:8, 20:9, 20:14, 20:16, 20:19, 20:20, 20:25, 21:15, 21:16, 22:1, 23:6, 35:20, 39:7 backed [1] - 29:1 backseat [1] - 22:2 basically [3] - 23:4, 25:11, 25:16 basis [2] - 3:9, 3:16 be [20] - 3:2, 3:4, 3:5, 3:6, 3:8, 3:16, 4:4, 4:6, 4:8, 4:11, 4:13, 4:14, 4:17,	C C [4] - 2:1, 41:1, 43:1 c [1] - 3:3 call [7] - 24:25, 25:3, 25:5, 28:9, 28:11, 37:2, 37:7 called [5] - 5:1, 8:21, 30:17, 36:11, 37:4, 37:10 Cambridge [1] - 12:12 came [9] - 17:11, 19:3, 19:18, 19:22, 20:14, 20:16, 20:19, 21:16, 39:15 camera [1] - 15:23 cameras [1] - 15:25 campus [1] - 11:25 can [7] - 6:20, 7:1, 7:7, 15:19, 15:21, 19:14, 24:20 can you [1] - 19:10 can't [2] - 5:23, 7:23 cannot [1] - 4:13 capacity [1] - 36:9 car [33] - 17:18, 18:2, 18:4, 18:7, 18:16, 18:18, 18:19, 18:21, 18:24, 19:7, 20:7, 20:8, 20:9, 20:15, 20:16, 20:20, 21:15, 21:20, 21:23, 22:2, 22:5, 22:6, 23:1, 23:6, 23:11, 23:18, 37:13, 38:6, 38:11, 38:14 carry [1] - 38:11 cars [3] - 18:10, 18:13 CARTER [1] - 2:7 case [3] - 5:14, 8:1, 38:13 cases [1] - 30:4 cause [2] - 3:14, 26:5 caused [4] - 30:22, 32:24,		

46

L. S. JOHNSON

4:5 Complaint (1) - 36:12 complaint (1) - 36:14 complaints (2) - 36:11, 37:10 complete (1) - 3:17 compliance (1) - 3:4 comptroller's (1) - 8:19 concluded (1) - 40:9 condition (2) - 14:14, 27:17 conditions (3) - 14:7, 30:22, 40:4 CONDUCT (2) - 3:1, 4:1 conduct (1) - 29:17 confidentiality (1) - 3:13 conflict (1) - 13:3 confusingly (1) - 6:18 consent (1) - 4:4 consume (1) - 16:25 consumed (1) - 7:16 contacted (2) - 37:7, 37:8 contacts (1) - 14:19 Contemplation (1) - 30:17 continue (1) - 31:25 Control (1) - 2:12 controlling (1) - 4:14 Convent (1) - 12:1 conversation (1) - 23:5 convicted (1) - 15:13 cop (1) - 38:6 copy (3) - 4:17, 35:23, 38:11 CORPORATION (1) - 2:7 correct (4) - 7:8, 17:18, 39:21, 41:7 cost (3) - 39:4, 39:5 could (11) - 19:5, 25:19, 26:7, 31:11, 35:24, 38:7, 38:9, 38:12, 39:4, 39:5 COUNSEL (1) - 2:7 count (1) - 22:5 COUNTY (2) - 1:1, 43:4 couple (2) - 5:15, 15:5 course (1) - 3:10 court (3) - 3:13, 4:9, 30:3 COURT (1) - 1:1 Court (2) - 1:16, 5:21 CPLR (6) - 3:7, 3:10, 3:15, 4:11, 4:13, 4:14 Craig (1) - 25:7 crime (2) - 15:13, 21:9 criminal (3) - 8:8, 8:9, 30:3 cross (1) - 17:13 Crown (1) - 11:18 cuffed (1) - 22:1 current (2) - 11:9, 30:10	currently (2) - 12:16, 12:18 D d (1) - 3:3 D (4) - 7:13, 7:19, 41:1, 42:11 daily (2) - 30:24 dark (5) - 26:21, 32:20, 32:25, 33:1, 36:4 DATE (1) - 1:9 date (6) - 9:10, 10:2, 10:25, 13:16, 14:3, 16:11 daughter (3) - 10:14, 10:15, 10:22 day (8) - 13:24, 16:21, 26:15, 34:19, 38:15, 41:16, 43:17 days (1) - 13:5 deal (2) - 35:5, 35:7 dealing (1) - 38:20 dean (1) - 13:1 December (1) - 9:11 deamed (1) - 4:13 defect (1) - 3:9 DEFENDANT (1) - 42:3 defendant (1) - 8:2 Defendants (1) - 2:8 DEFENDANTS (1) - 1:7 defending (1) - 35:16 degree (1) - 12:8 department (1) - 25:13 DEPARTMENT (3) - 1:6, 2:8, 2:9 Department (2) - 1:17, 12:19 deponent (6) - 3:8, 3:12, 3:15, 3:17, 4:2, 4:3 deposition (11) - 3:3, 3:5, 3:5, 3:6, 3:8, 3:12, 3:18, 4:3, 5:16, 8:10, 8:17 DEPOSITIONS (2) - 3:1, 4:1 Depositions (1) - 3:2 describe (2) - 6:1, 19:10 described (2) - 22:3, 31:22 DESCRIPTION (1) - 42:6 design (1) - 12:3 determining (1) - 4:4 did (29) - 8:13, 18:6, 18:24, 19:21, 20:10, 20:20, 21:13, 22:3, 22:8, 22:13, 22:15, 22:17, 22:21, 23:21, 26:2, 26:4, 26:6, 26:7, 27:18, 28:16, 28:20, 29:20, 29:22, 30:25, 31:15, 35:12, 35:15, 40:3	did he (5) - 21:6, 21:8, 21:22, 25:18, 31:19 did it (1) - 18:21 did they (6) - 22:9, 24:16, 27:10, 27:23, 28:20, 36:25 did you (47) - 8:10, 8:22, 8:24, 10:25, 11:14, 11:19, 11:21, 11:23, 12:4, 12:8, 14:6, 16:25, 17:4, 17:6, 17:9, 18:4, 18:18, 20:3, 20:12, 22:7, 23:15, 23:21, 23:25, 24:3, 24:5, 24:25, 25:5, 25:24, 27:7, 27:20, 28:11, 29:24, 30:20, 31:9, 31:25, 32:5, 32:8, 33:3, 33:6, 33:19, 33:22, 34:10, 34:17, 35:19, 36:18, 36:23, 38:16 didn't (3) - 21:12, 21:19, 23:3, 28:15, 28:25, 29:16, 30:19, 37:5, 37:6 different (2) - 17:22, 23:7 dinner (1) - 17:23 direct (1) - 3:15 direction (1) - 3:16 Director (1) - 25:7 director (2) - 25:8, 25:10 discipline (1) - 13:3 disciplined (1) - 34:23 discon (4) - 21:11, 21:12, 29:16, 29:17 discuss (2) - 25:14, 37:5 discussed (1) - 9:2 discussing (2) - 8:1, 10:3 discussion (3) - 9:17, 27:13, 37:21 Dismissal (1) - 30:18 dismissal (2) - 30:9, 38:11 dismissals (1) - 30:13 dismissed (2) - 30:4, 30:10 disorderly (1) - 29:17 disrupt (1) - 39:3 distrust (1) - 39:2 Division (1) - 37:11 do (11) - 5:23, 6:2, 11:5, 20:5, 24:16, 25:20, 35:4, 38:22, 39:18, 43:7 do you (35) - 10:11, 10:13, 10:19, 10:21, 11:4, 11:6, 12:20, 13:5, 13:11, 13:13, 14:19, 14:23, 14:25, 15:3, 16:3, 16:11, 16:13, 16:16, 16:20, 17:13, 20:25, 26:15, 29:10, 30:15, 31:22, 32:10, 33:10, 33:16, 36:5, 36:8, 38:3, 38:25, 39:7, 39:11, 39:23	doctor (11) - 14:13, 14:15, 31:1, 31:3, 31:4, 31:9, 31:13, 31:14, 31:15, 31:25, 32:8 doctors (1) - 32:5 DOCUMENTS (2) - 42:17, 42:18 documents (4) - 8:11, 8:13, 8:14, 8:16 does (1) - 3:17 does that (2) - 7:19, 25:9 doing (2) - 5:15, 27:18 don't (26) - 6:16, 6:23, 6:24, 6:25, 7:2, 7:3, 15:6, 15:7, 19:13, 19:17, 22:23, 25:19, 30:1, 31:16, 31:21, 31:24, 33:12, 33:14, 35:18, 36:3, 36:24, 39:12 done (1) - 5:18 down (12) - 5:22, 5:23, 18:10, 21:25, 22:3, 22:12, 22:19, 24:16, 32:19, 32:21, 34:20, 35:22 Dr (2) - 31:10, 40:3 drink (1) - 6:5 drive (1) - 23:14 driver's (5) - 11:4, 19:3, 19:19, 19:23, 20:1 driving (5) - 17:17, 17:20, 30:24, 38:5, 38:7 dropped (1) - 17:21 drove (2) - 18:10, 23:11 drugs (3) - 7:12, 17:4, 17:6 duly (3) - 5:2, 41:3, 43:9 during (7) - 3:8, 3:10, 22:12, 22:19, 23:14, 23:24, 29:18 duties (2) - 13:2, 13:22 E E (8) - 2:1, 5:1, 41:1, 42:1, 42:11, 43:1 e (2) - 3:4, 36:23 e-mail (1) - 36:23 each (1) - 6:13 earlier (3) - 7:7, 10:8, 17:23 Eastern (1) - 17:11 easy (1) - 31:18 eat (1) - 28:15 education (2) - 12:11, 12:12 Education (1) - 12:19 Edwards (2) - 25:7, 25:15 effect (1) - 4:8 effects (2) - 7:19, 7:20 eight (1) - 39:24 either (4) - 6:17, 20:10,
--	--	---	--

DIAMOND REPORTING (877) 624-3287 info@diamondreporting.com

47

L. S. JOHNSON

22:21, 27:7 else [7] - 9:5, 14:11, 18:2, 24:19, 28:7, 31:23, 40:4 embarrassment [1] - 38:20 emotional [1] - 34:15 employed [3] - 12:16, 12:18, 13:16 employees [1] - 36:16 employer [1] - 34:21 employment [2] - 34:23, 35:1 EMS [1] - 27:16 encounter [1] - 17:9 encountered [1] - 16:22 encountering [1] - 16:24 enforce [1] - 3:13 enforcement [1] - 39:1 entail [1] - 26:9 entire [1] - 9:23 error [1] - 3:9 ESQ [3] - 2:5, 2:7, 2:11 estimate [1] - 7:1 even [2] - 35:25, 39:6 event [1] - 4:5 eventually [3] - 21:16, 26:13, 30:23 ever [20] - 8:2, 8:5, 9:7, 10:9, 11:12, 12:14, 14:16, 15:13, 15:15, 28:11, 29:13, 30:7, 33:6, 34:10, 35:9, 35:19, 36:8, 36:25, 39:25, 40:3 Every [1] - 3:7 every [2] - 13:12, 13:14 everything [3] - 5:16, 5:22, 35:8 exactly [2] - 25:9, 33:25 EXAMINATION [4] - 1:14, 5:5, 38:1, 42:13 examination [5] - 3:11, 4:11, 4:17, 43:8, 43:10 Examination [1] - 40:8 examined [1] - 5:3 examining [1] - 3:17 except [4] - 3:3, 3:4, 3:12, 3:15 Except [1] - 3:10 EXHIBIT [2] - 42:5 EXHIBITS [1] - 42:3 experience [1] - 38:3 explained [1] - 29:16 explaining [1] - 35:16 extent [1] - 3:10 eye [2] - 14:10, 28:20 eyes [2] - 28:23, 28:24	F F [1] - 43:1 face [1] - 21:23 facial [1] - 19:14 faded [1] - 34:5 family [2] - 14:25, 39:4 fast [1] - 6:17 fear [3] - 38:25, 39:2, 39:5 February [1] - 36:15 feel [1] - 38:6 feeling [1] - 32:7 felt [1] - 28:19 few [1] - 18:17 field [1] - 31:13 figure [1] - 38:19 File [1] - 2:11 filed [2] - 8:18, 35:24 FILLAS [1] - 2:3 filthy [2] - 39:12, 39:13 fine [2] - 6:5, 6:25 fingerprinting [1] - 24:11 fingerprints [1] - 28:1 finished [1] - 6:12 first [14] - 5:2, 5:19, 6:8, 16:21, 17:9, 18:9, 20:17, 21:15, 21:24, 31:2, 31:4, 35:24, 37:6, 41:3 flashlight [1] - 19:5 Floor [2] - 1:18, 2:4 floors [2] - 39:13 followed [1] - 21:21 follows [1] - 5:4 food [2] - 25:22, 28:13 foot [4] - 18:25, 32:13, 33:20, 33:23 For [1] - 12:24 for [33] - 2:3, 2:8, 3:6, 4:3, 4:4, 4:5, 4:6, 4:11, 4:16, 5:7, 5:13, 6:12, 6:19, 7:10, 7:13, 8:10, 8:16, 9:19, 14:13, 14:17, 14:20, 14:21, 15:4, 15:6, 15:15, 17:16, 17:23, 20:1, 20:25, 21:8, 21:10, 23:1, 23:2, 25:8, 25:11, 30:3, 30:7, 30:12, 30:14, 30:15, 30:21, 31:15, 31:19, 31:25, 32:5, 32:8, 33:6, 33:23, 34:10, 34:14, 39:23, 43:6 FOR [3] - 3:1, 4:1, 42:22 force [1] - 4:8 foregoing [1] - 41:6 form [1] - 3:9 former [3] - 15:5, 20:21, 21:4 forth [3] - 3:13, 4:5, 43:9 four [2] - 9:21, 26:18	framed [1] - 3:8 Friday [1] - 13:6 friends [1] - 15:3 from [15] - 8:1, 8:23, 12:12, 13:6, 17:20, 20:14, 20:24, 23:14, 23:24, 29:23, 32:14, 34:17, 38:5, 38:8, 38:16 front [4] - 18:13, 22:23, 27:6, 30:4 full [1] - 6:14 Fulton [2] - 18:9, 18:10 furnished [1] - 4:17 further [2] - 37:23, 43:12 FURTHER [5] - 4:7, 4:10, 4:13, 4:16, 41:6 G gave [4] - 7:5, 8:15, 20:5, 41:4 general [1] - 3:2 gestures [1] - 5:23 get [5] - 5:14, 7:10, 13:11, 13:13, 39:19 getting [3] - 14:2, 30:24, 38:8 give [10] - 5:14, 5:20, 6:20, 9:23, 18:20, 20:3, 21:22, 25:18, 27:23, 31:19 given [5] - 3:6, 29:7, 30:7, 41:7, 43:10 giving [1] - 6:1 glasses [2] - 14:19, 14:20 go [11] - 5:16, 7:7, 16:6, 16:20, 27:18, 29:6, 31:3, 31:9, 32:20, 34:19, 35:10 goes [1] - 17:15 going [13] - 5:14, 9:19, 15:23, 16:7, 16:15, 21:1, 21:16, 30:16, 32:2, 33:14, 38:7, 38:8, 39:7 Gomez [2] - 35:24, 36:9 GOMEZ [2] - 1:6, 2:9 good [2] - 5:12, 40:7 got [4] - 17:17, 22:25, 35:22, 39:15 gotten [1] - 15:22 graduate [2] - 11:19, 12:4 Griffin [1] - 29:9 ground [1] - 5:15 grounds [1] - 4:5 groups [1] - 35:6 guess [3] - 7:1, 20:7, 35:4 guilty [2] - 29:25 guys [1] - 8:15 gym [2] - 32:2, 32:4	H H [3] - 5:1, 42:1 had [30] - 14:10, 14:15, 14:16, 17:1, 17:2, 17:21, 19:4, 20:16, 20:17, 20:22, 20:23, 20:24, 21:9, 22:11, 23:1, 23:2, 23:4, 23:5, 28:14, 28:15, 32:3, 32:12, 32:13, 33:4, 33:20, 34:19, 35:23, 35:24, 37:2 Hall [1] - 25:20 hair [2] - 19:14, 19:15 half [1] - 39:14 Hamilton [1] - 11:15 hand [6] - 32:12, 33:25, 34:1, 34:8, 34:11, 43:16 handcuffs [3] - 22:13, 22:21, 24:1, 24:22, 34:3, 35:14 handed [1] - 10:6 handle [1] - 25:17 hands [2] - 21:24, 21:25 happened [5] - 20:14, 29:21, 36:4, 36:19, 37:4, 38:20 happening [1] - 39:6 happy [1] - 6:19 harm [1] - 26:5 has [7] - 6:7, 11:12, 17:15, 34:5, 34:25, 36:2, 39:2 hasn't [1] - 30:25 have [39] - 3:17, 5:17, 6:8, 6:11, 7:19, 10:11, 10:13, 11:4, 12:12, 14:6, 14:20, 14:23, 14:25, 15:5, 16:16, 18:22, 22:7, 23:3, 26:7, 26:17, 29:21, 29:24, 32:10, 35:9, 35:16, 36:1, 36:2, 36:5, 36:8, 37:23, 38:17, 38:25, 39:2, 39:4, 39:5, 43:16 have you [20] - 7:12, 7:16, 8:1, 8:5, 9:2, 9:7, 10:9, 10:17, 12:10, 12:14, 13:8, 15:10, 15:13, 15:15, 34:13, 34:22, 35:9, 36:11, 37:7, 37:10 having [4] - 5:2, 17:23, 27:21, 41:3 he [41] - 17:25, 19:4, 19:12, 19:22, 19:25, 20:1, 20:5, 20:7, 20:8, 20:16, 20:17, 20:18, 20:19, 20:20, 21:7, 21:11, 21:12, 21:15, 21:16, 21:18, 21:20, 21:25, 23:2, 25:12, 25:19, 28:21, 28:23, 28:24, 30:3, 30:11, 31:14,
---	---	---	---

48

L. S. JOHNSON

31:16, 31:17, 31:22, 37:4, 37:6 he's [2] - 25:7, 25:11 head [11] - 5:24, 11:6, 32:14, 32:16, 32:17, 32:21, 32:24, 33:4, 33:7 headaches [7] - 30:23, 31:3, 31:5, 31:20, 32:1, 32:5, 38:4 health [3] - 14:17, 34:13, 34:14 hear [2] - 6:14, 35:11 hearing [2] - 14:23, 35:25 heavy [1] - 18:12 heel [1] - 32:13 height [1] - 9:25 heights [1] - 11:18 held [5] - 1:16, 9:18, 27:14, 28:16, 29:2, 37:22 help [1] - 5:16 her [4] - 29:9, 29:15, 30:4 here [5] - 7:1, 16:5, 16:16, 34:7, 38:3 hereby [2] - 41:3, 43:7 herein [1] - 4:18 hereinbefore [2] - 41:6, 43:9 hereto [2] - 4:14, 4:16 hereunto [1] - 43:16 high [1] - 11:14 High [1] - 11:15 him [16] - 20:3, 20:5, 20:17, 20:21, 21:4, 21:10, 21:11, 23:2, 23:3, 23:22, 25:16, 28:25, 37:5, 39:15 his [3] - 19:13, 19:15, 21:15 hit [4] - 32:17, 32:21, 32:24, 33:4 hitting [1] - 32:14 home [1] - 33:24 hours [6] - 7:12, 7:17, 13:5, 16:24, 26:18, 39:23 how [12] - 10:15, 10:17, 13:6, 13:13, 14:2, 17:24, 18:7, 18:15, 25:16, 29:2, 35:3, 35:7 how did [2] - 21:18, 38:24 how many [5] - 10:13, 19:2, 27:1, 27:3, 39:23 how often [1] - 13:11	15:9, 15:18, 15:19, 16:5, 17:1, 17:12, 17:14, 17:21, 18:6, 18:9, 18:10, 18:13, 19:11, 19:12, 19:13, 19:14, 19:17, 20:7, 20:16, 20:17, 20:20, 20:21, 20:22, 20:24, 21:10, 21:11, 21:15, 21:16, 21:19, 21:20, 21:21, 21:23, 21:24, 22:8, 22:11, 22:23, 22:24, 23:2, 23:3, 24:10, 24:11, 24:20, 25:6, 25:16, 25:17, 25:19, 26:4, 26:6, 26:7, 26:12, 26:18, 28:19, 27:5, 27:22, 28:15, 28:21, 28:22, 28:25, 29:4, 29:5, 29:9, 29:15, 29:22, 30:1, 30:11, 30:19, 30:23, 30:24, 30:25, 31:1, 31:2, 31:6, 31:12, 31:16, 31:17, 31:21, 31:24, 32:2, 32:3, 32:12, 32:13, 32:21, 33:12, 33:14, 33:24, 34:19, 35:4, 35:5, 35:9, 35:18, 35:22, 35:24, 35:25, 36:3, 36:20, 36:24, 37:2, 37:5, 37:6, 37:23, 38:6, 38:7, 38:11, 38:14, 38:22, 38:23, 38:24, 39:2, 39:12, 39:18, 41:1, 41:3, 41:4, 41:6, 42:1, 42:11, 43:1, 43:6, 43:12, 43:14, 43:16 I [3] - 3:12, 17:16, 20:7 I'd [1] - 18:20 I'll [1] - 6:19 I'm [20] - 5:13, 5:14, 6:17, 9:19, 13:3, 13:6, 15:7, 16:7, 16:15, 26:17, 26:21, 30:10, 30:13, 35:4, 36:4, 38:6, 38:12, 38:15, 40:7 I've [3] - 6:7, 13:9, 15:22 ibuprofen [1] - 31:2 ID [2] - 23:1, 23:3 If [1] - 3:17 If [24] - 3:4, 3:14, 4:8, 5:24, 6:1, 6:4, 6:5, 6:6, 6:16, 6:23, 7:1, 7:2, 7:5, 15:22, 19:15, 21:3, 22:5, 29:10, 30:15, 30:16, 31:20, 31:22, 33:16, 38:6 II [1] - 3:13 III [1] - 3:14 illegal [1] - 17:6 Immediately [1] - 18:19 important [2] - 5:19, 6:11 improper [1] - 3:14 IN [1] - 43:16 in [33] - 3:2, 3:4, 3:9, 3:11, 3:13, 3:15, 4:5, 4:5,	5:13, 5:15, 6:23, 7:12, 8:2, 8:7, 8:10, 12:12, 12:14, 13:3, 14:10, 16:1, 16:6, 16:8, 16:24, 17:22, 18:2, 18:13, 18:15, 19:8, 19:13, 21:19, 22:2, 22:20, 22:23, 22:25, 23:11, 23:18, 24:9, 24:11, 24:12, 24:23, 25:11, 25:24, 26:2, 26:3, 27:3, 27:5, 27:20, 28:5, 28:7, 28:8, 28:16, 30:3, 30:4, 30:12, 30:17, 31:3, 31:6, 31:13, 32:15, 32:17, 32:18, 33:18, 34:7, 35:1, 35:5, 35:13, 35:15, 35:20, 36:4, 36:6, 36:9, 38:11, 38:14, 38:24, 38:8, 39:16, 39:17, 39:20, 43:14 inaccurate [1] - 7:6 incident [27] - 10:3, 10:25, 13:17, 13:19, 13:25, 14:3, 14:5, 14:16, 15:10, 16:8, 16:11, 16:17, 16:20, 30:22, 32:11, 34:14, 34:15, 34:20, 34:22, 35:19, 36:12, 37:11, 38:4, 38:16, 38:25, 40:1, 40:5 incidents [1] - 16:5 include [1] - 3:9 incomplete [1] - 7:6 independent [1] - 16:16 index [1] - 1:4 information [2] - 7:8, 36:2 INFORMATION [2] - 42:17, 42:18 infraction [1] - 35:20 injuries [3] - 30:21, 32:10, 34:15 injury [1] - 34:15 insect [4] - 32:13, 33:9, 33:10, 39:10 insects [3] - 39:8, 39:10, 39:11 instance [1] - 35:16 instructions [2] - 21:21, 21:22 interaction [1] - 22:19 interested [1] - 43:14 interfere [1] - 3:11 interior [1] - 12:3 internal [1] - 37:11 interposed [1] - 3:4 interrupt [1] - 4:3 interviewed [1] - 36:16 into [2] - 22:13, 27:19 involving [2] - 16:5, 16:17 irregularity [1] - 3:10	IS [4] - 4:7, 4:10, 4:13, 4:16 is [25] - 3:5, 3:12, 3:14, 4:4, 5:12, 5:21, 6:6, 6:14, 6:25, 10:15, 11:9, 11:11, 15:19, 17:14, 19:18, 22:25, 29:9, 30:2, 30:3, 38:22, 38:23, 39:17, 41:7, 43:8, 43:10 is that [4] - 5:19, 17:18, 37:2, 39:20 is there [2] - 7:23, 37:17 is this [1] - 31:13 issued [2] - 11:7, 15:15 issues [5] - 14:17, 27:21, 35:6, 35:7 It [3] - 6:15, 6:18, 6:19, 8:9, 11:6, 11:11, 14:8, 15:21, 16:13, 16:21, 16:23, 17:15, 18:4, 18:8, 18:9, 18:10, 18:16, 18:23, 19:12, 20:3, 20:7, 20:8, 21:11, 22:23, 23:3, 23:4, 25:20, 26:15, 26:17, 26:19, 28:21, 29:17, 29:23, 30:2, 30:12, 31:6, 31:18, 31:22, 32:19, 32:24, 33:1, 33:12, 33:18, 33:24, 35:10, 36:1, 36:3, 36:23, 37:3, 37:5, 38:21, 39:4, 39:12, 39:19 IT [4] - 4:7, 4:10, 4:13, 4:16 It's [14] - 5:19, 6:11, 8:21, 13:14, 32:3, 33:9, 35:15, 36:1, 36:2, 38:5, 38:8, 38:15, 38:22, 39:18 its [2] - 18:4, 18:18
J			
J [1] - 5:1 James [1] - 5:12 JAMES [1] - 2:11 January [9] - 10:4, 14:5, 14:9, 15:10, 16:20 Jimenez [1] - 5:13 JIMENEZ [6] - 2:11, 5:6, 9:16, 9:21, 27:12, 37:20, 37:23, 42:14 job [7] - 12:25, 13:22, 23:1, 23:3, 25:8, 25:9, 39:4 jobs [1] - 15:8 JOHNSON [5] - 1:2, 1:15, 2:4, 41:12 Johnson [5] - 5:8, 5:12, 9:8, 15:18, 35:9 judge [5] - 29:4, 29:7, 29:19, 29:24, 30:2, 30:20			

L. S. JOHNSON

Judge (1) - 4:9 jump (1) - 20:25 just (38) - 5:16, 6:18, 7:2, 7:7, 9:21, 16:1, 16:8, 17:17, 17:21, 17:25, 19:18, 21:21, 25:16, 28:24, 28:25, 30:1, 31:1, 31:17, 31:19, 31:20, 32:3, 32:24, 33:1, 33:13, 33:14, 33:24, 35:16, 35:17, 38:6, 38:8, 38:15, 38:19, 39:3, 39:5, 39:19 justice (1) - 13:4	lawyer (1) - 37:6 laying (1) - 39:13 lead (1) - 13:1 learn (1) - 35:19 least (1) - 23:20 led (1) - 22:1 left (8) - 5:21, 10:6, 14:10, 20:17, 26:20, 32:12, 33:25, 34:8 left-handed (1) - 10:6 legal (2) - 29:10, 29:12 let (2) - 6:18, 7:7 let's (8) - 16:20, 17:16, 19:21, 20:25, 29:6, 32:16 Levin (1) - 12:24 liberal (1) - 12:9 license (5) - 11:4, 11:10, 11:12, 20:1, 20:5 life (1) - 39:3 light (6) - 15:24, 15:25, 20:19, 21:1, 30:8, 30:16 lights (3) - 17:11, 18:5, 18:18 like (19) - 15:22, 25:20, 26:4, 26:6, 26:8, 26:19, 28:24, 30:2, 31:1, 31:2, 32:2, 32:19, 35:4, 38:6, 38:12, 38:22, 39:18 limitation (1) - 3:13 LINE (1) - 42:23 lines (2) - 26:7, 38:18 Linsey (2) - 5:8, 9:7 LINSEY (5) - 1:2, 1:15, 2:4, 41:12 listed (1) - 11:9 little (4) - 21:19, 32:14, 33:12, 33:13 live (2) - 10:21, 10:25 lived (4) - 10:17, 20:22, 20:23, 20:24 LLP (1) - 2:3 located (3) - 11:17, 11:25, 12:23 location (4) - 17:9, 23:7, 23:14, 23:24 locations (1) - 17:22 long (5) - 10:17, 13:8, 18:7, 18:15, 29:2 look (2) - 8:24, 28:23 looked (1) - 36:1 looking (2) - 19:11, 30:2 looks (1) - 28:23 loss (2) - 38:17, 38:19 lot (7) - 28:8, 32:4, 35:5, 35:11, 38:19, 38:20, 39:5	37:10 mail (2) - 36:23 Main (4) - 5:10, 10:17, 11:1, 11:9 major (1) - 12:2 make (16) - 3:11, 5:17, 5:19, 5:24, 5:25, 6:2, 6:11, 24:5, 24:25, 25:3, 26:9, 28:9, 28:11, 29:25, 36:14, 36:18 male (1) - 19:13 Malek (1) - 1:19 MALEK (2) - 43:6, 43:20 Manhattan (1) - 17:23 March (1) - 10:18 marijuana (1) - 17:7 MARKED (1) - 42:22 marked (2) - 18:21, 18:23 marriage (1) - 43:13 married (2) - 10:9 Mary (1) - 25:20 master's (1) - 12:12 matter (1) - 43:15 may (2) - 4:8, 4:11 May (2) - 8:23, 16:18 maybe (1) - 16:4 me (32) - 6:19, 7:7, 7:10, 8:15, 9:23, 17:11, 17:12, 18:10, 18:13, 18:14, 20:1, 21:16, 21:20, 21:23, 21:25, 22:1, 22:2, 23:1, 23:2, 26:5, 26:8, 28:19, 28:21, 28:24, 29:17, 31:17, 37:4, 38:7, 38:12, 41:8, 41:15 mean (4) - 18:13, 20:7, 30:1, 35:5 medical (9) - 14:6, 24:3, 25:24, 27:18, 27:19, 30:21, 33:6, 33:22, 34:10 medication (2) - 27:23, 31:19 medications (1) - 7:14 medicine (1) - 31:16 meeting (1) - 36:8 meetings (1) - 25:13 MELISSA (1) - 2:5 members (1) - 14:25 mental (3) - 14:17, 34:13, 34:14 mentioned (3) - 17:17, 32:7, 33:9 met (1) - 10:8 Meyer (1) - 12:24 mid (1) - 19:13 might (3) - 7:20, 26:5, 26:17 military (1) - 12:14 mind (1) - 5:15	minutes (2) - 18:15, 18:17 Miranda (1) - 26:11 miss (1) - 34:17 mistake (3) - 22:25, 27:22, 35:18 mom (1) - 9:6 moment (2) - 32:7, 33:9 Monday (1) - 13:6 monthly (1) - 25:13 more (2) - 19:6, 35:19 morning (1) - 29:5 MR (7) - 5:6, 9:16, 9:21, 27:12, 37:20, 37:23, 42:14 Mr (4) - 5:12, 15:18, 25:15, 35:9 MS (3) - 38:2, 40:7, 42:15 much (6) - 13:13, 14:2, 15:7, 18:14, 25:19, 39:3 My (1) - 5:12 my (44) - 5:20, 9:4, 9:6, 10:22, 14:10, 17:21, 17:23, 19:7, 20:1, 20:21, 21:24, 21:25, 22:1, 22:5, 22:6, 23:1, 23:2, 24:14, 24:15, 24:20, 25:6, 25:8, 28:19, 28:22, 31:14, 32:12, 32:13, 32:14, 34:20, 35:16, 36:1, 36:2, 36:20, 38:11, 38:14, 39:4, 43:16
K Kathy (1) - 29:9 keep (5) - 5:15, 22:9, 33:2, 33:14, 35:16 kick (1) - 22:15 kids (3) - 35:6, 38:22, 38:23 kind (3) - 12:8, 27:24, 33:10 KINGS (1) - 1:1 KLAFTER (4) - 2:5, 38:2, 40:7, 42:15 know (52) - 6:19, 6:23, 6:24, 7:2, 7:7, 7:22, 10:8, 11:6, 15:3, 15:18, 16:5, 18:14, 19:13, 21:10, 21:12, 22:23, 22:25, 24:14, 25:16, 25:17, 25:20, 26:5, 26:6, 26:7, 26:15, 28:22, 29:10, 31:18, 32:3, 32:4, 33:2, 33:10, 33:12, 33:15, 33:16, 35:13, 35:14, 35:17, 35:18, 35:25, 36:3, 37:6, 38:21, 38:22, 38:23, 39:7, 39:11, 39:12, 39:15, 39:23 knowing (2) - 38:9, 39:17 knowledge (2) - 34:25, 37:17 known (1) - 9:7 Kwieve (2) - 31:10, 40:3 KWIEVE (1) - 31:12	L L (2) - 5:1, 41:1 last (4) - 7:12, 7:16, 9:21, 31:11 late (2) - 26:17, 26:19 later (1) - 7:5 Law (2) - 1:17, 3:3 law (2) - 35:5, 39:1 LAW (1) - 2:8 lawsuit (2) - 8:2, 9:2	M made (8) - 3:2, 3:5, 3:12, 4:4, 28:21, 30:2, 36:11,	N N (7) - 2:1, 5:1, 41:1, 42:11 name (7) - 5:7, 5:12, 9:7, 10:23, 29:9, 31:11, 31:17 names (1) - 15:6 narcotics (1) - 17:6 NASSAU (1) - 43:4 nearby (1) - 17:13 need (4) - 6:4, 6:5, 16:6, 31:3 needed (2) - 7:8, 31:17 nephew (2) - 17:21, 17:24 nephew's (1) - 17:23 nervous (1) - 38:8 NEW (5) - 1:1, 1:6, 2:8, 2:9, 43:3 New (15) - 1:17, 1:18, 1:19, 2:5, 2:10, 5:3, 5:10, 5:13, 9:13, 11:24, 12:19, 23:4, 43:7 Newtown (1) - 2:4 next (1) - 29:4 night (4) - 17:1, 17:2, 26:15, 39:14 nightmares (1) - 38:17 no (74) - 5:24, 7:11, 7:15,

50

L. S. JOHNSON

7:18, 7:25, 8:4, 8:12, 9:1, 9:9, 10:10, 11:8, 11:13, 12:15, 14:1, 14:12, 14:18, 14:24, 15:2, 15:9, 15:12, 15:14, 15:17, 16:12, 16:14, 16:19, 17:5, 17:8, 18:3, 19:14, 20:11, 20:13, 21:2, 22:5, 22:14, 22:16, 22:18, 23:17, 23:23, 24:2, 24:4, 24:7, 25:23, 26:1, 26:10, 26:12, 27:9, 27:22, 27:25, 28:10, 28:12, 30:19, 32:2, 32:6, 32:9, 33:5, 33:8, 33:21, 33:24, 34:9, 34:12, 34:16, 34:24, 36:7, 36:10, 36:17, 37:9, 37:12, 37:16, 37:19, 40:2, 40:8, 43:14 No [3] - 1:4, 3:2, 31:2 nobody [1] - 28:19 nod [1] - 5:24 none [1] - 42:7 None [2] - 42:19, 42:24 normally [1] - 13:5 not [20] - 3:4, 3:8, 3:11, 3:15, 3:16, 3:17, 4:3, 4:4, 6:7, 6:13, 7:22, 15:25, 26:12, 29:25, 30:24, 38:9, 38:22, 39:17, 43:12 Notary [4] - 1:19, 4:8, 5:2, 43:6 NOTARY [1] - 41:19 noted [1] - 3:5 nothing [3] - 25:19, 28:25, 37:23 Notice [2] - 8:20, 8:21 now [7] - 9:20, 14:20, 16:7, 17:17, 19:21, 24:21, 29:6 NUMBER [1] - 42:6 number [2] - 9:20, 9:23 NYC [2] - 1:6, 2:9 NYPD [5] - 15:1, 15:4, 16:17, 18:22, 37:11	4:14, 4:17, 5:2, 5:3, 6:13, 5:15, 5:20, 6:5, 7:22, 8:18, 8:20, 8:21, 8:23, 9:10, 10:2, 10:25, 11:6, 12:8, 12:19, 13:3, 13:16, 13:18, 13:24, 14:3, 14:13, 15:5, 15:13, 15:22, 16:1, 16:16, 16:21, 18:13, 19:7, 19:10, 20:10, 22:4, 22:21, 22:25, 23:4, 25:11, 26:2, 26:7, 26:15, 27:7, 27:24, 28:8, 29:25, 30:4, 30:11, 30:17, 31:7, 31:8, 31:18, 32:4, 32:10, 32:13, 32:14, 32:22, 32:23, 33:3, 33:10, 33:19, 34:8, 34:17, 34:22, 34:23, 35:5, 35:11, 35:18, 35:23, 36:5, 36:8, 36:15, 36:16, 37:11, 37:13, 37:17, 38:4, 38:11, 38:16, 38:17, 38:19, 38:20, 38:21, 38:23, 38:25, 39:1, 39:5, 39:14, 39:16, 40:1, 40:5, 40:8, 41:7, 41:16, 43:7, 43:10, 43:13, 43:14, 43:17 off [11] - 9:16, 9:17, 11:6, 17:21, 27:12, 27:13, 28:21, 33:14, 34:19, 37:20, 37:21 off-the-record [3] - 9:17, 27:13, 37:21 offered [2] - 25:21, 28:13 office [1] - 8:19 officer [13] - 3:5, 18:24, 19:3, 19:4, 19:6, 19:18, 22:13, 22:15, 22:17, 23:21, 28:20, 28:21, 37:4 OFFICER [4] - 1:6, 2:9 Officer [14] - 19:12, 19:21, 19:22, 20:9, 20:14, 21:3, 21:13, 23:1, 23:11, 23:15, 26:4, 30:11, 35:23, 36:9 officers [17] - 19:2, 19:8, 19:10, 20:10, 22:4, 22:21, 23:18, 23:25, 26:2, 27:3, 27:7, 28:17, 30:12, 32:23, 33:3, 33:19, 37:14 offices [1] - 1:17 okay [7] - 6:2, 6:9, 6:21, 7:3, 16:9, 16:10, 38:9 old [2] - 10:15, 17:24 on [40] - 4:5, 5:25, 6:6, 6:16, 7:5, 7:8, 9:21, 10:2, 10:25, 11:10, 13:14, 13:16, 13:24, 14:2, 14:5, 15:10, 16:17, 16:20, 17:11, 18:5, 18:9, 18:22, 18:25, 19:4, 22:7, 23:4,	23:19, 24:5, 27:16, 30:9, 30:15, 32:13, 32:22, 33:24, 33:25, 35:7, 36:4, 37:14, 39:13, 40:3 once [5] - 18:24, 20:5, 21:3, 24:8, 27:15 one [23] - 6:13, 10:14, 15:9, 15:22, 16:1, 16:6, 19:3, 19:6, 19:11, 20:25, 23:20, 27:18, 27:19, 30:10, 30:11, 30:13, 30:14, 32:13, 32:23, 39:15, 39:16 ongoing [1] - 14:6 only [8] - 6:6, 14:21, 17:2, 19:11, 34:19, 35:22 open [1] - 28:22 Open [1] - 28:24 or [73] - 3:3, 3:9, 3:10, 3:10, 3:11, 3:13, 3:13, 3:15, 3:16, 4:4, 4:8, 5:24, 6:5, 6:17, 6:18, 6:19, 6:23, 7:6, 7:8, 7:20, 8:2, 8:7, 8:24, 10:6, 10:19, 11:12, 12:10, 12:20, 14:5, 14:6, 14:19, 15:3, 15:19, 18:15, 18:20, 19:5, 19:15, 20:12, 22:7, 22:9, 22:12, 23:21, 25:22, 26:5, 26:8, 26:11, 26:15, 27:16, 28:13, 29:10, 29:25, 30:7, 30:11, 30:21, 31:2, 31:20, 32:24, 33:17, 34:8, 34:13, 34:15, 36:23, 37:8, 37:14, 38:13, 38:17, 39:2, 40:4, 43:13 Order [1] - 1:16 order [1] - 3:13 organization [1] - 29:11 original [1] - 35:23 other [16] - 3:9, 6:13, 7:14, 7:23, 12:10, 15:10, 20:10, 22:21, 23:18, 26:24, 29:11, 32:5, 34:13, 37:14, 39:1, 40:3 our [1] - 25:12 out [10] - 17:12, 21:7, 21:20, 32:3, 32:20, 32:22, 38:20, 38:23, 39:15 outcome [1] - 43:14 outside [1] - 26:21 over [13] - 6:13, 17:12, 17:17, 18:1, 18:5, 18:8, 18:16, 18:19, 18:24, 36:5, 38:7, 38:10, 38:12 overflowed [1] - 39:15 overnight [2] - 29:4, 39:20 own [2] - 10:18, 10:20	P P [2] - 2:1 P.M [3] - 1:11, 16:23, 40:8 PAGE [4] - 42:5, 42:13, 42:18, 42:23 paid [3] - 13:11, 13:13, 14:2 pain [1] - 34:7 painkiller [1] - 31:23 painted [1] - 39:13 papers [3] - 6:18, 38:12, 38:14 Parkway [1] - 17:12 part [1] - 34:23 particular [1] - 13:9 parties [5] - 1:16, 4:4, 4:13, 4:16, 43:13 party [1] - 3:17 past [1] - 16:1 pat [4] - 22:3, 22:12, 22:19, 24:16 pat-down [4] - 22:3, 22:12, 22:19, 24:16 patrol [5] - 20:8, 20:9, 20:15, 20:16, 23:6, 23:11 patted [1] - 21:24 pay [2] - 13:24, 23:3 pending [1] - 6:6 people [4] - 27:1, 35:11, 35:14, 39:13 perfectly [1] - 6:25 performed [1] - 22:20 Performing [1] - 12:24 permitted [1] - 3:10 person [4] - 3:6, 3:14, 5:21, 35:15 personnel [1] - 39:1 persons [1] - 3:11 phone [5] - 22:7, 24:14, 24:18, 24:25, 25:3, 28:9, 28:11, 37:2, 37:7 photographed [1] - 28:3 phrase [1] - 6:18 physical [3] - 27:16, 27:21, 32:10 physician [1] - 27:20 picture [1] - 24:10 pictures [1] - 8:24 place [4] - 16:17, 32:20, 39:12, 41:8 placed [6] - 21:13, 24:9, 24:11, 24:12, 24:22, 28:5 plainly [1] - 3:14 PLAINTIFF [1] - 1:3 plaintiff [1] - 8:2 Plaintiff [2] - 1:14, 2:3 plea [1] - 29:25 please [1] - 9:23
O O [3] - 5:1, 41:1 objection [2] - 3:7, 3:12 Objections [2] - 3:2, 3:2 objections [4] - 3:2, 3:5, 3:6, 3:7 occurred [3] - 16:11, 29:18, 33:16 OF [9] - 1:1, 1:1, 1:6, 2:9, 3:1, 4:1, 43:3, 43:4 of [125] - 1:14, 1:17, 1:19, 3:3, 3:4, 3:6, 3:7, 3:9, 3:9, 3:10, 3:13, 3:13, 3:16, 3:18, 4:3, 4:4, 4:5, 4:9,			

L. S. JOHNSON

51

Please (1) - 5:7 point (7) - 8:16, 18:1, 22:12, 28:14, 38:9, 39:18 POLICE (4) - 1:6, 1:8, 2:9, 2:9 police (19) - 16:8, 16:22, 16:24, 17:10, 18:1, 18:4, 18:7, 18:16, 18:18, 18:21, 25:13, 27:3, 35:7, 36:6, 37:3, 37:14, 39:1 possessions (1) - 24:15 possible (2) - 6:15, 6:20 possibly (1) - 39:3 power (1) - 39:3 Practice (1) - 3:3 practices (1) - 13:4 praying (1) - 32:4 Precinct (11) - 23:10, 23:12, 23:15, 23:19, 23:25, 24:8, 24:8, 25:1, 25:21, 25:25, 33:17 precinct (1) - 35:22 prejudice (1) - 3:14 preparation (1) - 8:10 prepare (3) - 8:13, 8:16, 8:25 prescribed (1) - 31:16 prescription (1) - 17:4 preserve (1) - 3:13 pressure (1) - 40:4 primary (1) - 31:14 prior (4) - 14:5, 14:8, 14:16, 16:24 privilege (1) - 3:13 probably (5) - 14:4, 19:13, 26:18, 33:10, 39:24 problem (2) - 20:18, 38:13 problems (2) - 14:6, 14:23 proceed (1) - 3:6 professional (2) - 14:17, 34:14 provide (1) - 31:15 provided (3) - 3:15, 4:11, 4:13 Public (4) - 1:19, 4:8, 5:2, 43:8 PUBLIC (1) - 41:19 pull (3) - 18:19, 38:7, 38:12 pulled (10) - 17:12, 17:17, 18:1, 18:5, 18:8, 18:16, 18:24, 36:5, 38:10 punch (1) - 22:13 purpose (2) - 4:3, 4:4 purposes (1) - 4:11 pursuant (3) - 1:16, 3:3, 3:7	push (1) - 22:17 put (7) - 21:24, 21:25, 22:2, 22:13, 22:20, 30:12, 33:24 Q QUESTION (1) - 42:23 question (15) - 3:14, 3:17, 4:4, 6:7, 6:8, 6:12, 6:15, 6:17, 6:24, 7:6, 8:14, 15:19, 33:10, 35:8 questioning (2) - 3:9, 3:11 QUESTIONS (1) - 42:22 questions (8) - 3:12, 5:21, 7:10, 16:7, 20:12, 28:17 quickly (1) - 21:25 R R (3) - 2:1, 41:1, 43:1 raised (1) - 3:7 ran (1) - 15:24 Randy (1) - 31:10 rate (1) - 13:24 read (3) - 8:13, 8:16, 26:11 reading (2) - 14:20, 14:21 really (4) - 7:2, 15:9, 32:19, 35:4 reason (2) - 4:5, 7:23 reasons (1) - 6:13 recall (15) - 17:13, 17:14, 19:14, 19:17, 20:25, 24:21, 25:19, 26:12, 30:1, 30:15, 31:20, 31:21, 31:24, 35:25, 36:24 received (1) - 12:10 recollection (3) - 16:16, 36:5, 36:8 record (14) - 4:6, 5:7, 5:17, 5:25, 6:14, 7:8, 9:16, 9:17, 9:22, 27:12, 27:13, 37:20, 37:21, 43:10 red (2) - 15:24, 15:25 reference (1) - 6:24 referring (1) - 8:20 Refusal (1) - 3:12 refusal (1) - 3:16 registration (2) - 20:2, 20:6 regular (1) - 31:1 related (1) - 43:12 relation (1) - 8:7 released (4) - 29:5, 30:5, 30:20, 33:22 relief (1) - 3:7 remainder (1) - 3:18	remember (17) - 6:23, 6:25, 7:3, 7:5, 15:6, 16:3, 16:11, 16:13, 16:21, 19:11, 19:12, 22:24, 26:19, 30:1, 31:16, 31:22 removed (1) - 24:22 rent (1) - 10:19 repeat (1) - 6:19 rephrase (1) - 8:19 report (2) - 34:20 Reporter (1) - 5:22 reporting (1) - 34:22 represent (1) - 29:7 representing (1) - 4:17 reputation (1) - 35:1 request (4) - 3:9, 24:3, 24:25, 25:24 REQUESTED (1) - 42:17 reside (1) - 20:20 resolution (1) - 13:4 respect (1) - 4:14 respective (2) - 1:16, 4:16 respond (2) - 21:18, 36:25 rest (1) - 31:18 restorative (1) - 13:4 restricted (1) - 3:7 result (8) - 32:10, 34:17, 34:22, 38:4, 38:16, 38:25, 39:25, 40:5 review (2) - 8:11, 8:22 Review (1) - 36:12 revoked (1) - 11:12 ride (3) - 23:19, 23:24, 38:14 right (13) - 3:6, 3:13, 3:17, 7:8, 10:6, 10:7, 17:12, 19:4, 19:21, 24:21, 29:6, 35:12, 35:13 rights (2) - 4:13, 26:11 Road (2) - 12:22, 13:20 room (2) - 27:18, 27:19 roughly (4) - 13:13, 14:2, 16:3, 29:2 Rule (3) - 3:3, 3:10, 3:15 rule (3) - 3:4, 3:10, 6:6 rules (2) - 4:5, 5:15 RULES (2) - 3:1, 4:1 Rules (1) - 3:4 RULINGS (1) - 42:22 running (1) - 30:8 runs (1) - 25:12 S S (5) - 2:1, 5:1, 42:1 s/h/a (1) - 1:15 SACCO (1) - 2:3	safety (4) - 13:3, 25:7, 25:9, 25:11 Safety (1) - 25:7 said (12) - 5:22, 20:18, 21:7, 21:10, 21:11, 21:12, 22:24, 26:4, 28:22, 29:19, 29:21, 39:10 same (11) - 4:8, 11:2, 11:3, 13:18, 13:22, 13:24, 15:20, 30:25, 37:2 sandwiches (1) - 28:14 saw (4) - 18:9, 29:4, 29:7, 29:15 say (13) - 7:2, 14:8, 18:7, 18:15, 18:20, 19:26, 21:6, 21:19, 28:25, 29:22, 32:23, 38:12, 39:18 saying (2) - 6:24, 22:24 says (2) - 28:23, 28:24 scan (1) - 28:20 scanner (1) - 28:23 scene (1) - 37:15 school (4) - 11:14, 13:9, 13:18, 35:5 School (2) - 11:16, 12:24 screaming (1) - 39:14 search (4) - 22:3, 22:12, 22:20, 24:16 searched (1) - 24:12 season (1) - 16:13 second (3) - 17:16, 20:20, 20:25 seconds (2) - 18:15, 18:20 section (1) - 4:5 sections (1) - 4:14 Security (1) - 9:19 see (13) - 18:4, 19:15, 29:24, 30:23, 30:25, 31:3, 31:4, 31:9, 32:5, 32:8, 32:25, 35:13, 38:6 seeing (4) - 14:13, 29:19, 30:20, 31:25 seek (4) - 30:21, 33:6, 33:22, 34:10 seen (4) - 14:15, 14:16, 27:15, 34:13 sees (1) - 15:23 send (1) - 36:23 sent (4) - 36:20, 36:21, 36:25 served (1) - 12:14 set (5) - 3:13, 4:5, 26:7, 43:9, 43:16 several (1) - 18:10 shake (1) - 5:24 shall (15) - 3:2, 3:5, 3:6, 3:8, 3:9, 3:11, 3:12, 3:15, 3:16, 3:17, 4:3, 4:6, 4:14,
--	--	--	---

52

L. S. JOHNSON

4:17 Shawn [2] - 5:8, 9:8 SHAWN [2] - 1:15, 41:12 she [8] - 5:23, 29:10, 29:16, 29:19, 29:22, 30:2, 30:4, 30:9 she's [1] - 5:22 shock [1] - 21:19 shoe [1] - 24:20 should [2] - 4:4, 25:16 showed [1] - 23:3 side [6] - 7:19, 18:22, 19:3, 19:4, 19:19, 29:23 signature [2] - 36:1, 36:3 signed [2] - 4:8, 4:8 significant [1] - 3:14 silly [1] - 33:10 since [2] - 10:18, 34:5 sir [4] - 9:19, 19:20, 20:4, 36:7 sitting [4] - 5:21, 16:15, 34:7, 38:3 six [1] - 13:10 sleep [2] - 38:17, 38:19 smoothly [1] - 5:16 so [24] - 3:8, 5:25, 6:2, 6:13, 6:14, 6:20, 10:8, 16:8, 17:17, 18:20, 25:20, 26:19, 29:17, 29:18, 29:19, 30:10, 30:13, 33:14, 35:3, 35:5, 35:9, 35:15, 36:3, 36:24 social [1] - 35:7 Social [1] - 9:19 socialize [1] - 15:9 solved [1] - 38:13 some [16] - 8:18, 22:25, 25:18, 26:5, 28:14, 28:15, 29:10, 29:18, 31:16, 32:7, 32:12, 32:13, 33:12, 33:13, 33:24, 35:17 somebody [3] - 26:6, 26:7, 33:1, 35:13, 35:14 someone [3] - 22:23, 39:2, 39:14 something [14] - 6:2, 6:23, 19:5, 22:24, 26:4, 26:8, 26:8, 31:2, 31:23, 32:3, 35:13, 35:15, 38:14 sometimes [1] - 38:6 soon [1] - 29:19 soreness [3] - 32:14, 32:16, 33:7 sort [3] - 22:25, 31:18, 35:18 speak [13] - 5:20, 6:5, 19:22, 20:10, 20:12, 22:21, 23:15, 23:21, 23:22, 26:2, 27:7, 27:10,	28:17 Speaking [1] - 3:7 specialist [1] - 31:13 specific [2] - 12:20 specified [1] - 41:8 speeding [1] - 15:25 spell [1] - 31:11 spoke [3] - 25:6, 25:14 SS [1] - 43:3 Stamford [1] - 10:24 standing [2] - 19:6, 39:16 starred [1] - 5:14 start [2] - 6:12, 16:7 started [1] - 7:10 State [3] - 1:19, 5:3, 43:7 state [1] - 5:7 STATE [2] - 1:1, 43:3 stated [2] - 3:8, 4:6 statement [7] - 3:9, 3:16, 36:18, 36:20, 36:21, 36:25 statements [2] - 3:11, 26:9 staying [1] - 38:23 step [1] - 21:20 Stephanie [1] - 10:24 stepped [1] - 21:20 stepping [2] - 32:19, 32:21 stick [1] - 19:21 still [8] - 26:21, 29:15, 30:25, 36:3, 36:4, 38:3, 38:11, 38:14 STIPULATED [4] - 4:7, 4:10, 4:13, 4:16 stop [1] - 37:13 stopped [1] - 23:15 stops [1] - 24:5 strabismus [1] - 14:10 Street [8] - 1:18, 2:10, 5:10, 10:17, 11:1, 11:8, 18:9, 18:11 street [1] - 17:14 streets [1] - 17:13 stressful [2] - 38:8, 38:15 strings [1] - 24:20 stub [1] - 23:3 students [1] - 15:5 stuff [4] - 28:14, 33:24, 34:20, 39:17 subdivision [3] - 3:3, 3:4, 3:15 subject [1] - 3:6 Subscribed [1] - 41:15 succinct [1] - 3:16 succinctly [2] - 3:8, 4:6 such [4] - 3:4, 4:5, 40:4, 43:9 suffer [1] - 38:18 suffered [2] - 33:20,	39:10 suggest [1] - 3:8 suit [3] - 8:7, 8:8, 8:9 summons [7] - 15:15, 15:19, 30:7, 30:12, 30:15, 35:23 supposed [2] - 36:1, 36:2 SUPREME [1] - 1:1 sure [5] - 5:17, 5:19, 5:25, 6:2, 6:11 survive [1] - 39:19 suspended [1] - 11:12 swat [1] - 33:14 sworn [4] - 5:2, 41:4, 41:15, 43:9 T T [4] - 41:1, 42:1, 43:1 take [10] - 5:23, 6:9, 17:4, 17:6, 18:20, 22:4, 22:9, 31:1, 31:17, 34:19 taken [10] - 1:15, 3:5, 7:12, 7:14, 23:6, 23:7, 23:9, 26:13, 26:23, 28:1 taking [2] - 5:22, 24:10 talk [7] - 15:7, 32:16, 35:6, 37:5, 38:23, 39:18 talking [4] - 6:13, 6:17, 8:14, 16:9 Technical [1] - 11:15 tell [9] - 19:5, 21:8, 21:13, 23:25, 27:20, 29:20, 33:3, 33:19, 35:17 telling [1] - 31:17 ten [1] - 18:20 testified [2] - 6:3, 8:5 testify [3] - 7:20, 7:23, 41:4 testifying [1] - 4:18 testimony [4] - 8:22, 41:4, 41:7, 43:10 than [2] - 15:10, 37:14 thank [1] - 40:7 That [1] - 43:8 that [105] - 3:11, 4:7, 4:10, 4:13, 4:17, 5:25, 6:6, 6:7, 6:8, 6:11, 6:14, 6:16, 7:1, 7:5, 7:6, 7:20, 7:22, 8:15, 8:18, 11:10, 11:12, 11:17, 11:25, 13:22, 14:13, 14:25, 15:4, 15:5, 16:3, 18:11, 16:17, 17:1, 17:2, 17:13, 17:14, 17:15, 17:24, 19:14, 19:18, 20:21, 20:23, 21:3, 21:4, 21:6, 21:7, 21:18, 22:24, 23:3, 23:4, 23:11, 23:14, 23:21, 26:6, 26:8, 26:18, 27:22, 28:21, 29:6, 29:17,	29:20, 29:23, 30:5, 30:8, 30:9, 30:11, 30:13, 30:15, 30:16, 30:23, 31:17, 31:18, 32:3, 32:23, 33:3, 33:19, 34:5, 34:8, 35:11, 35:12, 35:15, 35:17, 35:23, 35:24, 35:25, 36:4, 37:7, 38:6, 39:2, 40:4, 41:3, 41:6, 43:9, 43:10, 43:12, 43:14 that's [4] - 6:4, 24:20, 26:18, 29:18 THE [5] - 1:1, 1:6, 2:9, 3:1, 4:1 the [265] - 1:14, 1:15, 1:16, 1:17, 1:19, 2:3, 2:8, 3:3, 3:5, 3:5, 3:6, 3:6, 3:7, 3:8, 3:9, 3:10, 3:10, 3:11, 3:13, 3:14, 3:16, 3:17, 3:17, 3:18, 4:2, 4:3, 4:3, 4:4, 4:4, 4:5, 4:5, 4:6, 4:7, 4:8, 4:9, 4:10, 4:11, 4:13, 4:14, 4:16, 4:17, 5:3, 5:7, 5:13, 5:16, 5:21, 5:25, 6:6, 6:12, 6:13, 6:14, 7:8, 7:12, 7:16, 7:19, 8:1, 8:2, 8:18, 8:20, 8:21, 9:16, 9:17, 9:21, 9:23, 10:2, 10:3, 10:25, 11:6, 12:14, 13:14, 13:16, 13:18, 13:24, 14:2, 14:3, 14:5, 14:16, 14:25, 15:4, 15:10, 15:20, 15:23, 15:25, 16:1, 16:5, 16:7, 16:16, 16:17, 16:20, 16:22, 16:24, 17:2, 17:9, 17:14, 17:15, 18:1, 18:2, 18:4, 18:7, 18:16, 18:18, 18:21, 18:22, 19:3, 19:4, 19:7, 19:18, 19:19, 19:22, 20:7, 20:8, 20:9, 20:10, 20:15, 20:16, 20:18, 20:20, 21:8, 21:20, 21:21, 21:23, 22:1, 22:2, 22:3, 22:12, 22:21, 22:23, 23:1, 23:2, 23:6, 23:11, 23:12, 23:14, 23:15, 23:18, 23:19, 23:24, 23:25, 24:5, 24:8, 24:10, 24:23, 24:25, 25:7, 25:13, 25:21, 25:24, 25:25, 26:2, 26:3, 26:7, 26:15, 26:18, 27:3, 27:5, 27:12, 27:13, 27:19, 27:20, 27:21, 28:7, 28:8, 28:20, 28:23, 29:4, 29:7, 29:14, 29:19, 29:24, 30:1, 30:3, 30:4, 30:10, 30:11, 30:13, 30:14, 30:20, 30:23, 30:25, 31:3, 31:4, 31:11, 31:14, 31:17, 31:19, 31:20, 32:13,
--	--	---	--

53

L. S. JOHNSON

32:14, 32:15, 32:16, 32:17, 32:18, 32:21, 32:22, 32:23, 33:3, 33:6, 33:9, 33:17, 33:19, 33:25, 34:1, 34:2, 34:3, 34:10, 34:14, 34:15, 34:19, 34:20, 35:5, 35:8, 35:19, 35:22, 35:23, 35:24, 36:4, 36:8, 36:20, 36:25, 37:2, 37:3, 37:8, 37:10, 37:11, 37:14, 37:15, 37:20, 37:21, 38:4, 38:11, 38:20, 39:1, 39:8, 39:12, 39:14, 39:16, 40:8, 41:4, 41:6, 41:7, 41:8, 43:7, 43:8, 43:10, 43:13, 43:14 their [3] - 15:6, 15:8, 17:11 them [12] - 14:21, 15:7, 20:12, 22:24, 27:22, 33:14, 35:17, 38:18, 36:20, 36:21, 37:1 then [4] - 10:5, 20:19, 21:25, 22:1 therapist [1] - 34:13 there [38] - 10:21, 12:23, 13:6, 13:8, 18:13, 18:14, 19:4, 19:5, 19:6, 19:8, 20:22, 20:24, 21:7, 23:18, 23:20, 25:18, 26:24, 27:5, 27:20, 28:8, 28:17, 30:12, 32:23, 33:3, 33:13, 33:19, 37:3, 37:14, 38:13, 39:8, 39:9, 39:11, 39:16, 39:17, 39:23 there's [5] - 6:6, 15:9, 15:18, 16:5, 30:9 therefor [1] - 3:17 these [3] - 4:5, 27:7, 33:2 they [13] - 17:11, 21:23, 22:1, 22:6, 24:14, 24:18, 27:18, 28:14, 32:20, 33:12, 35:12, 38:12 they're [1] - 38:7 thing [6] - 15:20, 28:20, 31:18, 37:2, 39:6, 39:18 things [3] - 8:15, 33:2, 39:5 think [8] - 8:21, 17:16, 26:4, 27:5, 28:15, 29:9, 31:6, 31:12 thinking [3] - 26:17, 35:14, 38:7 this [44] - 3:10, 3:15, 4:17, 5:13, 8:7, 8:10, 8:17, 9:2, 13:9, 16:15, 18:12, 19:18, 22:19, 22:24, 25:17, 27:22, 30:22, 31:15, 31:19, 31:25, 32:11, 33:16, 33:23,	34:22, 34:25, 35:17, 35:20, 36:12, 37:11, 38:13, 38:15, 38:16, 38:22, 38:23, 38:24, 38:25, 39:5, 40:1, 40:5, 40:9, 41:16, 43:13, 43:14, 43:17 those [9] - 3:3, 15:22, 16:1, 19:10, 22:9, 22:10, 22:11, 38:14, 38:18 thought [1] - 28:21 three [2] - 18:8, 37:3 through [12] - 13:6, 15:23, 16:8, 20:18, 21:1, 24:10, 29:6, 30:8, 30:16, 32:4, 35:10, 39:19 thumb [1] - 34:2 ticket [1] - 15:20 tight [1] - 24:1 TIME [1] - 1:11 time [16] - 6:4, 13:18, 16:21, 17:24, 18:12, 20:20, 23:25, 26:15, 27:21, 29:20, 31:14, 34:17, 35:24, 38:5, 41:8 times [2] - 8:1, 35:11 title [1] - 12:25 titles [1] - 13:22 to [179] - 1:16, 3:3, 3:6, 3:6, 3:7, 3:8, 3:9, 3:10, 3:12, 3:12, 3:13, 3:14, 3:15, 3:16, 3:17, 4:13, 4:17, 5:14, 5:15, 5:16, 5:17, 5:19, 5:20, 5:21, 6:2, 6:5, 6:8, 6:11, 6:19, 6:24, 6:25, 7:6, 7:20, 8:7, 8:13, 8:16, 8:20, 8:24, 8:19, 13:7, 14:5, 14:8, 14:16, 15:7, 16:6, 16:7, 16:15, 16:20, 16:24, 18:3, 19:13, 19:15, 19:18, 19:22, 20:3, 20:7, 20:8, 20:10, 20:12, 20:16, 20:20, 20:24, 21:6, 21:15, 21:16, 21:20, 21:23, 21:25, 22:1, 22:9, 22:21, 22:24, 23:6, 23:7, 23:12, 23:15, 23:19, 23:21, 23:22, 23:24, 24:5, 24:25, 25:3, 25:6, 25:10, 26:2, 26:5, 26:9, 26:13, 26:16, 26:18, 26:23, 27:7, 27:8, 27:10, 27:15, 27:16, 27:18, 28:9, 28:11, 28:17, 28:21, 28:22, 28:25, 29:7, 29:16, 29:21, 29:24, 30:23, 31:1, 31:3, 31:17, 31:18, 32:2, 32:3, 32:7, 32:12, 32:16, 32:20, 32:24, 32:25, 33:2, 33:7, 33:14, 33:20, 33:23,	33:25, 34:7, 34:11, 34:19, 34:20, 34:25, 35:7, 35:10, 35:16, 35:22, 36:1, 36:2, 36:11, 36:18, 36:19, 36:21, 36:25, 37:4, 37:5, 37:6, 37:10, 37:13, 37:17, 38:5, 38:7, 38:9, 38:15, 38:19, 38:21, 38:22, 38:23, 39:3, 39:7, 39:18, 39:19, 41:4, 41:15, 43:12, 43:13 today [13] - 5:16, 5:22, 7:1, 7:21, 7:24, 8:1, 8:17, 9:25, 10:3, 16:16, 19:10, 34:7, 38:3 together [1] - 32:18 toilet [1] - 39:15 told [9] - 20:21, 21:4, 21:16, 21:18, 21:20, 23:2, 26:11, 27:22, 29:13 too [4] - 6:17, 18:14, 24:1, 32:25 took [4] - 16:17, 22:6, 24:14, 24:18 top [3] - 11:6, 32:14, 32:22 total [1] - 19:8 totally [1] - 6:4 toward [1] - 19:7 traffic [5] - 15:15, 18:12, 18:14, 29:18, 29:21, 30:3, 35:20 train [2] - 17:15, 38:22 training [1] - 12:10 transcript [3] - 4:8, 41:6, 41:7 transported [2] - 26:24, 27:8 treated [1] - 14:15 treatment [7] - 14:13, 27:23, 30:21, 31:15, 33:6, 33:23, 34:10 TRIAL [1] - 1:14 trial [1] - 4:11 tried [2] - 32:2, 33:14 trouble [2] - 38:24 true [2] - 41:7, 43:10 truth [1] - 41:4 truthfully [2] - 7:21, 7:24 try [2] - 31:12, 31:18 trying [5] - 28:22, 31:1, 33:2, 38:19, 39:19 turn [1] - 21:23 turned [2] - 17:25, 18:4 two [9] - 6:12, 13:12, 13:14, 16:4, 16:5, 17:22, 27:2, 27:5, 30:12	U U.S [1] - 9:14 uh [2] - 27:11 uh-uh [1] - 27:11 unclear [1] - 6:14 under [1] - 21:13 understand [2] - 6:16, 29:16 understanding [1] - 25:10 unfamiliar [1] - 6:18 UNIFORM [2] - 3:1, 4:1 unless [1] - 4:3 unloading [1] - 32:20 up [9] - 17:16, 19:12, 21:24, 26:8, 29:1, 33:2, 35:8, 38:24 upper [2] - 19:13, 34:2 us [3] - 25:12, 28:8, 32:20 use [1] - 6:2 using [1] - 6:17 utilized [1] - 4:11 V valid [1] - 11:4 van [4] - 27:5, 32:15, 32:17, 32:19 vehicle [2] - 18:25, 27:3 verbal [2] - 5:20, 6:1 very [3] - 25:12, 26:19, 26:20 video [2] - 8:24, 37:17 violation [4] - 15:16, 29:18, 29:21, 30:4 visible [1] - 18:7 Vocational [1] - 11:15 W W [2] - 2:7, 5:1 wait [1] - 6:11 waived [2] - 3:4, 4:14 wallet [3] - 22:7, 24:15, 24:18 want [2] - 6:25, 26:5 wanted [2] - 37:4, 37:5 warrant [2] - 21:7, 21:8 was [9] - 5:3, 8:7, 8:9, 9:17, 10:3, 10:5, 11:6, 13:18, 13:24, 16:3, 16:13, 16:21, 16:23, 17:24, 18:7, 18:9, 18:10, 18:16, 18:21, 18:23, 19:4, 19:5, 19:6, 19:12, 19:15, 20:9, 20:21, 21:3, 21:4, 21:7, 21:8, 21:11, 21:16, 21:19, 21:24, 22:20, 22:23, 23:4, 23:11, 23:20, 24:11,
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L. S. JOHNSON

25:19, 25:20, 26:15, 26:17, 26:18, 26:19, 26:21, 27:5, 27:13, 27:18, 27:22, 28:21, 28:22, 29:5, 29:10, 29:13, 29:15, 29:16, 29:17, 29:21, 29:23, 30:10, 30:12, 30:24, 31:1, 31:2, 31:6, 31:14, 31:17, 32:19, 32:21, 32:24, 33:1, 33:12, 33:18, 34:1, 35:17, 35:23, 35:24, 36:3, 37:3, 37:6, 37:21, 38:13, 38:21, 39:12, 39:14, 40:5, 40:9, 43:9 was that [q] - 12:6, 17:2, 34:3 was there [q] - 18:1, 18:12, 28:7 wasn't [q] - 14:15, 18:14, 38:13 water [q] - 6:5, 25:22, 28:13, 28:15 way [q] - 24:5, 32:22, 43:14 we [q] - 5:14, 5:17, 5:23, 6:8, 6:25, 7:7, 7:10, 16:8, 17:22, 22:25, 23:5, 26:14, 26:20, 27:5, 27:18, 29:19, 32:18, 32:19, 33:13, 35:6, 39:18 we're [q] - 5:15, 5:18, 6:13, 8:1, 10:3, 16:8, 28:24 wear [q] - 14:19, 14:21 weekly [q] - 14:3 weeks [q] - 13:12, 13:14 weight [q] - 9:25, 10:2 weird [q] - 38:5 well [q] - 20:16, 22:5, 30:9 went [q] - 20:7, 20:8, 20:18, 20:19, 21:15, 24:10, 26:16, 29:24, 30:23, 35:22 were [q] - 17:13, 17:17, 17:22, 18:13, 19:8, 21:13, 22:20, 23:6, 23:14, 23:18, 24:1, 24:12, 24:22, 26:3, 26:14, 26:23, 27:3, 27:5, 27:8, 27:21, 28:1, 28:8, 28:16, 30:5, 32:18, 32:19, 32:20, 33:13, 33:16, 39:8, 39:9, 39:11, 39:16, 39:20, 39:23 were you [q] - 14:2, 14:13, 19:15, 22:9, 23:6, 24:8, 24:12, 25:3, 25:21, 26:9, 26:11, 26:13, 27:15, 28:3, 28:5, 28:9, 28:13,	29:2, 29:7, 29:13, 30:7, 36:16, 39:25 what [q] - 8:14, 11:14, 11:19, 11:23, 11:25, 12:6, 12:8, 13:5, 16:3, 16:8, 16:11, 16:13, 16:21, 17:9, 19:12, 19:16, 20:14, 21:8, 21:11, 21:22, 25:9, 26:15, 26:19, 29:13, 29:16, 31:9, 31:15, 33:10, 33:12, 35:4, 36:4, 36:18, 37:4, 38:20, 38:22, 38:23 what are [q] - 13:2 what did [q] - 19:25, 20:5, 25:14 What is [q] - 5:9, 9:10, 9:25, 10:23, 12:26 what was [q] - 10:2, 12:2, 20:18 what's [q] - 12:23, 13:14, 21:11, 30:16, 36:11, 37:10 whatever [q] - 23:5, 30:10 when [q] - 3:12, 3:14, 5:17, 11:6, 14:8, 18:9, 18:18, 19:22, 20:9, 20:14, 20:16, 20:19, 20:23, 21:18, 21:20, 22:19, 26:20, 29:15, 29:18, 29:20, 32:18, 32:19, 35:22 when did [q] - 31:4, 32:16, 36:14 when you [q] - 16:21, 23:6, 24:22, 25:14, 26:16, 26:23, 29:6, 29:24, 33:16 where [q] - 10:25, 32:20, 33:25, 36:1, 36:2 where are [q] - 12:18 where is [q] - 11:17, 11:25 where were [q] - 9:12, 13:16, 17:20, 23:9 WHEREOF [q] - 43:16 Whereupon [q] - 9:17, 27:13, 37:21, 40:8 whether [q] - 4:4, 22:23 which [q] - 3:3, 10:3 while [q] - 5:15, 24:25, 25:21, 25:24, 26:3, 27:7, 28:16 white [q] - 19:13 who [q] - 10:21, 22:24, 25:5, 26:5, 26:6, 26:7, 37:4, 37:6 who was [q] - 19:6 who were [q] - 37:14 who's [q] - 39:17 whole [q] - 39:3 whom [q] - 3:5 whose [q] - 43:8 Why [q] - 30:2	why [q] - 7:23, 30:3, 39:7, 39:9, 39:11 wide [q] - 28:24 wife [q] - 9:4, 10:8, 10:22, 25:6 wife's [q] - 10:23 will [q] - 29:19, 31:12, 35:11 wind [q] - 38:24 window [q] - 19:3, 19:7, 19:19, 19:23 with [q] - 3:4, 3:11, 4:2, 4:3, 4:8, 4:14, 8:18, 9:2, 10:21, 14:25, 15:9, 16:15, 17:11, 18:2, 19:21, 20:7, 20:8, 23:15, 23:18, 25:12, 25:13, 25:14, 26:24, 27:3, 28:7, 29:10, 33:1, 35:5, 35:6, 35:7, 36:4, 37:5, 38:14, 38:20, 39:17, 39:25 within [q] - 7:16, 43:7 without [q] - 4:17 WITNESS [q] - 43:16 witness [q] - 4:17, 5:2, 8:5, 8:8, 40:9, 43:8, 43:11 witnesses [q] - 37:13 won't [q] - 5:25 words [q] - 6:2, 6:18 work [q] - 12:20, 13:5, 14:25, 15:4, 15:6, 23:2, 32:4, 34:17 worked [q] - 13:8 working [q] - 32:2 works [q] - 25:12 would [q] - 3:4, 3:14, 18:7, 18:15, 32:23 wrist [q] - 34:2, 34:8, 34:11 written [q] - 26:9, 36:21 wrong [q] - 35:13, 35:15	8:23, 9:15, 10:12, 11:5, 11:11, 11:22, 12:5, 12:17, 13:21, 13:23, 14:22, 15:21, 15:25, 16:2, 17:3, 17:19, 18:6, 18:20, 18:23, 19:1, 19:9, 19:20, 19:24, 20:4, 21:5, 22:8, 23:8, 23:13, 23:20, 24:10, 24:11, 24:14, 24:17, 24:24, 25:2, 25:4, 26:14, 26:22, 26:25, 28:2, 28:4, 28:6, 29:9, 29:12, 29:22, 30:6, 34:4, 34:6, 35:2, 36:13, 36:22, 37:3, 39:22 yet [q] - 6:7 YORK [q] - 1:1, 1:6, 2:8, 2:9, 43:3 York [q] - 1:17, 1:18, 1:19, 2:5, 2:10, 5:3, 5:11, 5:13, 9:13, 11:24, 12:19, 23:4, 43:7 You [q] - 20:18 you [q] - 5:14, 5:19, 5:23, 5:24, 6:1, 6:2, 6:4, 6:5, 6:8, 6:12, 6:14, 6:16, 6:19, 6:20, 6:23, 6:25, 7:1, 7:2, 7:5, 7:23, 8:13, 8:14, 8:15, 8:16, 8:20, 9:12, 10:6, 10:8, 12:16, 12:18, 13:16, 14:16, 14:21, 15:7, 15:23, 15:24, 16:7, 16:15, 17:2, 17:16, 17:17, 17:20, 18:1, 18:2, 18:5, 18:7, 18:8, 18:14, 18:15, 18:16, 18:24, 19:2, 19:5, 19:22, 20:5, 20:10, 20:23, 21:3, 21:4, 21:6, 21:8, 21:9, 21:10, 21:13, 21:18, 21:22, 22:3, 22:5, 22:7, 22:12, 22:13, 22:15, 22:17, 22:20, 22:21, 22:25, 23:9, 23:12, 23:14, 23:18, 23:21, 24:8, 24:12, 24:14, 25:14, 25:16, 25:17, 25:18, 25:20, 26:2, 26:3, 26:24, 27:4, 27:8, 27:10, 27:15, 27:21, 27:23, 28:7, 28:16, 28:17, 28:22, 28:25, 29:8, 29:14, 29:20, 30:5, 30:16, 31:4, 31:11, 31:15, 31:18, 31:19, 31:20, 32:3, 32:4, 32:7, 32:17, 32:23, 32:24, 33:2, 33:3, 33:9, 33:11, 33:14, 33:19, 34:7, 35:12, 35:13, 35:14, 35:16, 35:17, 35:18, 35:20, 35:25, 36:14, 36:19, 36:21, 36:25, 37:13, 38:9, 38:21, 38:22, 39:10,
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L. S. JOHNSON

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39:15, 39:17, 39:20,
39:23, 40:7

you're (4) - 5:25, 9:14,

33:1, 33:2

you've (3) - 7:14, 35:11,

39:10

YOUNG (2) - 1:8, 2:9

Young (12) - 19:12,

19:21, 19:22, 20:9, 20:14,

21:3, 21:13, 23:1, 23:11,

23:16, 26:4, 30:11

your (6) - 5:7, 5:9, 5:21,

5:24, 6:5, 7:20, 8:22, 9:3,

9:10, 9:19, 9:25, 10:2,

10:8, 10:15, 10:23, 11:6,

11:9, 12:2, 12:25, 13:2,

13:24, 17:18, 17:24,

18:19, 18:24, 18:25, 20:5,

21:3, 21:4, 22:4, 23:19,

23:25, 24:18, 24:22,

25:10, 26:11, 27:16, 28:1,

28:18, 28:24, 31:25, 32:5,

32:8, 32:16, 32:17, 32:24,

33:4, 33:7, 33:20, 33:23,

33:25, 34:1, 34:7, 34:11,

34:18, 34:23, 34:25, 35:1,

37:13, 37:17, 38:21, 39:3

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ZACHARY (1) - 2:7

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*[q] - 40:11

DIAMOND REPORTING (877) 624-3287 info@diamondreporting.com

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FILED: KINGS COUNTY CLERK 10/27/2015

NYSCEF DOC. NO. 1

INDEX NO. 12865/2015

RECEIVED NYSCEF: 01/19/2024

EXHIBIT K

WebCivil Supreme - Case Detail[Add to eTrack](#)

Court: **Kings Supreme Court**
Index Number: **12865/2015**
Case Name: **JOHNSON, LINSEY vs. CITY OF NY**
Case Type: **Tort-Other Negligence**
Track: **Standard**
RJI Filed: **02/04/2016**
Date NOI Due: **05/06/2022**
NOI Filed:
Disposition Date: **05/20/2022**
Calendar Number:
Jury Status:
Justice Name: **Part 20, City**

Attorney/Firm For Plaintiff:

SACCO & FILLAS, LLP
31-19 NEWTON AVE., 7TH FL
ASTORIA, NY 11102
718-746-3440

Attorney Type: RETAINED**Atty. Status: Active****Attorney/Firm For Defendant:**

CORPORATION COUNSEL
100 CHURCH STREET
NEW YORK, NY 10007

Attorney Type: RETAINED**Atty. Status: Active**[Close](#) [Show Appearances](#)

EXHIBIT L

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.: 12865/15

LINSEY JOHNSON

**PLAINTIFFS'
POST DEPOSITION
DEMANDS FOR
DISCOVERY**

Plaintiff(s),

-against-

**THE CITY OF NEW YORK, NYC POLICE
DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG**

Defendant(s).

C O U N S E L O R S :

PLEASE TAKE NOTICE, that pursuant to Section 3101(f) of the Civil Practice Law and Rules and the demand of the plaintiff pursuant to the Examination Before Trial that the defendant The City of New York produce and permit the undersigned to the following:

- 1. Please confirm Detective Moit is still employed with the NYPD and his/her current assignment;**
- 2. If not still employed, please provide last known address of Detective Moit;**
- 3. Please confirm if Lieutenant Vega still works for the NYPD and his/her current assignment;**
- 4. If not still employed, please provide last known address of Lieutenant Vega;**
- 5. Copy of the complete arrest paperwork referred to by Police Officer Aiken during her deposition including but not limited to cover sheet, summons, pedigree card, and DAT (Desk Appearance Ticket);**

PLEASE TAKE FURTHER NOTICE that production and discovery of this information is to take place within thirty (30) days of this notice, at the office of the undersigned at the address

listed below. However, a written communication enclosing the information requested may be sent prior to the date stated above in lieu of a personal appearance.

PLEASE TAKE FURTHER NOTICE that the foregoing are continuing demands and that if any of the above items are obtained after the date of this demand, they are to be furnished within a reasonable time after becoming known.

PLEASE BE ADVISED that upon the failure to comply with this demand, the defendant(s) will be precluded, upon the trial of this action, from offering into evidence or testifying as to any of the reports, records, photographs and testimony of witnesses not previously disclosed.

Dated: Bayside, New York
December 15, 2022



By: Richard E. Schirmer, Esq.
SACCO & FILLAS, LLP
Attorneys for Plaintiff(s)
Linsey Johnson
42-40 Bell Boulevard
Suite 300
Bayside, New York 11361
Ph: (718) 352-9760
Our File # 14845-15

TO:
Corporation Counsel
Attorney for Defendant(s)
New York Police Department
100 Church Street
4th Floor
New York, NY 10007
(718) 724-5200

INDEX NO.: 12865/15

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LINSEY JOHNSON

Plaintiff(s),

-against-

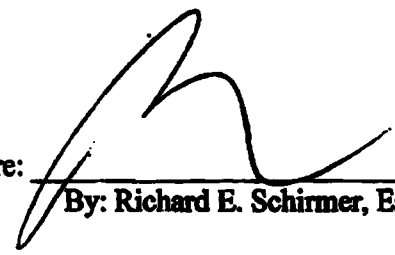
THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG

Defendant(s).

PLAINTIFFS' POST DEPOSITION DEMANDS FOR DISCOVERY

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Bayside, New York
December 15, 2022

Signature: 

By: Richard E. Schirmer, Esq.

SACCO & FILLAS, LLP
Attorneys for Plaintiff(s)
Linsey Johnson
42-40 Bell Boulevard
Suite 300
Bayside, New York 11361
(718) 352-9760
Our File # 14845-15

EXHIBIT M

SUPREME COURT OF THE STATE OF NEW YORK

Index No.: 12865/15

COUNTY OF KINGS

**STIPULATION TO
RESTORE**

LINSEY JOHNSON

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NYC POLICE
DEPARTMENT, POLICE OFFICER GOMEZ and POLICE
OFFICER YOUNG

Defendant(s).

IT IS HEREBY STIPULATED, CONSENTED AND AGREED by and between the attorneys for the respective parties hereto, that the above-referenced matter is hereby restored to the court's calendar in active status.

IT IS FURTHER STIPULATED AND AGREED that any and all discovery in the above-captioned matter has been completed and that the Note of Issue in connection with this matter shall be filed forthwith on or before July 24, 2023.

IT IS FURTHER STIPULATED AND AGREED that no further Compliance Conference is necessary in connection with the above-captioned matter.

IT IS FURTHER STIPULATED AND AGREED, that a copy of this stipulation may be filed with the Clerk of the Court without further notice

SACCO & FILLAS, LLP
By: Richard E. Schirmer, Esq.
Attorney for Linsey Johnson
42-40 Bell Blvd
Suite 301
Bayside, New York 11361
718-352-9760
Our File No: 14845-15

Corporation Counsel
Attorney for Defendant(s)
New York Police Department
100 Church Street
4th Floor
New York, NY 10007
(718) 724-5200

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.: 12865/15

LINSEY JOHNSON

Plaintiff(s),

-against-

**THE CITY OF NEW YORK, NYC POLICE DEPARTMENT, POLICE OFFICER GOMEZ and
POLICE OFFICER YOUNG**

Defendant(s).

STIPULATION

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Bayside, New York
April 3, 2023

Signature: _____

By: Richard E. Schirmer, Esq.

SACCO & FILLAS, LLP
Attorneys for Plaintiff(s)
Linsey Johnson
42-40 Bell Boulevard
Suite 300
Bayside, New York 11361
(718) 352-9760
Our File # 14845-15

John Christoulakis

From: John Christoulakis
Sent: Tuesday, April 18, 2023 5:59 PM
To: 'mnwikpo@law.nyc.gov'
Cc: Richard Schirmer
Subject: RE: 14845-15 - JOHNSON, LINSEY VS CITY OF NEW YORK, ET AL. INDEX# 012865/2015
Attachments: 20230403144101.pdf

Categories: Attached to SA
SA: -1

Good Afternoon,

Just following up on the stip to restore.



Sacco & Fillas, LLP
Attorneys at Law

By: John Christoulakis, J.D.
Paralegal

Sacco & Fillas, LLP

42-40 Bell Boulevard

Suite 300

Bayside, NY 11361

(Direct) 718.352.9766

(Fax) 718.425.8943

(Email) johnc@saccofillas.com

[Website](#) | [Facebook](#) | [LinkedIn](#) | [Twitter](#)

From: John Christoulakis
Sent: Tuesday, April 11, 2023 2:55 PM
To: 'mnwikpo@law.nyc.gov' <mnwikpo@law.nyc.gov>
Cc: Richard Schirmer <rschirmer@saccofillas.com>
Subject: RE: 14845-15 - JOHNSON, LINSEY VS CITY OF NEW YORK, ET AL. INDEX# 012865/2015

Good Afternoon,

Just following up on the status of the signed stipulation.

Sincerely



Sacco & Fillas, LLP
Attorneys at Law

By: John Christoulakis, J.D.
Paralegal

Sacco & Fillas, LLP

42-40 Bell Boulevard

Suite 300

Bayside, NY 11361

(Direct) 718.352.9766

(Fax) 718.425.8943

(Email) johnc@saccofillas.com

[Website](#) | [Facebook](#) | [LinkedIn](#) | [Twitter](#)

From: John Christoulakis

Sent: Monday, April 03, 2023 2:57 PM

To: 'mnwikpo@law.nyc.gov' <mnwikpo@law.nyc.gov>

Cc: Richard Schirmer <rschirmer@saccofillas.com>

Subject: 14845-15 - JOHNSON, LINSEY VS CITY OF NEW YORK, ET AL. INDEX# 012865/2015

Goof Afternoon,

As discovery has been officially completed back in December, we were looking to have this matter restored.

Please see attached stipulation to restore on this matter.

Kindly sign and return when you have a moment.

Sincerely,



Sacco & Fillas, LLP
Attorneys at Law

By: John Christoulakis, J.D.
Paralegal

Sacco & Fillas, LLP

42-40 Bell Boulevard

Suite 300

Bayside, NY 11361

(Direct) 718.352.9766

(Fax) 718.425.8943

(Email) johnc@saccofillas.com

[Website](#) | [Facebook](#) | [LinkedIn](#) | [Twitter](#)

EXHIBIT N

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO. 12865/15

LINSEY JOHNSON

AFFIDAVIT OF MERIT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG

Defendant(s).

STATE OF NEW YORK }
COUNTY OF QUEENS } SS.:

LINSEY JOHNSON, being duly sworn, deposes and says:

1. That I am the Plaintiff in the within action and am over the age of eighteen (18) years.
I reside at 8401 Main Street, Apt 226, Briarwood, NY 11435.
2. I incorporate and support all the statements made in my attorney's accompanying Affirmation in Support as if stated in full herein.
3. I make this Affidavit of Merit in support of this motion to restore this case to the active calendar and to extend time to file the Note of Issue.
4. This is an action to recover damages for serious personal injuries sustained by me as a result of a false arrest and detainment from January 31, 2015, to February 1, 2015 due to the improper, wrongful and negligent entering and handling of an incorrect warrant based on false and incorrect tickets. As a result, I suffered wrongful prosecution, mental anguish, physical pain, psychological distress, emotional upset, humiliation, depression, anxiety, loss of time from employment, and unlawful imprisonment.
5. My attorneys, Sacco & Fillas, LLP, have advised me that the discovery was

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO. 12865/15

LINSEY JOHNSON

AFFIDAVIT OF MERIT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NYC POLICE DEPARTMENT,
POLICE OFFICER GOMEZ and POLICE OFFICER YOUNG

Defendant(s).

STATE OF NEW YORK }

COUNTY OF QUEENS }

} SS.:

LINSEY JOHNSON, being duly sworn, deposes and says:

1. That I am the Plaintiff in the within action and am over the age of eighteen (18) years.

I reside at 8401 Main Street, Apt 226, Briarwood, NY 11435.

2. I incorporate and support all the statements made in my attorney's accompanying
Affirmation in Support as if stated in full herein.3. I make this Affidavit of Merit in support of this motion to restore this case to the active
calendar and to extend time to file the Note of Issue.4. This is an action to recover damages for serious personal injuries sustained by me as a
result of a false arrest and detainment from January 31, 2015, to February 1, 2015 due to the
improper, wrongful and negligent entering and handling of an incorrect warrant based on false
and incorrect tickets. As a result, I suffered wrongful prosecution, mental anguish, physical pain,
psychological distress, emotional upset, humiliation, depression, anxiety, loss of time from
employment, and unlawful imprisonment.

5. My attorneys, Sacco & Fillas, LLP, have advised me that the discovery was

outstanding, but at this time is almost complete, necessitating the matter being returned to active status.

6. It has never been the intention of my attorneys' offices or myself to abandon this action and in fact my attorneys, Sacco & Fillas, LLP, and myself have clearly continued to participate in discovery and prosecute my matter, including conducting depositions of involved police officers, and request made for relevant documents.

7. Based upon the foregoing, my attorneys have advised me that I have a meritorious cause of action as I was injured as a result of Defendants' actions.

WHEREFORE, it is respectfully requested that this motion be granted in its entirety, and for such other and further relief as to this Court deems just and proper, including the costs of this motion.

x Linsey A. Johnson
LINSEY JOHNSON

Sworn and subscribed to before me this
This 17 day of MAY, 2023

Frank M. Dix
NOTARY PUBLIC

FRANK M. DIX
Notary Public, State of New York
No. 01D14841351
Qualified in Queens County
Commission Expires August 31, 2025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

LINSEY JOHNSON,

Plaintiff

- against -

The City of New York, NYC Police Department,
Police Officer Gomez and Police Officer YoungIndex No. 12865/15

Assigned Judge _____

Letter Application to Convert
Pending Action to E-Filing

I, Richard E. Schirmer, a party in this matter, counsel in good standing representing a party in this matter, and/or counsel admitted pro hac vice, hereby respectfully request that the Court authorize the use of the New York State Courts Electronic Filing System ("NYSCEF") in this case and direct the County Clerk to convert this matter to electronic form pursuant to 202.5-b(b)(2)(iv) of the Uniform Rules of the Trial Courts.

Pursuant to 202.5-b(b)(2)(iv), I have attached proof of service of this letter application to all parties. Upon receipt of notification of the conversion of this matter to electronic form by the County Clerk, I will serve all parties with a notice of conversion to e-filing form and will file proof of that service via NYSCEF.

Dated: August 19, 2022Attorney ☒ Pro Hac ☐ Party (unrepresented) ☐

Signature: _____

Print Name: Richard E. Schirmer, Esq.

Attorney Representing - (Identify Party): _____

Linsey JohnsonFirm Name: Sacco & Fillas LLPAddress: 3119 Newtown Avenue, 7th Fl,Astoria NY 11101E-mail: rschirmer@saccofillas.comPhone#: (718) 352-9761

FOR COURT USE:

[X] application is **APPROVED**; and the County Clerk is directed to convert this matter to electronic form.[] application is **NOT APPROVED**; _____ is directed to notify the applicant.Dated: 1/17/24

Hon. _____

Justice

Patria Frias-Colón

2024 JAN 19 A 9:36
KINGS COUNTY CLERK
FILED10/28/20
EF-28

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 12865/15

LINSEY JOHNSON

**Affirmation OF
SERVICE**

Plaintiff(s),

-against-

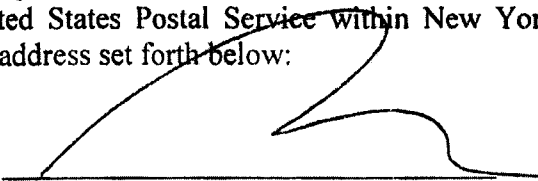
THE CITY OF NEW YORK, NYC POLICE
DEPARTMENT, POLICE OFFICER GOMEZ and POLICE
OFFICER YOUNG

Defendant(s).

Richard Schirmer, Esq., being duly sworn, says:

I am not a party to the action; I reside at , New York and I am over 18 years of age.

On 19 day of August, 2022, I served the annexed **Letter Application to Convert Pending Action to Efiling and Letter Application to Convert Pending Action to Efiling** by depositing a true copy thereof, enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the United States Postal Service within New York State, addressed to the following at the last known address set forth below:



Richard Schirmer, Esq.